

Andhra Pradesh Civil Rules of Practice and Circular Orders, 1980

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State of Andhra Pradesh - Act

Andhra Pradesh Civil Rules of Practice and Circular Orders, 1980

ANDHRA PRADESH

India

Andhra Pradesh Civil Rules of Practice and Circular Orders, 1980

RULE ANDHRA-PRADESH-CIVIL-RULES-OF-PRACTICE-AND-CIRCULAR-ORDERS-1980 of 1980

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Andhra Pradesh Civil Rules of Practice and Circular Orders, 1980

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AP01

Preamble

R.O.C.No.22/SO/69: - Whereas it is expedient to amend consolidate and bring upto date the Civil Rules of Practice and Circular Orders, 1905, and to incorporate therein the circular orders and administrative instructions issued from time to time for the guidance of all the Subordinate Civil Courts in the State of Andhra Pradesh except the Court of Small Causes the following rules and circular orders are issued under the authority of the High Court.

In exercise of the powers conferred by Article 227 of the Constitution of India and Section 126 of Code of Civil Procedure, 1908 (5 of 1908) and with the previous approval of the Governor of Andhra Pradesh, the High Court of Andhra Pradesh hereby makes the following Rules and Circular orders for the guidance Of Subordinate Civil Courts in

the State of Andhra Pradesh, except the Court of Small Causes.

Volume I - Part-I

Rules Made Under the code of Civil Procedure

Chapter I

Preliminary

1.

Short title:

- These rules shall be called The Civil Rules of Practice and Circular Orders, 1980.

2.

Definitions:

- In these rules, unless there is something repugnant to the subject or context,—

(a)

"Address for service" means the place appointed by a party, or his Advocate, at which service of summons, notice or other process may be made on such party;

(b)

"Advocate" includes a pleader;

(c)

"Application" includes execution application, execution petition, and interlocutory application, whether written or oral;

(d)

"Code" means the Code of Civil Procedure, 1908 (5 of 1908) as amended from time to time;

(e)

"Execution Petition" means a petition to the court for the execution of any decree or order;

(f)

"Execution application" means an application to the court made in a pending execution petition, and includes an application for transfer, of a decree;

(g)

"First hearing" includes the hearing of a suit for settlement of issues and any adjournment therefor;

(h)

"High Court" means the High Court of Andhra Pradesh;

(i)

"Interim decree" means a decree declaring the rights and liabilities of the several parties and providing for the determination of the particular property or sum of money to be apportioned or paid to any party, or for otherwise giving effect to such declaration;

(j)

"interlocutory application" means an application to the court in any suit, appeal or proceeding already instituted in such court, other than a proceeding for execution of a decree or order;

(k)

"Original petition" means a petition whereby any proceeding other than a suit or appeal or proceeding in execution of a decree or order, is instituted in a court;

(l)

"Proceeding" includes all documents presented to or filed in court by any party or Commissioner or other Officer of Court, other than documents produced as evidence;

(m)

"Verified" means verified in the manner provided by Order VI, Rule 15 of the Code;

(n)

"Other expressions" all other expressions used herein shall have the respective meanings prescribed by the Code or the General Clauses Act, 1897.

3.

Sitting of Courts:

- The sitting of the Court shall ordinarily commence not later than 11 A.M. and unless the work of the day is disposed of earlier the Court shall not rise before 5 P.M.; except for lunch on between 2 and 2.30 P.M.

4.

Judicial work on Sunday:

- No case shall ordinarily be heard and no judicial act formally announced or done on a Sunday or other Public Holiday: Provided that the Court may sit on a Sunday or other Public Holiday for the purpose of completing the examination of a witness or any other urgent proceeding then in progress which cannot be adjourned to the next working day.

5.

Forms:

–The Forms in Appendix III, Part-II, Volume II, hereto shall be used with such variations as circumstances may require.

6.

Reckoning of prescribed day:

–In all cases in which any particular number of days, not expressed to be clear days, is prescribed by these rules, the same shall be reckoned exclusively of the first day and inclusively of the last day, unless the last day falls on a Sunday, or other day on which the office of the Court is closed, in which case the time shall be reckoned exclusively of that day also, and of any other following day or days during which the office may continue to be closed.

7.

Service of notice:

- [(1)]

[Numbered as sub-rule (1) by GO.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

Except where otherwise provided by the Code, or these Rules, or any law for the time being in force, any notice, directed to be given to any party shall be in writing and may be served by the party or his Advocate on the other party, or his Advocate personally, or by sending the same by post in a registered post cover, [acknowledgement due, or by speed post or by an approved courier service by fax message or by electronic mail or by such means]

[Inserted by Ibid.]

to the address for service of the party or his Advocate.

(2)

[(a) Where the party is directed/permitted by an order of the Court to takeout summons/notices by Registered Post "acknowledgement due, Or By Speed Post Or By An Approved courier service or by fax message or by Electronic Mail service or by such means", the PRESIDING OFFICER shall handover summons/notices duly prepared and signed by the authorized Officer to the petitioner or his advocate for service on the other parties.

(b)

[(i)]

[Added by Ibid.]

The petitioner or his advocate shall file a memo stating the mode of service by which he effected the service enclosing the acknowledgement card or returned postal covers or any other proof."

(ii)

[]

[Inserted by Ibid]

The person who effects the service on behalf of the courier service and the person authorized by the Board of Courier Service Company shall give separate affidavits in the prescribed Form Nos. 14(A) & 14(B) stating the manner of service and also the persons in whose presence the service is effected enclosing the acknowledgement card/returned covers with endorsement of refusal signed by the witness/witnesses;

(iii)

If the affidavit or any endorsement as to service is found to be false, the concerned Court shall summarily try and punish the deponent i.e., the person of the courier service or the person authorized by the Board of Courier Service Company, for perjury and the concerned Court shall also black list the Courier Service Company]

(3)

The District Judge shall prepare a panel of courier services for the courts situated at the District Head Quarters and separate panels for Courts situated outside District Head Quarters for sending summons, notices, and other process by such courier service and such panels continue until further orders.

Chapter II

Form of Proceedings

8.

Form of complaints, etc.:

- All complaints, written statements, applications, affidavits, memorandum of appeal and other proceedings presented to the Court, shall be written, typewritten or printed, fairly and legibly on stamped paper or on substantial foolscap folio paper, with an outer margin of about two inches and an inner margin about one inch wide, and separate sheets shall be stitched together book wise. The writing or printing may be on both sides of the paper, and numbers shall be expressed in figures.

9.

Cause-title of complaint etc.:

(1)

A complaint, or original petition, shall be headed with a cause-title, as in Form No. 1. The cause title shall set out the name of the Court, and the names of the parties, separately numbered, and described as plaintiffs and defendants or petitioners and respondents as the case may be.

(2)

Cause title of memorandum of appeal:—A memorandum of appeal shall be headed with a cause-title setting out the names of the courts to and from which the appeal is brought, the names of the parties, separately numbered and described as appellants and respondents, and also the full cause title of the suit or matter in the lower court, as in Form No. 2.

(3)

Cause-title of subsequent proceedings:—All proceedings, subsequent to a complaint or original petition shall be headed with cause-title as in Form No. 1 and all proceedings subsequent to a memorandum of appeal shall be headed with a cause-title as in the first part of Form No. 2.

(4)

Description of contents:—Every proceedings shall also contain, immediately after the cause-title, a short description of its contents, as in Form Nos. 5 and 6.

10.

Names etc. of parties:

- The full name, residence, and description of each party, and if such is the case, the fact that any party uses or is used in a representative character, shall be set out at the beginning of the complaint, original petition, or memorandum of appeal, as in Form No. 5, and need not be repeated in the subsequent proceedings in the same suit, appeal or matter.

11.

Address for Service:

(1)

Every pleading shall contain the address for service, which shall be within the local limits of the jurisdiction of the Court in which the suit is filed or of the District Court in which the party ordinarily resides. The address for service shall contain particulars such as the Municipal or Panchayat number of the house, name of the street and locality.

(2)

A party who desires to change the address for service given by him as aforesaid shall file a verified petition and the court may direct the amendment of the record accordingly. Notice of every such petition be given to all the other parties to the suit.

(3)

The address so given shall be called the registered address of the party and shall, until duly changed as aforesaid, be deemed to be address of the party for the purpose of service of all processes in the suit or in any appeal from the decree or order therein made and for the purpose of execution.

12.

Suits by or against numerous parties:

(1)

An application under Order I, Rule 8 of the Code shall be supported by an affidavit stating the number or approximate number of the Parties, and the places where they respectively, reside; that they have all the same interest in the subject-matter of the suit, and the nature of the said interest, and the best means of giving notice of the institution of the suit to the said parties, and the probable cost thereof. If the application is made by the plaintiff, it may be made in Form

No. 10 and the estimated costs of giving notice of the institution of the suit shall at the same time be deposited in Court.
(2)

The plaint shall state that the plaintiff sues on behalf of himself and all other persons interested in the subject-matter of the suit, or sues the defendant as representing all persons so interested and the summons to the defendant shall contain the notice set forth in Form No. 11.

13.

When application is made by defendant:

- If the application is made by a defendant, notice thereof shall be given to all parties to the suit; ' and if permission is granted, the plaint shall be amended by inserting a statement that the defendant is with the leave of the Court, sued as the representative of all persons interested in the subject-matter of the suit.

14.

Proceedings in respect of immovable property:

- Every plaint, original petition and memorandum of appeal, in which relief is sought with respect to immovable property, shall state, as part of the description thereof the registration district, sub-district, the name of the village, Municipality or Corporation in which the property is situate, the survey number or the house number, if any, the market value of the property and the value for purpose of court-fee and jurisdiction as computed according to provisions of the Andhra Pradesh Court Fees and Suits Valuation Act, 1956 and in cases where the court-fee payable on the rental value, the annual rental value of the property for which it is let, and there shall be annexed thereto a statement duly filled in and i signed by the party of the particulars mentioned in Form No.8. In the absence of the said particulars, the proceedings may be received but shall not be admitted or filed until the provisions of this Rule have been complied with.

15.

Leave to sue:

(1)

If under Section 20(b) of the Code, leave to institute a suit is required, the plaint shall contain a prayer that leave may be granted, and shall be accompanied by an affidavit stating the residences and occupations of the several defendants and the reasons for instituting the suit in the court.

(2)

If leave to sue is granted, the summons to the defendant shall contain the notice set out in Form No. 9.

(3)

The Court may, in its discretion, issue notice of the application to the defendants before passing an order thereon.

16.

List of documents filed along with the plaint:

- Every plaint shall at the foot thereof, contain a list, to be signed by the plaintiff or his advocate, of the documents filed therewith, in Form No. 7 or a statement, signed as aforesaid, that no document is filed therewith.

17.

Form prescribed for list filed under Order XIII, Rule 1:

- The list of documents, if any filed, by the parties under Order XIII, Rule 1 of the Code, shall be in Form No. 7. In the case of a document produced by a witness or person summoned to produce a document, the form shall be supplied by the party at whose instance the document was produced. The list as well as the documents shall be immediately entered in the general index.

18.

Translation of documents: - Every document produced by . a party or his witness not written in the language of the Court or in English shall be accompanied by a correct translation of the document into the language of the Court or in English. The translation is correct. If the party is not represented by an Advocate, the Court shall have the translation certified by any person appointed by it in this behalf at the cost of the concerned party.

19.

Note on defaced documents: - When a document produced with any pleading appears to be defaced, torn, or in any way damaged, or where its condition or appearance required special notice, a note of its condition and appearance shall be made on the list of documents by the party producing the same and should be checked and initialled, if correct, by the receiving officer.

20.

Presentation of proceedings:

(1)

All complaints, written statements, applications, and other proceedings and documents may be presented to or filed in court by delivering the same by the party in person or by his recognized agent or by his Advocate or by a duly registered clerk of the Advocate to the Chief Ministerial Officer of the Court or such other officers as may be designated for the purpose by the Judge before 4.00 P.M. on any working day. Provided that in case where the limitation expires on the same day they may be received by a Judge even after 4.00 P.M.

(2)

The Officer to whom such documents were presented shall at once endorse on the documents the date of presentation, the value of the stamp fixed, and if the proceedings, are thereby instituted, shall insert the serial number.

(3)

In case of paper bearing court fee stamps, he shall, if required issue a receipt in Form No. 17 in Appendix III-L to these rules.

(4)

Every complaint or proceeding presented to or filed in Court shall be accompanied by as many copies on plain paper of the complaint or proceeding and the document referred to in Rule 16, as there are defendants or respondents unless the Court otherwise dispenses with such copies of the documents by reason of their length or for any other sufficient reason.

21.

Date of pleadings:

- Every pleading or other document filed in a Court shall bear the date on which the signature of the party is affixed, the date of its presentation and the date of its filing in Court.

22.

Procedure on presentation:

(1)

On presentation of every complaint the same shall be entered in Register No. 17 in Appendix II, Part-II, Volume II and examined by the Chief Ministerial Officer of the Court.

(2)

If he finds that the complaint complies with all the requirements, he shall make an endorsement on the complaint 'Examined and may be Registered' with the date and his signature and placed before the Judge. The Chief Ministerial Officer shall also endorse on the complaint or proceeding if any caveat has been filed. If he thinks that the complaint shall be returned for presentation to the proper court or be rejected under Order VII Rule 11 or for any other person, he shall place the matter before the Judge for orders.

(3)

Subject to the provisions of sub-rule (2), any non-compliance with these rules or any clerical mistake may be required by the Chief Ministerial Officer to be rectified. Any rectification so effected, shall be initialled and, dated by the party or his advocate making the same and the Chief Ministerial Officer shall note the number of corrections in the margin and shall initial and date the same.

In the event of such rectification not being made within the time specified, the Chief Ministerial Officer shall place the matter before the Judge for Orders.

23.

Registration of complaint:

- Where, upon examination, the complaint is found to be in order, it shall be entered in the register of suits, and the Judge shall pass orders as to the issue of summons or otherwise.

24.

Documents or proceedings not to be sent by post or telegraph:

- No document or proceeding required to be presented to, or filed in, Court which is sent by post or telegraph, shall be received or filed in Court.

[Provided that in cases where].

[P. Dis. No. 202 of 1942.]

[the Official Assignee or an Official Receiver does not intend to defend or contest any proceeding before a Court in which he is impleaded as party, he may inform the Court accordingly by a statement in writing in the form appropriate to

the proceeding, and send it to the Court by post or personal messenger. Such statement shall form part of the record of the proceeding.]

[P. Dis. No. 612 of 1945]

25.

Connected pleadings:

- Where two or more suits are in any way connected with each other, the party or his Advocate shall file a Memo describing the cases which are so connected.

26.

Signature of the party on the pleadings:

(1)

The parties shall sign at the foot of the pleading and any one of them shall also sign at the end of each of the other pages:

Provided that if impressed stamp papers are tacked on to a plaint for purposes of Court-fee, such papers may be signed either by the party or the Advocate concerned.

(2)

Verification of pleadings shall be made next below the paragraph claiming relief and also at the foot of the schedule, if any, appended thereto.

27.

Adding plaintiff or next friend:

- If an application is made to add any person as plaintiff, or as the next friend of a plaintiff, he shall either appear in person, in which case his consent to be so added shall be recorded by the Judge in writing or a written consent thereto signed by him, and authenticated by a person authorized to take affidavits shall be filed in Court.

28.

Amendment in pleadings:

- An application for amendment made under Order 1, Rule 103, Order 6, Rule 17, or Order 22 of the Code, shall also contain a prayer for all consequential amendments. The Presiding Officer shall reject the application if it is not in accordance with the law or these rules:

Provided that verbal corrections may at any time be made in pleadings with permission of the Court.

29.

Legal Representatives on record:

(1)

When a party dies pendente lite' a note to that effect shall be added against the name of the party and necessary consequential amendments in the body of the pleading shall also be made as prayed for.

(2)

When the heirs of a deceased party are substituted for him they shall be entered and numbered consecutively and described as the legal representatives of the deceased party.

Chapter III

Advocates and Recognized Agents

30.

Form of Vakalat:

- Every Vakalat shall unless otherwise ordered by the Court, be in Form No. 12 and shall authorise the Advocate to appear in all execution and miscellaneous proceedings in the suit or matter subsequent to the final decree or order passed therein.

31.

Appointment of Advocate:

(1)

Save as provided in sub-rule (3) of this rule, every Vakalatnama shall be executed or its execution attested before a judicial functionary, a Gazetted Officer, a member of the State Legislature or a member of Parliament or a member of the Gram Panchayat, Sarpanch, Upa-Sarpanch constituted under the Andhra Pradesh Gram Panchayats Act, 1964, or a member of the Panchayat Samithi or Zilla Parishad, a Municipal Councillor, Village Headman or a retired Gazetted Officer receiving pension from the Government or before a Commissioned Military Officer or [an Advocate either than

the Advocate in whose favour the Vakalatnama is executed or appointment, made]

[Inserted vide P.Dis. 464 of 1956]

[or as defined in the Notaries Act, 1952 (Act LIII of 1952)]

[Inserted vide P.Dis. 470 of 1949.]

before any Sub-Registrar of the Registration Department who shall subscribe his own signature with designation on the vakalatnama in authentication of its execution or attestation.

(2)

When a vakalatnama is executed by any person who appears to the officer before whom it is executed, or the execution is attested to be illiterate, blind, or unacquainted with the language, in which the vakalatnama is written the officer shall certify that the vakalatnama was read, translated or explained in his presence to the executant, that he seemed to understand it and that he made his signature or mark, in the presence of the officer.

(3)

When the executant of a vakalatnama is himself a public officer of whose signature a court may take judicial notice, authentication on the vakalatnama may not be necessary.

(4)

A statement of the advocate's address for service shall be endorsed on the vakalatnama and subscribed with his own signature by the advocate.

(5)

Where the attesting officer is not personally acquainted with the executant of a vakalatnama, the attesting officer shall mention the name and address of the person who identifies the executant and obtain his signature.

32.

Party appearing by Agent:

(1)

When a party appears by any agent, other than an advocate, the agent shall, before making of or doing any appearance, application, or act, in or to the court, file in court the power of attorney, or written authority, thereunto authorising him or a properly authenticated copy thereof together with an affidavit that the said authority still subsisting; or, in the case of an agent carrying on a trade or business on behalf of a party, without a written authority, an affidavit stating the residence of his principal, the trade or business carried on by the agent on his behalf and the connection of the same with the subject-matter of the suit, and that no other agent is expressly authorised to make or do such appearance, application, or act.

(2)

The Judge may there upon record in writing that the agent is permitted to appear and act on behalf of the party; and unless and until the said permission is granted, no appearance, application, or act, of the agent shall be recognized by the Court.

33.

Signing or verification by Agent:

- If any proceeding, which under any provision of law or these rules, is required to be signed or verified by a party, is signed or verified by any person on his behalf, a written authority in this behalf signed by the party shall be filed in court, together with an affidavit verifying the signature of the party, and stating the reason of his inability to sign or verify the proceeding, and stating the means of knowledge or the facts set out in the proceeding of the person signing or verifying the same and that such person is a recognized agent of the party as defined by Order III, Rule 2 of the Code and is duly authorized and competent so to do.

Chapter IV

Affidavits

34.

Interpretation of words:

- The word 'affidavit' in this Chapter shall include any document required to be sworn; and the words 'swear' and 'sworn' shall include 'affirm' and 'affirmed' ;

35.

Form:

- Every affidavit shall be drawn up in the first person and divided into paragraphs numbered consecutively, and each

paragraph as nearly as may be, shall be confined to a district portion of the subject.

Every affidavit shall be written or typed or printed and stitched book wise. The deponent shall sign at the foot of each page of the affidavit.

Note :- For forms of Oath and affirmation refer the Schedule to the Indian Oaths Act, 1969.

36.

Description of deponent:

- Every person making an affidavit shall subscribe his full name, the name of his father, his age, place of residence and his trade or occupation.

37.

Title of affidavits:

- Every affidavit shall be entitled as in the suit or matter in which it is filed but in every case in which there are more than one plaintiff or defendant, it shall be sufficient to state the full name of the first plaintiff or defendant, respectively and that there are other plaintiffs or defendants as the case may be.

38.

Before Whom may be sworn:

- Affidavits intended for use in judicial proceedings may be sworn before any Court or Magistrate or a Member of Nyaya Panchayat constituted under the A.P. Gram Panchayats Act, 1964, or a Sub-Registrar, Nazir, or Deputy Nazir or a member of the State Legislature or a Member of Parliament, or a Municipal Councillor or a [Member of Zilla Parishad or any Gazetted Officer in the service of the State Government or the Union Government or a Notary as defined in the Notaries Act, 1952, or a retired Gazetted Officer receiving pension from Government or a commissioned Military Officer or an Advocate other than the Advocate who has been engaged in such proceeding or any Superintendent in the Office of the Commissioner for the Andhra Pradesh Hindu Religious Institutions and Charitable Endowments.]

[P.Dis. 464/56 and P.Dis. 470/49.]

39.

Statement of Officer before whom affidavit is sworn:

- The Officer before whom an affidavit is sworn or affirmed shall state the date on which, and the place where, the same is sworn or affirmed and sign his name and description at the end as in Form No. 14; otherwise the same shall not be filed or read in any matter without the leave of the Court.

40.

Interlineations, alterations, etc.:

- No affidavit having in the Jurat or body thereof any interlineation, alteration or erasure shall, without the leave of the Court, be read or filed or made use, of unless the interlineation or alteration (other than by erasure) is authenticated by the initials of the Officer taking the affidavit, nor in the case of an erasure, unless the words or figures, appearing at the time of taking the affidavit to be written on the erasure, are re-written and initialled in the margin of the affidavit by the officer taking it. An Officer may refuse to take an affidavit where, in his opinion, the interlineation or alterations, or erasures are so numerous as to render it necessary that the affidavit should be rewritten.

41.

Deponent to be identified:

- Every person making an affidavit for use in the Court shall if not personally known to the person before whom the affidavit is made, be identified by some one known to him, and the person before whom the affidavit is made shall state at the foot of the affidavits, the name, address, and description of the person by whom the identification was made.

42.

Identification of a Purdahnashin woman deponent:

- Where the deponent is purdahnashin woman and has not appeared unveiled before whom the affidavit is made, she shall be identified by a person known to him and such person shall at the foot of the affidavit certify that the deponent was identified by him and shall sign his name giving his name and address.

43.

Blind or illiterate deponent:

-When an affidavit is sworn or affirmed by any person who appears to the officer taking the affidavit to be illiterate, blind, or unacquainted with the language in which the affidavit is written the Officer shall certify that the affidavit was read, translated or explained in his presence to the deponent, and that the deponent seemed to understand it and made his

signature or mark in the presence of the Officer, as in Form No. 15 otherwise the affidavit shall not be used in evidence: Provided that where the deponent, due to physical deformity or any other cause, is unable to sign or affix his mark on the affidavit, such affidavit may be received in evidence, if the Officer before whom the affidavit is subscribed certifies, that the contents of the affidavit were read over and explained to the deponent and admitted by him to be correct.

44.

Filing:

- Before any affidavit is used it shall be filed in Court but the Judge may, with the consent of both parties, or in case of urgency, allow any affidavit to be presented to the Court and read on the hearing of an application.

45.

Notice of filing:

- The party filing an affidavit intended to be read in support of an application shall give not less than two days notice thereof to the other parties, who shall be entitled to inspect and obtain copies of the same, and to file counter-affidavits and shall give notice thereof to the applicant, who may inspect and obtain copies of the same; and file affidavits in reply but except with the leave of the Court no further affidavit shall be filed or read. If any party fails to give notice of filing an affidavit the Court may grant an adjournment of the hearing and order the party in default to pay the costs thereof.

46.

Affidavits not to be filed without proper endorsement:

- No affidavit shall be filed in the Court unless properly endorsed with the number and title of the suit or matter, the name of the deponent, the date on which it is sworn and by whom and on whose behalf it is filed.

47.

Description of the person or place:

- When in an affidavit any person is referred to, the correct name and address of such person and further description as may be sufficient for the purpose of the identification of such person, shall be given in the affidavit. When any place is referred to in an affidavit, it shall be correctly described.

48.

Affidavit on information and belief:

- Every affidavit containing statements made on the information or belief of the deponent shall state the source or ground of the information or belief.

49.

Affidavit stating matter of opinion:

- Every affidavit stating any matter of opinion shall show the qualification of the deponent to express such opinion, by reference to the length of experience, acquaintance with the person or matter as to which the opinion is expressed, or other means of knowledge of the deponent.

50.

Striking out scandalous matter:

- The Court may suo motu, or on application order to be struck out from any affidavit any matter with which is scandalous and may order payment of costs of the application, if any, filed for that purpose.

51.

Documents referred to in affidavit:

- Documents referred to by affidavit shall be referred to as exhibits and shall be marked in the same manner as exhibits admitted by the Court and shall bear the certificate in Form No. 16 which shall be signed by the Officer before whom the affidavit is taken.

52.

Cross-examination on affidavit:

- The Court may, at any time direct that any person shall attend to be cross-examined on his affidavit.

Chapter V

A - Interlocutory Proceedings

53.

Form of Interlocutory Application:

- Interlocutory applications shall be headed with the cause title of the plaint, original petition, or appeal, as in Form No.

13.

54.

Contents of:

- Except where otherwise provided by these rules or by any law for the time being in force, an Interlocutory Application shall state the provision of law under which it is made and the order prayed for or relief sought in clear and precise terms. The applications shall be signed by the applicant or his Advocate, who shall enter the date on which such signature is made. Every application in contravention of this rule shall be returned for amendment or rejected.

55.

Separate Application for each distinct prayer:

- There shall be separate application in respect of each distinct relief prayed for. When several reliefs are combined in one application, the Court may direct the applicant to confine the application only to one of such reliefs unless the reliefs are consequential and to file a separate application in respect of each of the others.

56.

May be rejected if substantive order is not asked for:

- Every application which does not pray for a substantive order but prays merely, that any other application may be dismissed, and every application which prays for an order which ought to be applied for on the day fixed for the hearing of any suit, appeal or matter, may be rejected with costs.

57.

Out of order petition:

–Whenever it is intended to move the application as an urgent (out of order) application, the copy of the application served on the Advocate or the party appearing in person shall contain an endorsement stating that the application is intended to be moved as an urgent application on the day specified in the endorsement.

58.

Service of notice:

–(1) Unless the Court otherwise orders, notice of an interlocutory application shall be given to the other parties to the suit or matter or their Advocate to less than three days before the day appointed for the hearing of the application.

(2)

Such notice shall be served on the Advocate whenever the party appears by such Advocate.

(3)

[Notice of the application may be served on a party not appearing by Advocate by registered post acknowledgement due, or by speed post or by an approved courier service or by fax message or by electronic mail service or by such means to the address given in the pleading and in the event of its non-service on the party by means of summons to be delivered to the party or in the event of the party being absent or refusing to receive the same, affixature at his address.]

[Substituted by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

(4)

Unless the Court, otherwise orders, notice of interlocutory application need not be given to a party, who having been served with the notice in the main suit, appeal or other proceedings, has not entered appearance or to a party to whom notice in the appeal has been dispensed with under the provisions of Rule 14 of Order XLI of the Code.

59.

Copies to opposite party:

– Every interlocutory application shall be supported by an affidavit and true copies of the application, affidavit and the documents, if any, which the applicant intends to use or on which he intends to rely, shall be furnished to the opposite party or his advocate, unless otherwise ordered, not less than three clear days before the hearing date.

60.

Proof of facts by affidavit:

– Any fact required to be proved upon an interlocutory proceeding shall unless otherwise provided by these rules, or ordered by the Court, be provided by affidavit but the Judge may, in any case, direct evidence to be given orally, and thereupon the evidence shall be recorded, and exhibits marked, in the same manner as in a suit and lists of the witnesses and exhibits shall be prepared and annexed to the judgment.

B - Original Petitions

61.

Original Petitions should state Act or Authority under which it is presented:

(1)

The Rules relating to suits shall mutatis mutandis apply to Original Petitions unless a contrary intention appears from the rules governing such petitions made under the Special Acts.

(2)

An original petition shall, in addition to the particulars required by Rules 9, 10 and 11, also state the Act, or other Authority, under which it is presented, as in Form Nos. 5 and 6. If it is not intended to serve any person with notice of the petition, it shall be so stated, and the petition shall be headed, as in Form No. 6, but if the Court directs any person to be made a party, the cause-title shall be amended, and shall be in Form No. 1.

(3)

Hearing: - Original Petitions shall be heard and determined in the same manner as original suits.

62.

Applications under Sections 340, 341 and 343 of the Code of Criminal Procedure:

- Every application made to a Civil Court under the provisions of Sections 340, 341 and 343 of the Code of Criminal Procedure shall be registered as the Interlocutory application.

C - Transfer of Cases

63.

(1)

Application for Transfer:

- An application for transfer of a suit, appeal or other proceeding from one Court to another shall be made by Original Petition entitled in the matter of the pending suit, appeal or other proceeding as in Form No. 17. Notice of the application in Form No. 18 shall be issued and served on the other parties to the suit, appeal or other proceeding:

Provided that if under Section 24 of the Code, the District Court transfers a suit, appeal or other proceeding of its own motion and without giving notice in the first instance, it shall record in writing its reasons for dispensing with such notice and shall direct the Court from which it has been transferred to intimate the parties or their Advocates about the transfer and the date on which they should appear before the Court to which it has been transferred.

64.

(2)

and (3) Affidavit in support:

(1)

Every application for transfer shall be supported by an affidavit stating the respective residences of the several parties to the suit, appeal or other proceeding, the places in which the several portions of the subject-matter of such case are respectively situate, and the several jurisdictions within which the said residences and places are respectively situate, and any other facts on which the application is based.

(2)

A separate application supported by an affidavit shall be presented in respect of each case of which a transfer is sought, and the Court shall, in each case, record in writing its reason for the order.

65.

Registering suits received by transfer:

- The Courts to which a suit, appeal or other proceedings is transferred shall note the old number and the date of institution in the relevant register within brackets and when acknowledging the receipt of the records shall intimate to the Court, from which the case was received on transfer, the new number given to the same.

Chapter VI

Posting of Cases

66.

Preparation and publication of Special list:

(1)

On completion of the preliminary stages of suit or other matter, the Court shall obtain the required information from the Advocates or parties to enable it to estimate the probable length of the hearing and then post in the hearing book to particular dates.

(2)

When the cases so posted are called on the dates, the Advocates or the parties shall report whether there is any case of

compromise or death of parties and the like. Then a list known as the "Special List" of ready cases shall be prepared at the beginning of every month. For each day of the following month, postings shall be made with sufficient number of contested suits, uncontested suits and other matters that can be expected to be heard in a day. This "Special List" shall be published on the notice board of the Court by the fifth day of each month. Between the fifth day and the tenth day any representation which the Advocates or the parties might have to make may be heard and necessary changes be made.

(3)

The final list for whole of the next month shall be published by the tenth of each month and thereafter, short of the death of parties or similar compelling reasons, no adjournments be granted.

67.

Cause-List:

(1)

Every Court shall post on its notice board a cause-list of suits, petitions, applications, appeals and other matters to be heard on the next working day setting out the serial number, short cause-title of each case and the names of the Advocates.

(2)

Unless the Presiding Officer otherwise orders, the cases shall be called on the day and in the order in which they stand in the list.

68.

Cases ready to be posted according to their order:

- Unless the Judge otherwise orders, every case ready for disposal shall be posted and taken up according to its order on the file of the Court.

[Exception: - (1) "Any suit or proceeding for the prosecution or the defence of which a person in the service of the Government of the Union or of any State or a person subject to the Air Force Act, 1950 or the Army Act, 1950 or Navy Act, 1957 has obtained leave of absence, shall, on his application, be taken up and disposed of, as far as possible, within the period of such leave"]

[Substituted as per ROC No. 1707/1957-B1.]

Exception: - (2) In order to clear off arrears and to save the time of the Courts by reducing the number of applications to bring in the representatives of deceased parties, etc., batches of Suits and appeals pending in Civil Courts should be heard in future as soon as possible after they are filed, being posted before other suits and appeals which are ready for hearing.

[Note: - For this purpose 'batch' means five or more suits or appeals which will be governed by a single decision]

[H.C. Dis. 84 of 1913.]

Chapter VII

Processes A — General

69.

Issue of Summons or Notice:

- [(1)]

[Numbered as sub-rule (1) by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

In any proceeding in which summons or notice is to be issued by the Court to any person, the party presenting the plaint, memorandum of appeal, cross-objection, or application shall also bring into Court along with it a duly stamped application for service together with a sufficient number of copies of the plaint, concise statement memorandum of appeal, cross-objection, or application and affidavit in support thereof for service on the party concerned along with the summons or notice.

The copies above referred to shall show the date of presentation of the original and the name of Advocate, if any, who presented the same.

(2)

[The summons/notices shall be issued within 30 days from the date of institution of the suit.

(3)

Where the Court directs the service of summons to the defendant either through registered post acknowledgement due

or by speed post or by approved courier service or by fax or by electronic mail service they shall be sent accordingly. Where the service of summons is Ordered through a courier service such summons shall be sent through a panel of courier service approved by District Judge for this purpose.]

[Added by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

70.

Parties to file process forms duly filled up:

(1)

In all cases where processes of the nature of summonses or notices (including notice of an Interlocutory Application) have to be issued, the parties or their Advocates on whose behalf such summonses or notices are issued, shall file with their applications for the issue of processes, the appropriate forms of processes, as prescribed in the Code or under those rules or any other Law applicable to the case, in duplicate legibly filled up, together with the prescribed process fees. However the date of appearance and the date of the process shall be left blank.

(2)

In the case of summons, the combined form as in Form No. 19 shall be used and the party or his Advocates shall leave the portion relating to the purpose of summons intact leaving it to the Court, after it has, determined the purpose for which the summons is to issue, to strike out the portions of the form which do not apply and thus convert the summons into one as per Form No. 1 or 1-A or 2 of Appendix-B to the First Schedule to the Code of Civil Procedure.

(3)

The forms shall not be accepted unless filled up in a bold, clear and legible handwriting. The parties or their Advocates shall sign the forms in the left bottom corner, and will be responsible for the accuracy of the entries.

(4)

Where orders for the issue of process are passed by the Court, the date fixed for appearance will be inserted in the form and the process will be dated and signed by an Officer of the Court duly authorized.

(5)

The necessary number of printed forms of process if available, may be supplied to the parties or their Advocates at such price as prescribed on the forms by the Director of Printing. The costs so incurred shall be allowed to the parties as part of the costs for the preparation of process.

(6)

The Presiding Officer in has discretion direct in any particular case that the forms of processes may be entirely filled up in the office of the Court.

71.

Contents of Process:

- The process issuing officer, before issuing a process shall satisfy himself that full description of the persons for whom the process is intended of in respect of whom of whose person or property it is issued, is entered therein as will enable the process-server without risk of mistake to identify such person or property. Where such description is not furnished by the person moving the Court to issue the process, the orders of the Court shall forthwith be taken by the Issuing Officer.

72.

Language of Process:

(1)

The processes of the Court shall be in the Language of the Court in the prescribed forms.

(2)

Processes sent for service at any place where the language is different from that of the Court issuing them shall be accompanied by translation in the language of such place or in English.

(3)

Processes issued to Army, Navy or Air Force personnel shall be in English and if the forms in the language of the Court are used, they shall be accompanied by translation in English.

73.

Payment of Process Fee:

- [(1)]

[Numbered as sub-rule (1) by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

Except in so far as is otherwise provided by any law or rule or ordered by the Court, no process shall be drawn up or

issued for service until the prescribed fee has been paid in the form of Court fee stamps.

(2)

[Where Court permits the plaintiff to effect summons on the defendant under Order V Rule 9(A) of Civil Procedure Code no process fee shall be charged for the summons handed over to him.]

[Added by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

74.

Process sent to or received from other Courts:

(1)

When a Court sends a process for service to any Court beyond its jurisdiction, it shall endorse on the process a certificate that the prescribed fee has been collected.

(2)

When a process bearing a certificate that the prescribed fee has been collected is received by a Court from another Court in the Union of India the Court shall cause to be served. without further charge.

75.

Process to other Courts:

- Any process intended to be served by another Court either within or without the State shall be sent direct to the Presiding Officer of the concerned Court (not being the High Court) by designation and not to the Nazir or Deputy Nazir. The Court to which summons or other process has been sent for service shall make a return within the time fixed for the hearing of the case, stating whether service has been effected or not and if not, the reasons for the non-service.

76.

Address for service:

(1)

Every party who intends to appear and defend any suit, appeal or original petition, shall, before the date fixed in the summons or notice served on him as the date of hearing, file in Court a proceeding stating his address for service.

(2)

Such address for service shall be within the local limits of the Court in which the suit, appeal or petition is filed, or of the District Court in which the party ordinarily resides.

(3)

Where a party is not found at the address given by him for service and no agent or adult member of his family on which a notice or process can be served in person, a copy of the notice or process shall be affixed to the outer door of the house and such service shall be deemed to be as effectual as if the notice or process has been personally served.

(4)

Where a party engages an Advocate, notices or processes for service on him shall be served in the manner prescribed by Order III, Rule-5 of the Code unless the Court directs service at the address for service given by the party.

(5)

A party who desires to change the address for service given by him as aforesaid shall file a verified petition and the Court may direct the amendment of the record accordingly. Notice of every such petition shall be given to all the other parties to the suit.

(6)

Nothing in this rule shall prevent the Court from directing the service of a notice or process in any other manner if, for any reason, it thinks fit to do so.

(7)

Nothing contained in this rule shall apply to the notice prescribed by Order XXI, Rule 22 of the Code of Civil Procedure, 1908.

77.

Method of service:

(1)

The Serving Officer shall see that the person who accepts service of the process corresponds with the description given in the process. Where the signature in token of acceptance differs from the name given in the process, the discrepancy shall be explained.

(2)

Where the process is served on some person, other than the person named therein, who accepts the process on his behalf, it shall be stated whether such person is an adult member of the family and living with him.

(3)

Where service is accepted by an agent, it shall be stated whether such person is duly authorized to accept service.

(4)

Where a person refuses to accept the process, the endorsement of refusal shall be attested by a witness, the reasons thereof, if any given, and it shall be stated how the individual was identified.

(5)

When a process is affixed owing to the absence of the individual named therein, it shall be stated, if possible, both when he left home and when he is likely to return.

(6)

Where service is refused by purdahnashin ladies, it may be effected on any adult male member of the family.

(7)

Where the process is served on the proposed guardian, the fact that the said guardian consents to act as guardian of the minors mentioned in the process shall be got endorsed on the notice by the guardian.

(8)

Where the process for substituted service is issued, process servers shall carefully read the instructions given at the top of the process and effect service accordingly.

78.

Return of service:

(1)

The return of the Serving Officer shall state the manner in which the process was served and the place, and day, and month of service, and also whether he is personally acquainted with the person served, and if not, by whom such person was identified.

(2)

If the person to be served refuses to sign the acknowledgement of service, the return shall state that he was informed of the nature and contents of the process, and, in the case of a plaint, that, upon applying to the officer of the Court, he could obtain a copy, or concise statement of the contents of the plaint.

79.

Verification of return:

(1)

The return of service shall be verified by an affidavit of the Serving Officer. All Nazirs and Deputy Nazirs are authorized to administer the oath to and to take the affirmation of any process-server.

(2)

If the process-server is not personally acquainted with the person to be served, the return shall be supported by a verification at the foot thereof made and signed either by a Village Officer or by a respectable person who identifies him; and in the latter case, the full name and address of such person shall be set out in the verification.

80.

Particulars on return of service:

- The Court to which the summons has been sent under Order V, Rule 21 shall retransmit it to Court by which it is issued together with:

(a)

The Nazir's return and the affidavit or examination on oath by the Serving Officer;

(b)

The record of further enquiry, if any, by such Court;

(c)

In case, where the process has to be returned to any Court outside the State and the return is not in English or in the Language of that Court the proceedings in Form No. 10, Appendix-B, Schedule-I of the Code with which it is sent back to the Court shall be accompanied by a translation of the return into English.

81.

Service by Affixture:

- If a process is affixed to the outer door of a house, in the absence of the person to be served, the Serving Officer shall make an affidavit as to the following matters:

(1)

The number of times and the dates and hours at which he went to the house;

(2)

The attempts made by him to find the person to be served;

(3)

Whether he had any, and what, reason to suppose that such person was within the house or its neighbourhood, or endeavouring to evade service; and

(4)

Whether any adult member of the family of the person to be served was residing with him and why the service could not be effected on such person.

82.

Notice where summons is affixed to outer door:

- If a summons to a plaint is affixed to the outer door of the house, the Serving Officer shall affix therewith a notice that the defendant can, upon application to the Officer of the Court, obtain a copy of a concise statement of the contents of the plaint, and shall in his return state that he has done so and shall return the plaint or concise statement to the Court. If the summons has been sent by another Court for service and the defendant does not, within fourteen days from the affixing of the summons apply for the said copy it shall be returned to the said Court.

B - Service of processes on Public Officers and Soldiers

83.

Summons to Public Officers:

- A summons or notice to a Public Officer, other than an Officer in the Army, Navy, or Air-Force, as defendant or as witness, shall ordinarily be sent for service to the head of the office in which he is employed in accordance with the provisions of Rule 27 of Order V. In fixing the time for the attendance of a Public Officer the fullest consideration may be given to the exigencies of the duties of the Officer summoned.

Explanation: - (I) 'Public Officer' for the purpose of this Chapter includes every employee in the service or pay of local authority or of Indian Railways or of a Corporation engaged in any trade or industry which is established by a Central or State Act or of a Government Company as defined in Section 617 of the Companies Act.

(2)

The summons or notice to all employees other than those of the Government and Quasi Government Departments shall be served direct instead of through their employers.

84.

Summons to Soldiers:

(1)

A summons to a Public Officer or other employee in the Army, Navy or Air Force of the Union of India as defendant or as witness, shall be sent for service to his Commanding Officer in accordance with the provisions of Rule 28 of Order V. In such cases, sufficient time shall be given to admit of arrangements being made for the relief of the person summoned.

(2)

□

[P.Dis. 105 of 1955.]

The summons shall contain adequate particulars of the person summoned including the name of the unit and its postal address. If the actual location of the unit, engaged in operational rule, is not, divulged for security reasons then the summons may be addressed as "Care of New Delhi, 56 Army Post Office."

C - Service of process on the members of Parliament and of the State Legislature

85.

Process to Member of Parliament:

- No summons or other process issued against Member of Parliament or of the State Legislature, shall be sent for service to the Presiding Officer of the House or the Secretariat of the Parliament or of the State Legislature. Such summons or process shall be served direct upon the Member outside the precincts of the House of Parliament or of State Legislature as the case may be:

Provided, that in case of urgency such summons or process may be served on any Member within the precincts of the House after obtaining the permission of the Speaker or the Chairman as the case may be.

86.

Letter of Request:

- The provision of Order V, Rule 30 of the Code of Civil Procedure allowing the substitution of a letter for a summons shall be applied in the case of all Judicial Officers, Justices of the Peace, Presiding Officers of Parliament or State Legislature or Chairmen of Committees thereof or any other person who is in the opinion of the Court, of a rank entitling him to such a mark of consideration.

D - Service of process and through Foreign Courts service outside India

87.

Process for Service by Foreign Courts:

(1)

Every process to be issued for service in a country outside the Union of India shall be drawn up in proper form in English, typewritten legibly, signed by the Judge, properly addressed and sealed. All documents to accompany the process, shall be translated in the language of the country concerned or in English.

(2)

The original and duplicate of every process should be marked respectively with the words "For return" and "For service" and the Courts issuing the processes shall take special care to obtain and set out in each process as full and exact a description of the person to be served with address correctly spelt in full detail.

(3)

The Court shall take care that the time fixed for appearance or returnable date be such to enable the process be served and the person served to do what is required of him, due regard being had to the distance and the channel through which the process has to pass.

Note: - It is advisable that the date of return of the process sent through official channel should be 2 to 6 months depending upon the circumstances of each process.

88.

Deposit of Expenses:

- Before issue of a process to any Court outside India, the Court issuing the process shall require the party, at whose instance the process is issued, to pay such fee for service as is required by the Court to which the process is to be sent or as prescribed by the Government or by any other law or rule made for the purpose. In the case of summons to witnesses, a reasonable travelling and other expenses shall also be required to be deposited in advance.

Service in Pakistan

89.

[Service on the Public Officer]

[Notn No. F.22-1/51-L., Dated 1.9.1951.]

:

(1)

Where the defendant is a Public Officer (not belonging to the Pakistan Army, Navy or Air Force) serving in connection with the affairs of Pakistan or is an employee in the Railways in Pakistan the summons may be sent for service to the Secretary to the Government of Pakistan in the Ministry of the Interior.

(2)

Where such defendant is serving in connection with the affairs, of any other Government in Pakistan or under any local authority in Pakistan the summons maybe, sent to the Home Secretary to that Government, or as the case may be, to the Home Secretary to the Government within whose territory the local authority has its jurisdiction.

90.

[Service on the defendant]

[P. Dis. No. 93 of 1956.]

:

- The summons and other processes issued by any Civil Court intended for service on a person, other than a Public Officer in Pakistan may be sent direct to the Court (not being the High Court) in Pakistan under whose jurisdiction he is residing.

Service of Foreign Processes in the State

91.

[Processes of Pakistani Court]

[P. Dis. No. 93 of 1956.]

:

- The summons and other processes issued by any Civil or Revenue Court in Pakistan for service on any person residing within jurisdiction of the High Court of Andhra Pradesh and sent to any Civil Court having jurisdiction in the place where such person resides, shall be served by such Civil Court as if they were issued by the Indian Courts and the return of service shall be sent direct to the issuing Court in Pakistan.

92.

Process of other countries:

(1)

The provisions of the Code as to service within India of the processes of Court situated beyond the limits of India shall apply not only to summonses to appear and answer but also to summonses to give evidence or to produce documents or other material objects.

(2)

In case where there is a reciprocal arrangement under Section 29 of the Code the processes of other countries intended for service on any person within the jurisdiction of the High Court of Andhra Pradesh and sent to any Civil Court having jurisdiction over the place where such person resides shall be served according to the procedure laid down in the reciprocal arrangement and if no such procedure is laid down and also in cases where there is no reciprocal arrangement, they shall be served in the manner prescribed by the Code and these rules and the return of service shall be sent in accordance with the said procedure, if any, or direct to the Issuing Court in the absence of such procedure.

Chapter VIII

Witnesses

A - Allowances to Ordinary Witnesses

93.

Summonses to witnesses:

- [(1)(a)]

[Re.numbered as sub-rule (1)(a) by G.O.Rt.No. 1795, Law (LA & JHCB), Dated 20-10-2004.]

A party who desires the attendance of any witness before the Court, or a Commissioner appointed to take evidence, shall bring into the Court, a list in Form No. 20 of the persons whose attendance he requires, stating the full name, residence and description of each person and whether he is required to give evidence as an Expert or otherwise or to produce a document, and in the latter case, specifying the date if any, and description of the document so as to identify it.

(b)

[Summons referred to in sub-rule (1) may be obtained by the parties within five days of presenting the list of Witnesses.]

[Added by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

(2)

The party shall with such list, deposit into Court the prescribed fees [which shall not be later than seven days from the date of making application]

[Inserted by Ibid.]

for service of summons and the total amount of the allowance to which the said persons are entitled for travelling attendance at the Court and, in case of an Expert or a Scientific witness qualifying to give evidence the special fees and allowances to which such witnesses are entitled.

94.

Classes of Witnesses:

(1)

Ordinary witnesses shall be classed into three classes:

(a)

First class-persons whose annual income is Rs. 20,000/- and above, Class I employees of the Government who are required to attend the Court in their private capacity.

(b)

Second Class-all others who do not come under clause (a).

(2)

The Allowances payable to the ordinary witnesses shall be calculated according to the scale set out below:—

Class of witnesses

Travelling Allowances

Allowance for subsistence and other expenses not exceeding per diem

By Rail

By public Motor service

By Road

By Sea or Canal

(1)

(2)

(3)

(4)

(5)

(6)

Rs.

Rs.

I Class

First class

Deluxe fare or first class or higher class express Bus fare.

0.60 per Kilometre where public conveyance is not available.

Actual expenses of passage.

10.00

II class

Second class

Express or ordinary class

0.30 per kilometre where public conveyance is not available

Do.

6.00

(3)

In special cases where the rule works hardship it shall be at the discretion of the presiding Judge to allow witness, such additional sum as he may consider reasonable to cover bona fide expenses incurred by him.

(4)

Where the witness resides at the Headquarters of the Court, the Presiding Judge may allow reasonable hire for conveyance in accordance with status of the witness.

(5)

Witness produced under the warrant of arrest shall be paid subsistence allowance at the rate allowed to the judgment-debtors.

95.

Numbering of witnesses:

(1)

The witnesses examined for plaintiff or petitioner shall be numbered consecutively in the order in which they are examined and be referred to as P.W.1, P.W.2 and so on.

(2)

Witnesses examined for defendant or opponent shall, similarly, be numbered as D.W.1, D.W.2 and so on.

(3)

Where there are several plaintiffs or defendants, the witnesses called by each party shall not be numbered separately but continuously, as if all had been called by single plaintiff or defendant.

(4)

Witnesses examined as Court witnesses shall be indicated as 'C.W.' and be serially numbered in the order in which they are examined.

96.

Witness given up:

- If the party at the trial dispenses with the examination of any witness who is in attendance, the party or his advocate shall sign and file a memo into Court to the effect that the witness has been given up.

B - Allowances to Official Witnesses

97.

Allowances of Public Officers:

(1)

In case where a Public Officer is summoned as a witness in a suit which the Government is a party the total amount of allowances to be deposited by the party. Other than the Government, applying for summons shall be in accordance with Order XVI, Rule 4(A)(2) of the Code.

(2)

In cases where an employee of the Central Government or Railways is summoned in his official capacity as a witness in a suit to which the Government is not a party, the total amount of allowances to be deposited by the party applying for summons shall be in accordance with Order XVI, Rule 4-B of the Code.

98.

Certificate of Attendance:

(1)

The Public Officer attending the Court as a witness shall produce a certificate duly signed by the Head of Office showing the rules of travelling and other allowances admissible to him as for a journey on tour as required in Rule 4-B(2) of Order XVI of the Code.

(2)

Such Officer shall be issued a certificate by the Court that he has attended in his official capacity stating the date of his appearance, the period during which he has attended the Court and that he received no payment from the Court.

C - Allowances to Expert or Scientific Witnesses

99.

Remuneration to Expert or Scientific Witnesses:

- Where an Expert or Scientific witness other than the Government Examiner of Questioned Documents is summoned, he may be allowed such fees not less than Rs. 10, or more than Rs. 200 as the Court may fix, and such allowance not less than Rs. 10 or more than Rs. 30 per diem as the Court may fix for attending the trial or hearing. In addition, the witness shall also be entitled to the travelling allowances prescribed for ordinary witness of his class.

100.

Expert evidence:

(1)

Where a party desires the examination of a finger print or hand-writing or other disputed document by the Government Examiner of Questioned Documents at Hyderabad or Simla as the case may be, that party shall deposit into the Court such amount as may be prescribed by the Government from time to time for the purpose including the travelling expenses.

(2)

□

[See Appendix-A for the Expert at Simla at and Appendix-B for the Expert at Hyderabad.]

The party or his Advocate desiring the Expert's opinion shall file in the Court a memo of instructions in duplicate detailing the writings or finger prints disputed and admitted and points on which opinion is required.

(3)

All Exhibits forwarded to the expert for his opinion shall be sent by registered post and not by ordinary post.

Chapter IX

Trial of Suits

101.

Application for directions:

- Any party may, at the first hearing, apply to the Court for directions or the Court may, suo motu issue directions as to any of the following matters:

(1)

The filing of a written statement by any party, stating the pleas raised by him or further and better particulars thereof;

(2)

Adding or striking out parties;

(3)

Discovery of documents and interrogatories;

(4)

Inspection or production of any document or public record;

(5)

Issue of a commission to examine witnesses, or for any other purpose;

(6)

Reference to an arbitrator;

(7)

Any other matter or proceeding necessary to be considered or taken prior to the trial of the suit.

Unless the Court otherwise orders, not less than three days' notice of such application and of any affidavit filed in support thereof, shall be given by the applicant to the other parties to the suit.

102.

Production of documents:

- [(1)(a)]

[Added by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

All the parties including defendants, shall produce along with a list at or before the settlement of issues in the suit, all the documentary evidence of every description in their possession or power on which they intend to rely and which has not already been filed in the Court. The said list shall be in Form No. 7, and shall be signed and verified by the party filing the same or his advocate and a copy of the list together with a copy of each of the documents shall be served on the other side before filing in the Court unless otherwise ordered by the Court.

(b)

[all the parties including defendants or their advocates shall produce on or before the settlement of issues, all the other documentary evidence in original where the copies thereof have been filed along with plaint or written statement.]

[Added by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

(2)

The Court shall not ordinarily receive any documentary evidence in possession or power of any party which should have been but has not been produced on the due date, except in exceptional circumstances and good cause is shown for the default.

103.

Examination of parties etc.:

- The Courts, before framing issues shall, as far as expedient follow the essential preliminaries contained in Orders X, XI and XII of the Code which gives the Courts the extended issues in the matter of examination of parties, discovery, and inspection and obtaining admissions at appropriate stages. In comparatively big and complicated cases the Court may, after the documents have been lodged in the Court, allow atleast one date for the aforesaid purposes.

104.

Interrogatories:

(1)

A party who desires to administer interrogatories to any other party, shall, on presenting or making his application for leave to deliver the same, bring into Court two copies of the proposed interrogatories, and the fees prescribed for service of processes. If leave is granted, one of the said copies shall be filed on record, and the other shall be served by the Officer of the Court.

(2)

If a party objects to answer any interrogatory he shall state briefly the grounds of his objection in his affidavit in answer

to the interrogatories.

105.

Application of provisions:

- The Presiding Officers shall invariably frame the issues by themselves after perusing the pleadings and documents and after obtaining relevant information from the parties. The provisions of Rules 1 and 2 of Order X, Rule 1(5) of Order XIV shall be used extensively and the provisions relating to discovery and inspection and admission of documents in Orders XI, XII and XIII at appropriate places as frequently as possible.

106.

Framing of Issues:

- In framing of issues the Court shall proceed as follows:—

(1)

Every material proposition of fact and every proposition of law, which is affirmed by the one side and denied by the other, shall be made the subject of a separate issue.

(2)

Every issue of fact shall be so framed as to indicate on whom the burden of proof lies.

(3)

Every issue of law shall be so framed as to indicate, either by a statement of admitted or alleged facts, or by reference to the pleadings or some documents mentioned therein, the precise question of law to be decided.

(4)

No proposition of fact which is not itself a material proposition but is relevant only as ending to prove a material proposition, shall be, made subject of an issue.

(5)

No question regarding admissibility of evidence shall be made subject of an issue.

107.

Form of Issues:

- The issues framed by the Court and any order passed upon any application under Rule 101 shall be drawn up in Form No. 21 and shall form part of the record in the suit; and all parties shall be entitled to inspect the same and to obtain copies thereof.

108.

Adjournment to be to a day certain:

(1)

On the date finally fixed for hearing of a case, the trial shall begin and the evidence of witnesses be recorded from day to day until the trial is completed.

(2)

All adjournments shall be to a day certain, as far as possible, and the day shall be fixed with regard to the convenience of the parties and the business of the Court. Adjournments shall not ordinarily be granted except for really good and sufficient cause.

(3)

Upon an application for an adjournment, the Court shall consider the interests of all parties, the particular circumstances of the case and the business of the Court posted for that day. The absence of the Advocate of the party or want of preparation on his part, whether arising from insufficient instructions, or otherwise, shall not of itself be a sufficient cause for an adjournment. The Court shall invariably record the reasons for adjournment [and no such adjournment shall be granted more than three times to a party during hearing of the suit.]

[Added by G.O. Rt. No. 1795, Law (LA & JHCB), Dated 20-10-2004.]

109.

Notice of adjournment:

(1)

Any party desiring an adjournment may give notice in writing to the other party, or his advocate, of his intention to apply therefor in advance before the date fixed for hearing.

(2)

Any party who desires that the hearing may be advanced, may apply therefor by Interlocutory Application of which notice

shall be given to the other party.

(3)

The party served with notice may give to the other party, or his Advocate, a notice in writing that he consents to, or will oppose such adjournment or advancement.

(4)

□

[Dis. No. 204 of 1964.]

Every application for adjournment or advancement of hearing of a case shall be made as soon as the Court sits for the day. The Court shall pass orders of adjournment during call work while setting the work for the day.

110.

Costs of adjournment:

- Except where an adjournment is necessitated by the business of the Court, or by the act or default of any other party the party desiring an adjournment may be ordered to pay the costs thereof, including the expenses of re-summoning the witnesses if any, and the fee of the Advocate of the other party.

111.

Proceedings not to be adjourned sine die or struck off the file:

- No suit, appeal matter, or proceeding shall, under any circumstances whatever, be adjourned sine die or struck off the file; and if, by inadvertence, a day certain for the further hearing is not fixed by the Court, or a case is ordered to be struck off the file, the case shall be posted and come on for hearing one month from the day on which it was before the Court, or, if, the Court is then closed, on the next day thereafter on which the Court is sitting:

Provided that in a suit for partition in which preliminary decree has been passed, the Court may adjourn the proceeding, sine die, with to liberty any of the parties to whom shares have been allotted to apply for the passing of a final decree.

112.

Adjournment in consequence of application for commission:

- If an application for the issue of a commission to examine a witness, with respect to any other matter mentioned in Rule 101 is made subsequently to the first hearing, and an adjournment of the final hearing is prayed, the adjournment shall not be allowed, unless it is made to appear to the Court that the application could not, or ought not to have been made at the first hearing.

[113. Evidence: -

(1)

At the top of every sheet used for recording evidence shall be written the name of the witness, his father's name, age, residence and occupation, the number of the witness and the case number.

(2)

All additions, alterations etc., in the deposition shall be attested by the Presiding Judge.

Note: - Where the evidence is taken down in the presence and under the personal direction and superintendence of the Judge or from the dictation of the Judge directly on a typewriter and Judge shall sign or initial each page as soon as it is completed.

(3)

Whenever the Court consider it necessary to appoint a commissioner for recording the evidence (cross examination or re-examination) of witness or witnesses whose evidence (Examination in chief by an affidavit) has already been filed in the Court. The Court may appoint a commissioner for recording evidence of witness/witnesses from a panel prepared for this purpose on rotation basis.

(4)

The Court for the reasons to be recorded in writings may however appoint an advocate or retired judicial officer as a commissioner where a commissioner from the panel is not available for recording evidence.

(5)

(a)

The District Judge shall prepare a panel of commissioners for recording of evidence of witnesses under Order XVIII, Rule 4 of CPC for all the Courts situated at the District Head Quarters.

(b)

The Additional District Sessions Judge/Senior Civil Judge/Junior Civil Judge of the Courts situated outside the Head

Quarters shall prepare panels of commissioners for their courts with the approval of the District Judge. Where there are more than one Court at a Station outside the District Head Quarters, a common panel of the commissioners shall be prepared for all the courts by the senior most judge of the station with the approval of the District Judge.

(c)

The panel of commissioners shall be prepared from the following categories after obtaining their willingness.

(i)

advocates having sufficient experience at the Bar and practicing in the courts.

(ii)

any retired District Judge/Sr. Civil Judge/Jr. Civil Judge.

(6)

Sittings of the Commissioner.

(a)

The Commissioner shall complete the recording of the evidence (cross examination and re-examination) of witness/witnesses and shall submit the evidence recorded by him along with the report to the Court on or before the-date fixed by the Court, which shall not normally be beyond sixty days from the date of issue of the commission, the court however for reasons to be recorded in writing extend the time beyond sixty days.

(b)

the sittings of the commissioner for recording the evidence shall be. within the premises of Court or at any place directed by the Court.

(7)

Marking and Certifying of Exhibits.

(a)

Where a party/witness wants to reply on a document which has already been filed in the Court, the same shall be referred and identified by its serial number, description and the date as given in the list of document filed in the Court.

(b)

The party in his affidavit shall list out the documents referred in the Affidavit with its SI.No. Description and date in the last para of the Affidavit.

(c)

The court shall consider the admissibility of the documents referred in the affidavit of the examination-in-Chief and endorse on the documents. If admitted in evidence, the following particulars, viz.

(i)

the number and title of the suit.

(ii)

the name of the person who filed the document and exhibit number given by the Court.

(iii)

the date on which it was produced.

(iv)

the statement of its having been admitted. And the endorsement shall be signed or initialed by the Judge.

(d)

Where any document is not admitted there shall be endorsement on the document that it has not been admitted and the endorsement shall be signed or initialed by the Judge.

(e)

Where the court decides to admit a document subject to objection, the Court shall make an endorsement to that effect on the document and given an Exhibit Number.

(f)

The Court shall note the corresponding Exhibit numbers against the entries of the documents in the list given in the last para of the affidavit.

(g)

Where documents are produced for cross-examination of a witness of the party or where a document is handed over to a witness in the cross examination to refresh his memory, the commissioner shall mark them as Exhibits for identifications.

(8)

Handing over the original Record to the commissioner :

The Court shall hand over the original record with pagination under proper receipt to the commissioner keeping the original proceedings sheet of the court proceedings and duplicate plaint, copy of written statement and Xerox copies of the documents etc., with the court.

(9)

Register of Commissioner :

The court shall maintain a separate register for commissioners appointed under Order XVIII Rule 4 of Civil Procedure Code.]

[Substituted by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

114.

Translation of Evidence:

- Where a witness gives evidence in a language not understood by the Court, the Court may get the evidence translated by an interpreter and pay him reasonable fees for his services; the costs being borne by the party calling the witness in the first instance and being charged as costs in the suit.

115.

Marking of Exhibits:

(1)

Exhibits admitted in evidence shall be marked as follows:

(i)

if filed by the plaintiff or one of several plaintiffs, with the capital letter 'A' followed by a numeral A1, A2, A3 etc.;

(ii)

if filed by the defendant or one of several defendants with the capital letter 'B' followed by a numeral, B 1 , B2, B3- etc.;

(iii)

if Court exhibits with the capital letter 'C' followed by a numeral C1, C2, C3 etc.;

(iv)

if third party exhibits, with the capital letter 'X' followed by a numeral X1, X2, X3 etc.

(2)

The exhibits filed by the several plaintiffs or defendants shall be marked consecutively.

(3)

If in a proceeding subsequent to the trial of a suit or matter, further exhibits are admitted in evidence, they shall be marked in accordance with the above scheme with numbers consecutive to the number on the last Exhibit previously filed.

116.

B - Diary and Judge's Note:

(1)

The Court shall maintain B-Diary in all contested Original suits, Small Cause Suits and Execution Petitions in Civil Miscellaneous Form Nos. 47, 46 and 49 respectively prescribed in Appendix III-L of Volume II, furnishing full information as to the several steps taken in the trial or execution.

(2)

The Court shall make a note, in the proper order of time, of all material incidents such as the questions of admissibility of evidence and all other questions incidentally raised and decided in the ordinary course of trial so that the Appellate Court may have a complete record of such matters as well as the evidence taken.

Chapter X

Documents

A - Inspection of Documents

117.

Inspection of documents by party:

(1)

A party or his advocate shall be at liberty to inspect any document recited or referred to in a plaint or written statement, and filed in Court therewith.

(2)

The party or his Advocate desiring to inspect any proceeding filed in Court by him or any other party, or a Commissioner or Officer of Court, in the suit, appeal or matter, to which he or his client, is a party, shall present a memorandum specifying the proceeding of which inspection is required and inspection will be allowed without the payment of any fees, during the pendency of such suit, appeal or matter.

[Explanation]

[ROC No. 6236/47-B-1.]

: - For the purpose of this rule the advocates appointed by the various 'Sailors', 'Soldiers', and Airmen's Boards on behalf of the Soldier Litigants shall be deemed to be the Advocates of the concerned soldier litigants even if they hold no vakalat from them.

118.

Inspection of documents by Strangers:

- An application for inspection, or copies of records or documents of, or in the custody of a Court other than records or documents filed in a suit, appeal or matter, to which the applicant is a party, shall be made to the said Court by an application, entitled in the suit, appeal, or matter in which the records or documents are filed, and specifying the particular records or documents, of which inspection is, or copies are required, by reference as far as possible to the nature, date, and the date of filing of and the parties, to each record or document. The application shall be supported by affidavit stating whether the applicant has any, and what interest in the subject-matter of the document or of the proceeding in which the record or document is filed, the purpose for which inspection or a copy is required; and, if the same is required for the purpose of an intended or pending proceeding; the nature of the said proceeding, and the relevancy of the record or document to the case of the applicant.

119.

Notice of application for inspection:

- The Court, may, in its discretion, cause notice of the application to be given to the parties to the said proceedings; and where such notice is given, the provisions of the Code and of these rules with respect to summons to a defendant, shall apply to the said notice.

120.

Consent to inspect or obtain copy:

- The Court shall not grant leave to inspect, or to obtain a copy of, any record or document produced by a person not a party to the proceedings in which the same is filed, or to the discovery of which any person is entitled to object, except in either case with the written consent of such person.

121.

Inspection and fees for same:

- If a leave to inspect is granted, the inspection of the record shall be made in the presence of Record-keeper or of a responsible official of the Court designated for the purpose by the Presiding Judge and the fees for inspection, except where an inspection is allowed, free, shall be Rs. 1.25 ps. for every hour or part thereof during which the Court official is engaged and shall be paid by the Court fee stamps affixed to the application.

122.

Extracts not to be taken:

(1)

The payment of inspection fees shall entitle the applicant to peruse any document or record specified in his application and the inspection of which has been allowed by the Court or have it read to him. He may make a short memorandum of the date and nature of any document in the record so as to enable him to describe it sufficiently in case a copy is required but he shall not be entitled to make a copy of the document or part of the document or verbatim extracts therefrom. If he requires copies, he may apply for them as provided in the rules for certified copies.

(2)

When a person is entitled to inspect a proceeding or document, the search thereof shall be made by the Officer of the Court; and such person shall be allowed to peruse and make a short memorandum as laid down in sub-rule (1) above.

123.

Search Fee:

- On every application for inspection or for copy of any document or record, there shall be paid (in court-fee stamps) in

addition to the usual fee on such application an additional fee of Rs. 2 for search of the document or record:

Provided that no such fee need be paid by a party to the suit or proceeding where the application for inspection or for copy is made in a suit or proceeding which is pending disposal on the date of the application, or which has been disposed of within one year prior to the date of application.

Explanation: - For the purpose of this rule a suit shall be treated as pending till a final decree, if any, is passed therein, and an appeal shall be deemed to be a continuation of the suit.

For the purpose of this rule, only one search fee need be paid for all documents that have come into the custody of the Court relating to the same suit or proceeding, whether exhibited or not, and a document shall be deemed to be of the date of suit or proceeding of which it forms part of the record.

Enclosures or annexures to a proceeding or document and the vouchers appertaining to an account, shall be reckoned as part of the proceeding or document to which they relate.

If the proceeding or document is not found on record, the applicant shall be entitled to a certificate to that effect, free of cost.

124.

Inspection of exhibits:

- If any party or his advocate desires to inspect any exhibit, he shall do so in open Court, at the hearing of the suit or matter:

Provided that with the leave of the Judge, such inspection may be had in the presence of an Officer of the Court, to be named by the Judge.

B - Copies of Proceedings to be furnished by parties to each other

125.

Furnishing of copies to other party:

- A party or advocate, filing any proceeding shall furnish free of charge a copy of the same to each party appearing by a separate advocate.

126.

Name and address for service to be endorsed on copy:

- The name and address for service of the party or advocate by whom any copy is furnished shall be endorsed thereon, and the party or an advocate shall be answerable for the same being a true copy of the original, or of a certified copy of the original, of which it purports to be copy, as the case may be.

127.

Refusal or neglect to furnish copy:

- In case any party or advocate either refuses or neglects to furnish the copy, the person entitled to the copy shall be at liberty to procure a certified copy from the Court and in such case the party in default shall unless the Judge otherwise orders be liable for the costs of procuring the same.

C - Production of Records

128.

Production of records in the custody of a Court:

(1)

An application for the production of records in the custody of a Court shall specify the particular document required to be produced. Unless it is made to appear to the Court that the production of the original documents is necessary, the party shall be required to obtain and file copies thereof and the original shall not be sent for. If the Court dispenses with the affidavit mentioned in Order XIII, Rule 10(2) of the Code of Civil Procedure it shall record in writing the reasons for so doing.

(2)

When a Court finds it necessary to require the production of the records of another Court, either within or outside the State, it shall address a Letter of Request as in Form No. 22 direct to the Presiding Judge of that Court.

(3)

Where the document to be sent for by a Court either from its own records or from those of another Court under Order XIII, Rule 10, is an account Book, or other document, not being a record (e.g. Judgment, decree, written statement etc.), which has to be in the custody of a Court and belongs to a person other than a party at whose instance it is sent for the Court may require the party to deposit in Court before the letter of request is issued, such sum as it may consider

necessary to meet the estimated cost of making a copy of the document when produced.

(4)

When the letter of request is to be issued by the Court itself acting of its own motion it shall be opened to the Court to call upon either party to make the deposit as aforesaid.

(5)

On the production of the document in compliance with the letter of request, the Court shall cause a notice to be affixed to the notice board that the document has been received and that the parties may apply to the Court for inspection of the same. The Court shall not grant inspection to either party, unless it is satisfied that the application is made with the consent of the person to whom the document belongs. After the document has been admitted in evidence, the Court shall, unless it considers it necessary to retain the original, direct the parties to specify the portion or portions thereof on which they respectively rely, and require a copy to be made of the same at the expense of the party requiring such portion, and shall thereafter, with all convenient speed, return the original to the Court from which it was received, retaining the copies as part of the record [*]

[Note: Clauses 3 to 5 were added by G.O.2920L.(G) 22-9-1925 (H.C. Des. 1994 of 1925) for form vide Appendix III-A or Pt. II, Vol. II.]

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129.

Production of records in the custody of a Public Officer other than a Court:

(1)

A summons for the production of records in the custody of a Public Officer other than a Court shall be in Form No. 23 and shall be addressed to the Head of the Office concerned and in the case of a summons to a District Registrar or a Sub-Registrar of Assurances, it shall be addressed to the Registrar or Sub-Registrar in whose office, or sub-office, as the case may be, the required records are kept:

Provided that, where the summons is for the production of village accounts, including field measurement books, such summons shall be addressed to the Tahsildar or the Deputy Tahsildar in independent charge as the case may be:

[Provided further that when the summons is for production of records in the .custody of high dignitaries like the Speaker of the Lok-Sabha or State Legislative Council etc., the summons shall be in the form of a letter of request in Form No. 23-A.]

[P. Dis. 236/62.]

(2)

Every application for such summons shall be made by an affidavit setting out (1) the document or documents, the production of which is required; (2)- the relevancy of the document or documents; and (3) in cases where the production of a certified copy would answer the purpose, whether application was made to the proper officer for a certified copy or copies and the result of such application.

(3)

No Court shall issue such summons unless it considers the production of the original necessary or is satisfied that the application for a certified copy has been duly made and has not been granted. The Court shall in every case record its reasons in writing and shall require the applicant to deposit in Court, before the summons is issued, to abide by the order of the Court, such sum as it may consider necessary to meet the estimated cost of making a copy of the document when produced.

(4)

On production of the document in obedience to the summons, the Court, unless it thinks it necessary to retain the original, shall direct a copy to be made at the expense of the applicant, and shall with all convenient speed return the original retaining the copy.

(5)

Unless the Court requires the production of the original, every such summons to a Public Officer shall state that he is at liberty to produce, instead of the original, a copy certified in the manner prescribed by Section 76 of the Evidence Act.

(6)

Nothing in the above rules shall prevent a Court of its own motion from issuing a summons for the production of public records or other documents in the custody of a Public Officer [in accordance with sub-rule (1), if it thinks it necessary for the ends of justice to do so. The Court shall, in every case, record its reasons in writing]

[P. Dis. No. 1/46.]

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130.

[Copies of Public Documents]

[ROC No. 3584 of 1950.]

:

- When a party to a suit or proceeding seeks to obtain a certified copy of a public document for being filed into Court in that suit or proceeding, he may apply to the Court wherein the suit or proceeding, is pending for the issue of a certificate to enable him to obtain such copy from the appropriate authority, and the Court shall, on being prima facie satisfied that the production of the certified copy in the suit or proceeding is necessary, issue to the applicant a certificate to that effect.

D - Return of Documents

131.

Return of documents:

(1)

Applications for the return of documents filed in Court shall be made to the Court in which they were originally filed. If any document has been transmitted to any other Court, the former Court shall itself apply to such Court for the transmission of the document and shall return it to the applicant.

(2)

□

[ROC No. 6185/44-B1.]

The Appellate Court shall retain copies of the Trial Court's judgment and decree as an adequate record of the judicial proceedings so long as the destruction rules prescribe the retention of Part I records and not return to the party under Rule 9 of Order XIII after the disposal of the appeal.

132.

Return of Original documents:

(1)

Whenever an original document has been produced from the custody of a Court or a Public Officer, the Court shall unless it seems fit to proceed under Rule 8 of Order XIII, return it to the custody from which it was produced, without any application for its return under Rule 7(2) or Rule 9 of Order XIII of the Code.

(2)

□

[P. Dis. 57/58.]

All the valuable permanent records such as registration volumes shall be returned through a responsible person of the Court and not by post or by Railway Parcel.

(3)

The provisions of the Destruction of Records Act (Central Act V of 1917) and the Rules made thereunder shall not apply to such a document until it has been returned to the Court or the Public Officer by whom it was produced.

133.

Deposit for postage:

- If a record (not falling within the provisions of Article 11(c) of Schedule II of the Andhra Pradesh Court Fees and Suits Valuation Act, 1956) or document is required to be sent by post, the Court may direct the applicant to deposit in Court sufficient Court fee stamps to defray the postage of the same to, and from the Court. Unless the Court otherwise orders, the costs of and incidental to, an application for production of records which are material and relevant to the case, or which are present for by the Court of its own accord, shall be costs in the case.

Chapter XI

Commissions

134.

Application for commission:

- Every application for the issue of a commission shall state grounds thereof and shall be supported by an affidavit setting forth the length of time that the execution of the commission is likely to occupy, the details regarding the locality

where the commission is to be executed and its distance from the Court, the estimated expenses of the commission, and the remuneration, if any, of the proposed Commissioner: and in the case of commission for local investigation or to examine accounts, mesne profits etc., the specific points on which the enquiry is desired.

135.

Commissioner's fees:

(1)

If the application for the issue of a commission is granted, the Court shall, after consulting the parties or their advocates, fix the amount of Commissioner's fees and expenses and direct payments thereof into court; and the commission shall not be issued unless the sum fixed by the Court is paid into Court within the prescribed period:

Provided that the Court may, from time to time, on the application of any party or the Commissioner, direct that any further sum be brought into Court by any party.

(2)

□

[P. Dis. No. 406 of 1960.]

Process fees shall be collected for serving orders of appointment of Receivers and Commissioners as per item II of Schedule of process fees.

136.

Return of Commission:

- Every order for the issue of a commission shall specify the date or several dates within which the return of the Commissioner and the objections of the parties thereto shall respectively be filed in Court; and the suit or matter shall be adjourned to a fixed day.

137.

Appointment to audit:

- If the Court finds that the books of account have been regularly and properly kept, and correctly represent all the dealings and transactions in question, the Court may appoint a Commissioner to audit the accounts and vouch the items thereof, and to prepare a statement of account and balance sheet, as in Form No. 34.

138.

Declaration by Court:

- If the Court finds that any items have been included in the books of accounts which do not form part of the transactions in question, or are not properly chargeable to any party, or that any transactions have not been included in the said books, it shall declare generally the nature of the transactions or items to be excluded or included in taking the accounts, as in Form No. 35, and the Commissioner shall be empowered to state what, in his opinion, should be allowed or disallowed in these respects, as in Form No. 36.

139.

Report of Commissioner:

- The Commissioner shall make his report in the manner prescribed by Form No. 37 and shall annex thereto a statement of the proceedings he had before him together with lists of the witnesses examined and exhibits marked by him. If he is empowered to state his opinion on the matter referred to him, he shall append to his report schedules setting out the several contested items allowed or disallowed by him, and stating shortly his reasons for so doing, as in the said form.

140.

Consideration by Court:

- At the adjourned hearing of the suit, the Court shall consider the objections, if any, of the several parties to the statement of account and balance sheet or to the report of the Commissioner and may, if necessary, direct any party to bring in a fresh account and balance sheet, or refer the report to the Commissioner, with fresh directions, as to the manner of vouching or taking the accounts.

141.

Fees for execution of Foreign Commissions:

(1)

For execution of a commission, letter of request issued under Rule 19 of Order XXVI of the Code at the instance of Foreign Tribunals, a sum of Rs. 100 towards the fees and Rs. 25 towards the expenses of the witness or such sum as the High Court may fix in the order shall be collected from the Court at whose instance the commission in question has

been issued.

(2)

The scale of fees will be the same for the examination of witnesses whether the commission is executed by the Court or caused to be executed by a Commissioner. If the commission is executed by the Court, the fees shall be credited to the State Government.

(3)

Such commissions shall be duly executed even if the sum remitted is insufficient to cover the costs at the above rates. When the commission is returned, the return shall state what additional sum may be due, or the excess remitted that has to be returned, as the case may be.

Chapter XII

Judgments, Decrees and Orders

142.

Time for delivery of judgment:

- [(1) The Court, after case has been heard, shall pronounce judgment in an open court, either at once, or as soon thereafter as may be practicable and when judgment to be pronounced on some future day, and such day shall be within thirty days and it shall not ordinarily be a day beyond sixty days from the date on which the hearing of the case was concluded the court shall fix a day for that purpose, of which due notice shall be given to the parties or their pleaders.]

[Substituted by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

(2)

The fair copy of the judgment required for the record in Court shall be prepared within five days of the date on which judgment is pronounced.

Note: - In the case of Small Cause Suits "Fair" judgments will be required only in contested suits.

(3)

Where a party applies for a typewritten copy of the judgment immediately after the pronouncement of the judgment, a carbon copy shall be prepared along with the fair copy under sub-rule (2). The carbon copy shall be furnished to such party on payment of copying charges at the same rates applicable to the certified copies. The charges shall be paid in the form of court-fee labels which shall be affixed on the application for typewritten copy before the copy is delivered. The carbon copy shall be certified and shall bear the seal of the Court and shall contain the particulars mentioned below:

(i)

Date of application.

(ii)

Date on which charges called for.

(iii)

Date on which charges deposited.

(iv)

Date on which copy ready.

(v)

Date of delivery of the copy.

143.

Form of judgment:

(1)

The judgment of the Court shall be headed with the full cause-title of the suit, appeal or matter, the name of the Judge, and the date on which it was passed, and shall state the names of the parties or their advocates who appeared at the hearing and be drawn up in consecutive numbered paragraphs and shall also state the dates on which the case was heard as in Form No. 24 and a list of exhibits filed and witnesses examined shall be annexed thereto.

(2)

The judgment and final order in matters other than suits or appeals including contested Interlocutory Applications, Execution Petitions and Execution Applications, shall be drawn up in the same manner as the judgment and decree in a suit.

144.

Form of Decree and Time for preparation:

(1)

Every decree shall be headed with the full cause-title of the suit, appeal or matter, the name of the Judge and the date on which it was passed and shall state the names of the parties, their description and registered addresses together with the names of the advocates who appeared at the hearing and shall be drawn up in consecutive numbered paragraphs as in the appropriate forms prescribed in Appendix-D to the Code with necessary modifications.

(2)

Every decree shall ordinarily be drawn up [as expeditiously as possible and, in any case within the fifteen days from the date]

[Substituted by G.O.Rt.No. 1795, Law (LA&JHCB), Dated 20-10-2004.]

on which judgment is pronounced. The decrees in intricate or important cases may be shown to the advocates concerned before they are finally drawn up.

145.

Statement of Registration District in Decree or an Order in a claim petition as to immovable property:

- Every decree or an order in a claim petition with respect to immovable property shall state, as part of the description thereof, the registration District, Taluk Municipal Corporation or Municipality in which the same is situate, and there shall be annexed to the decree, a statement of the particulars mentioned in Form No. 8, certified by the Officer of the Court, and a copy thereof shall be furnished to every party applying for a copy of the decree.

146.

Form of particulars of claim:

- The particulars of the claim to be inserted in the register of civil suits, and in the decree or order, shall follow as far as possible the form of concise statement given in Form No. 25 and shall contain the amount or value of the claim and the date when the cause of action accrued.

147.

Specification of periodical payments:

- Where the periodical payments are directed, the decree or order shall specify the date of the first payment, and the day of each month or year on which the subsequent payments are to be made, as in paragraph 5 of Form No. 2 of Appendix III-D [**]

[Vide Pt. 11 of Vol. II for Forms, vide Appendix III-A of Pt. 11, Vol.-11.]

148.

Form of decree when application is under Order XXI Rule 11:

- When, after the passing of a decree for money, an application is made under O. XXI, R. 11(1) of the Code, the decree shall be made in Form No. 26.

149.

Decree or Order for cancellation of Registered Instrument:

- Where any instrument effecting immovable property registered under the Registration Act, 1908, is set aside discharged or cancelled by an order or decree of a Civil Court, the Court shall forthwith cause a copy of the decree or order drawn upon on plain paper to be forwarded to the Registering Officer:

Provided where such order or decree is modified, set aside or reversed, copies of further orders or decree shall also be forwarded to the Registering Officer.

150.

Setting aside ex parte decree where money or property recovered under same:

- An order, setting aside an ex parte decree or order, under which a party has recovered any money or property, shall ordinarily direct the same to be brought into Court, or possession thereof to be delivered to a receiver, pending the final disposal of the suit or matter, as in Form No. 27. If a decree is then passed dismissing the suit or matter, it shall be drawn up in Form No. 28.

151.

Appellate decree reversing lower Court decree where money or property is recovered:

- The decree of an Appellate Court reversing the decree of a lower Court under which money or property has been recovered shall direct the payment of the amount, or delivery of possession of the property recovered, as in Form Nos. 29 and 30.

152.

Several appeals against same decree:

- If more than one appeal is made against the same decree, the appeals shall, if possible, be heard together and one decree only shall be drawn up which shall be headed with the cause titles of the several appeals.

153.

Reference to High Court:

- When a case is referred under Order XLVI, Rule 1 of the Code, the Court shall require the applicant to bring into Court stamps requisite for service on notice on himself and all other parties to the suit or appeals, or if the reference is made on the motion of the Court, the Court shall require each party to bring into Court stamps required for service on himself and shall transmit such court-fee stamps with the statement, of the case.

Costs

154.

Production of certificate of receipt of fee except in certain cases:

- Unless the Court otherwise orders, and except in the case of an Advocate appearing on behalf of the Government or of a public servant whose defence is undertaken by the Government or of the Agent of the Court of Wards, no fee shall in any case be entered as recoverable in a decree or order except on production of a certificate, signed by the advocate that he has received such fee.

Explanation: - The fact of a promissory note or other agreement to pay the fee having been given or made by the client does not entitle the Advocate or pleader to certify that he has received the fee.

155.

Statement of costs:

(1)

Each party shall within five days from the date of judgment or order or such further period as may be allowed by Court, bring into Court the certificate mentioned in the preceding rule and a statement in the forms contained in Appendix-D Form Nos. 1 and 2 and Appendix 'G' Form No. 9 to the First Schedule to the Civil Procedure Code, 1908 (Central Act V of 1908) and signed by him or his advocate, if any, of the costs and expenses incurred by him, and may include therein the costs of :--

(i)

issuing notice before the institution of the suit not exceeding rupees thirty;

(ii)

preparation of process;

(iii)

making or getting copies of pleadings, applications, affidavits documents which are served on the opposite party at the rate not exceeding 0.50 paise per page inclusive of copies;

(iv)

travelling allowance and batta at the prescribed scale to witnesses (whether summoned through Court or not) who have attended the Court and given evidence or produced a document;

(v)

obtaining a copy including search fee of a public document including an encumbrance certificate, where such copy or certificate is relevant and marked as an exhibit or has been filed into Court in compliance with any Rule;

(vi)

any adjournment or interlocutory application allowed to him;

(vii)

obtaining certified copies of depositions in the case; and

(viii)

shall give credit for any costs allowed to his opponent and shall state the total amount claimed by him; and

(ix)

in the case of appeals, charges incurred by party for obtaining certified copies of judgments and decrees and the expenditure incurred for making or getting copies of judgments filed along with the memorandum of appeal. Where the copies of judgments are typewritten at a rate not exceeding 50 paise per page (inclusive of copies) and where the copies are otherwise mechanically reproduced the actual cost incurred.

The said statement shall be checked by the Officer of the Court who shall note thereon the sums if any, disallowed, and

the total amount disallowed by him, and shall sign the same. If any party makes default in filing the said statement, the Officer of the Court shall prepare and sign a statement of the amount of the institution fee, if any, and the Advocate's fee, as fixed by the Judge, allowable to the said party. Each party shall be entitled to inspect and to take a copy of the said statement.

Unless the Court otherwise orders, no allowance shall be made for the cost of, or occasioned, to any party by the amendment of any pleading and for the stamp duty and penalty paid by the party in the Court.

The costs of preparation of process shall be calculated at the following rates:

For preparation of original process - 0.25 paise each.

For preparation of each duplicate process - 0.05 paise each.

Subject to a minimum fee of 0.75 paise in each suit.

For the price of process form - the actual amount incurred.

In appeals, the costs of the certified copies of the judgment and the decree of the lower Courts filed with the memorandum of appeal in compliance with the rules shall be included in the statement of costs.

(2)

The statement referred to in paragraph (1) shall be signed by the Judge, and shall form part of the record of the case; and the total amount of costs allowed to the parties shall be inserted in the decree or order before the same is signed by the Judge.

156.

Costs when set-off allowed:

- If a defendant is allowed a set-off claimed by him, the Court may, in its discretion, allow costs to the plaintiff in respect of the suit, and to the defendant in respect of his set-off. The total amounts of the said costs respectively shall be inserted in the decree or order, and shall be set off against one another, and the decree or order shall direct payment of the balance to the party to whom the same is due, as in Form No. 31.

157.

[Proportionate Costs]

[P. Dis. No. 339/41]

:

- In cases in which the Court directs that the plaintiff or defendant/appellant or respondent to pay and/or receive proportionate costs, the whole costs incurred by each party, including court-fees, Advocate's fees, batta etc., shall unless the Court otherwise directs, be ordered to be paid and/or received in the proportion in which the parties have respectively failed or succeeded.

158.

Notice of application for leave to withdraw:

- Notice of an application for leave to withdraw from a suit, matter, or appeal, shall be given to all parties who have appeared at the first hearing, or, if the application is made before the first hearing, then to all parties who have filed and appointment of an advocate.

159.

Order on application for leave to withdraw:

- Unless the Court otherwise orders, an order under Order XXIII, Rule 1 of the Code permitting a party to withdraw a suit, matter or appeal, shall be made conditional upon payment of the costs of the defendant or respondent as in Form No. 32 and, if the respondent has filed a memorandum of objections; leave to withdraw shall be granted only, with the consent of the respondent, or upon the condition that the said objection be allowed, and the decree or order appealed against be varied accordingly.

160.

Direction as to taking accounts:

- If, in any suit or matter, it is necessary to take an account, the interim decree shall specify the nature of the account and the date from which it is to be taken, and if the account is to be taken by the Court, shall direct by whom a statement of account is to be filed, and limit the periods within which statements of account, objection and surcharge shall respectively be filed in Court, as in Form No. 40. The suit or matter shall then be adjourned to a fixed day.

161.

Form of statement of account:

(1)

A statement of account shall be in the form of a debtor and creditor account and shall be verified by the affidavit of the counting party or his agent. The items on each side of the account shall be numbered consecutively, and a balance shall be shown.

(2)

A statement of objection to an account, or to the report of a Commissioner, shall specify the items to which objection is taken by reference to their number in the account or report, or the date of the item and page of a particular book of account, or otherwise as in Form No. 33.

(3)

A statement of surcharge shall specify the amount with receipt of which it is sought to charge the accounting party, the date when, the person from whom and the particular account on which, the same was received by him, or in Form No. 33.

(4)

A statement of objection of surcharge shall also state shortly and concisely the grounds of the objection or surcharge and shall also state the balance, if any, admitted or claimed to be due, as in Form No. 33.

162.

Inspection by parties:

- Every party to the suit or matter shall be at liberty to inspect and take notes of a statement of account, balance sheet, statement of objection and surcharge, or report of proceedings of a Commissioner, when filed in Court.

163.

Passing of accounts by Court:

- On the adjourned hearing the Court shall consider the objections and surcharges made and determine the amount due.

164.

Extension of time to file statement of account:

- If any party has not filed his statement of account or of objection and surcharge within the period limited, the Court may from time to time extend such period or direct any other party to file statement of account, or proceed to decide the suit forthwith on the evidence before it. Evidence shall not be admitted with respect to an objection or surcharge not included in statement of objection or surcharge.

165.

Periodical filing:

- When a person is directed to file his accounts periodically, the Court shall fix the dates in each year before which his statement of account and balance sheet are to be filed and on which the same will be considered by the Court.

Chapter XIII

Appeals

166.

Memo of Appeal:

- The memorandum of appeal shall specify, concisely and under distinct heads, the grounds of objection to the decree appealed from the precise relief which the appellant proposes to ask the Appellate Court to grant.

167.

Appeals against orders:

- All appeals arising against the Orders made on petitions under Special Acts such as: (1) Andhra Pradesh Buildings (Lease, Rent and Eviction) Control Act, 1960; (2) Andhra Pradesh Co-operative Societies Act, 1964; (3) Andhra Pradesh Municipalities Act, 1965, etc., shall be registered as Civil Miscellaneous Appeals and entered in the Civil Register No. 4.

168.

Transmission of records:

- All the material papers in every suit or other proceeding in which an appeal has been made shall be transmitted to the Appellate Court immediately on receipt of intimation that an appeal has been registered and calling for records without waiting for the service of notice on the respondent.

169.

Costs to be stated:

(1)

The Court shall, in every case in which a finding is called for under Rule 25 of Order XLI of the Code, while returning its finding, certify at the foot thereof the amount of costs showing the items in detail incurred by each of the parties to the case.

(2)

When a suit is remanded, a statement of the costs incurred in the Appellate Court shall be appended to its order.

170.

Appeals against Interlocutory Order:

- Appeals against Interlocutory Order which held up the progress of suits or other proceeding in the trial court, shall be given precedence over all civil work other than that of a specially urgent nature and such appeals shall be disposed of expeditiously.

171.

Judgment in Appeal:

- The Appellate Court may formulate suitable points for determinations in appeals in accordance with the same principles on which issues are framed in the trial court and record its distinct findings on all questions of fact as is sufficient to show that the Court has dealt with each ground of appeal.

Chapter XIV

Special Procedure In Particular Cases

A - Minors and persons under disability

172.

Plaint or original petition on behalf of minor:

- When a plaint or original petition is presented by a person as the next friend of a plaintiff who is a minor or under disability, he shall at the same time file an affidavit by some disinterested person that he has no interest, direct or indirect the subject-matter of the suit or matter, adverse to that of the plaintiff that he is defendant or respondent in the suit or matter, and that he is a fit and proper person to act as next friend.

173.

Appointment of guardian ad-litem:

- If the plaintiff applies for appointment of a guardian ad-litem of a minor defendant, he shall give not less than six days' notice of the application to the father, or guardian, or custodian, of the minor.

174.

Placing guardian in funds:

- When a guardian ad-litem of a defendant, who is a minor, or a person under disability, is appointed, and it is made to appear to the Court that the guardian is not in possession of any or sufficient funds for the conduct of the suit on behalf of the said defendant and that the defendant will be prejudiced in his defence thereby, the Court may, from time to time, order the plaintiff to pay through or in the presence of the Court moneys to the guardian for the purpose of his defence, and all moneys so paid shall form part of the costs of the plaintiff in the suit, the order may be made conditional upon the guardian filing in Court his accounts of the money so received by him.

B - Partnership Suits

175.

Parties:

- In a suit for dissolution of partnership, or for an account of partnership dealings, all the partners, and all persons entitled to share in the profits of the partnership business, shall be made parties. The plaint may be as in Form No. 38.

176.

Inspection of books of account by parties:

- If, at any time, it appears to the Court that any party has not had inspection of the books of account or papers of the partnership, either through his own neglect or the default of any other party, the Court may order the same to be produced for his inspection at the Court-house or other convenient place; and if any party alleges that the books of the partnership do not correctly set forth all the dealings and transactions of the firm, or contain items or transactions not proper to be included therein, the Court shall direct such party to file a statement giving particulars of the errors or irregularities complained of, as in Form No. 39. The hearing of the suit shall then be adjourned, and the party in default may be ordered to pay the costs of the adjournment.

177.

Impeachment of settled account:

- If any party desires to impeach a settled account on the ground of error, he shall, in his plaint or written statement, set out the specific errors or irregularities alleged by him, if on the ground of fraud, or of a mistake affecting the whole account, he shall in his plaint or written statement set out full particulars of the fraud or mistake alleged by him.

178.

Interim decree where partnership and books admitted:

- If at the first hearing of the suit, the partnership and the terms thereof, and the correctness of the books of account, are admitted, and it is only necessary to take an account the Court may at once pass an interim decree specifying the account to be taken, and the manner of taking the same.

179.

Matters to be determined at hearing:

- At the hearing of the suit the Court shall determine the persons who are partners of the firm, and who are entitled to share the profits thereof, and the proportions in which they are entitled to share profits and are liable for losses and also, whether the books of the partnership have been regularly and properly kept and correctly represent the transactions and dealings of the partnership, or if any allegations have been made in this behalf by any party, whether there are any errors or irregularities therein, or any party has been guilty of fraud in respect thereof. If the Court finds that there are errors or irregularities in the accounts or that fraud has been committed, it shall declare generally the nature of the said errors, or irregularities, or fraud, or the particular transaction in respect of which the same has been committed, as in Form No. 35.

180.

Court to give directions as to taking accounts:

- At the hearing of the suit, the Court shall also determine what accounts are to be taken, and from what date and give such directions as may be necessary for taking the same in manner prescribed by Rules (160 to 165 and 136 to 140), and shall direct what notice, if any, is to be given, by advertisements in the local newspapers or otherwise, of the dissolution of the partnership. The Court may, if a Receiver has not been previously appointed, appoint a receiver of the assets of the partnership. The Court shall then pass an interim decree in Form No. 40 or Form No. 41 and shall adjourn the further hearing of the suit to a fixed day.

181.

Errors in a settled account:

- In the case of a settled account, if errors or irregularities are proved, the Court may either rectify particular items, or give liberty to any party to file a statement of objection and surcharge; if fraud, or a mistake affecting the whole account is proved, the Court may direct an account to be taken from the date of the settlement of accounts, if any, preceding the fraud or mistake.

182.

Commission to take account:

- If a Commissioner is appointed to take an account, he shall take the same in accordance with the directions and findings of the Court, as contained in the interim decree; and except as aforesaid, none of the matters in Rules 179 and 180 mentioned shall be referred to or dealt with by a Commissioner.

183.

Order for discharge of debts and liabilities:

- When the accounts of the firm have been duly taken and approved by the Court, it shall pass an order providing for the discharge of the debts and liabilities of the firm, and for the retention in Court of a sum sufficient for payment of any costs, charges, and expenses of the suit, properly payable out of assets, and adjourn the suit to a fixed day.

184.

Distribution of assets where they exceed the liabilities:

(1)

If the assets exceed the debts and liabilities of the firm, and if the parties agree to retain the assets in their hands respectively, on account of their respective shares in the firm, the order in Rule 183 mentioned may also provide for the payment of any balance which may be due by the firm to any of the parties, after debiting them with the estimated value of the assets in their hands. The order may be in Form No. 42, or if Commissioner has been appointed to take the

accounts or a Receiver has been appointed, in Form No. 43. If the parties apply for the distribution of the assets in any other manner, the order may direct the realization of sufficient assets to discharge the debts and liabilities of the firm, and to provide for equality of partition, as in Form No. 44. At the adjourned hearing the Court may, if the terms of the said order have been complied with; pass final decree in Form No. 45, 46 or 47 according to the circumstances of the case.

(2)

A final decree effecting a partition of partnership assets shall be engrossed on non-judicial stamp paper of the same value as that required for an instrument of partition.

185.

Procedure where liabilities exceed the assets or where parties do not consent to a distribution of assets:

- If the debts and liabilities exceed the assets of the partnership, or the parties do not consent to distribution of the assets, the Court shall direct the balance due from the several partners to be paid into Court, and the assets to be realised, as in Form No. 44; and if, at the adjourned hearing, it appears that the debts and liabilities have been fully discharged, the Court may pass final decree in Form No. 46, omitting paragraph 4 thereof.

186.

Appointment of Receiver on default of party:

- If any party, ordered to make any payment, or to do any other act, fails to comply with the order of the Court, any other party may apply that a Receiver may be, appointed to collect and realise the assets of the firm, and for an injunction to restrain the party in default from retaining or parting or dealing in any manner with the said assets.

187.

Form of orders:

- An order for an injunction in a partnership suit, an order on appeal varying the interim decree, and an order on appeal from the final decree reversing the same and appointing a Receiver, may be as in Form Nos. 48, 49 and 50 respectively.

Chapter XV

Copies and Copyists Establishment Certified Copies

188.

[Persons entitled to apply for copies]

[P. Dis. No. 253 of 1948]

:

(1)

Any party to a suit or proceeding shall be entitled to obtain copies of judgments, decrees, or orders made or of any documents exhibited in such suit or proceeding on payment of charges in the manner prescribed under these rules.

(2)

Any person who is not a party to a suit or proceeding requiring, copies of judgments, decrees or orders made or of any documents exhibited in such suit or proceedings, may apply to the Court for grant of such copies by duly stamped petition supported by an affidavit stating the purpose for which the copy is required:

Provided that, in cases of doubt whether, the copy applied for should be furnished, the application shall be placed before the Judge for his decision. If the application is refused by the Judge it shall be returned to the applicant with the order of Judge endorsed on it.

189.

[Copies of confidential papers]

[P. Dis. No. 253 of 1948.]

:

- Nothing in these rules shall entitle a person to a copy of: (a) Judge's notes or minutes; (b) Correspondence not strictly judicial; and (c) Confidential Correspondence.

190.

Application for certified copy:

(1)

A person entitled to obtain a copy or who has obtained an order of Court under these rules may present an application therefor to the Superintendent of the copyists or where there is no such officer, to the Chief Ministerial Officer either in person or by his Advocate or the latter's authorized clerk between the hours of 11.00 a.m. and 3.30 p.m. If the

proceeding or document has been sent to another Court the application may, at the opinion of the applicant, be forwarded to the said Court for compliance, or be returned to him, for presentation to the said Court.

(2)

The Application shall be in Form No. 51 and shall set out the name of the applicant and when he is a party to the suit or proceeding his position in the suit or proceedings and a description of the document of which a copy is required. An application, which is not in proper form, shall be returned for amendment.

191.

[Defective applications]

[Dis. No. 253 of 1948.]

:

- When an application is returned for amendment a time limit of 7 days shall be fixed for its representation. A defective application, which is not taken return of by the applicant and not represented within the period specified above shall be struck off.

192.

Copies of Proceedings of High Court:

- An application for copy of a plaint, written statement, memorandum of appeal, judgment-decree or other proceedings of, or in the custody of the High Court may be made by any party to such proceeding to the Court of first instance, or to the lower Appellate Court and shall be transmitted by the said Court to the High Court for disposal. The copy, if granted, shall be transmitted by the High Court to the former Court, and on payment of the prescribed fees, shall be delivered to the applicant. No copy of any proceedings of the High Court shall be granted by a subordinate Court. An application by a person not party to the proceeding shall be made directly to the High Court.

193.

Notice as to stamp papers:

(1)

Every day a list showing the applications in which the records have been received, and the number of stamp papers required in each case shall be prepared and affixed to the notice board of the Court between the hours of 3.30 p.m. and 5.00 p.m. Such lists shall remain on the board for three clear working days. Application upon which the requisite stamp papers have been deposited shall be struck off from the list. After the expiry of the period prescribed for the deposit of the stamps, the list shall be taken down and filed in the record for 12 months and shall then be destroyed.

(2)

If the required stamp papers have not been deposited by 3.00 p.m. on the fourth working day counting from and including that on which the lists were first affixed the application shall be struck off and, unless it is restored on an application made to the Court for the purpose, copy shall be granted only on a fresh application.

(3)

The above procedure shall apply for collecting additional stamp papers when the number first supplied has been found to be insufficient:

Provided that, where the additional stamp papers called for are not deposited but the stamp papers originally deposited are sufficient for the preparation of complete copies of one or more of the documents applied for, the application shall be struck off only as regards the documents which cannot be prepared by reason of the insufficiency of the stamp papers supplied. In such cases, the Superintendent of the copyists or such other officer as the Judge may appoint in this behalf, shall decide which document shall be copied and the decision shall be final.

194.

When stamp papers not available:

- It shall be open to the parties after obtaining the previous order of the Judge in this behalf, to furnish white foolscap size paper of durable quality with the requisite court fee stamps affixed on each sheet in lieu of stamp papers, and the papers so stamped shall for all purposes, be deemed to be stamp papers.

195.

[Order in which applications should be complied with]

[P. Dis. No. 253 of 1948.]

:

- The preparation of the copies of all documents applied for or such of them as admit of being copied in full on the stamp

papers deposited shall, as far as possible, be undertaken in accordance with the serial order of the copy applications: Provided that copies of decrees and judgments, if any, comprised in an application shall have precedence over copies of other documents included in the application. A special order for precedence as regards any particular application shall be made only on a separate application duly stamped under the Court Fee Act and praying for such an order.

196.

Pasting of list of copies:

- A list of copies for delivery shall be pasted on the notice board of the Court at 11.00 a.m., each day and shall remain thereon for three clear working days. The copy and any unused stamp papers shall be delivered to the applicant between the hours of 10.30 a.m. and 11.30 a.m. and 3.00 p.m. and 5.00 p.m. and if the copy is not claimed by the applicant within 12 months from the date of posting the said list, it shall be destroyed.

(2)

Immediately after the copies are delivered to the applicant concerned the entries relating thereto shall be struck off the list. The lists shall be retained for twelve months after which they shall be destroyed. As and when copies are delivered to the parties, appropriate entries shall be made in the list.

197.

Disposal of incomplete copies and unused stamp papers:

(1)

Where an application is struck off in whole or in part, the applicant shall not be entitled to the incomplete copy of any document prepared on his behalf. The incomplete copy shall be destroyed after twelve months from the date on which the application was struck off.

(2)

Where an applicant has furnished the required number of stamp papers, but some remain unused owing to the copyist's writing too closely, the Presiding Officer of the Court shall forward the unused stamp papers to the local or the nearest treasury officer.

(3)

Where stamp papers have been furnished in excess of the requirements or where an insufficient number of stamp papers has been furnished and the applicant fails to furnish the requisite number of additional stamp papers within the prescribed period, it shall be noticed on the notice board that the unused stamp papers will be held at his disposal for a month from the date of affixture of such notice and will be sent to him by registered post if within the above period he remits the cost of dispatch which shall be stated in each case. If the amount be not remitted and no arrangements made to take delivery within the period fixed, the unused stamps, shall be treated as cancelled and sent to the local or nearest treasury officer.

198.

Delivery by post:

- The applicant may, in his application for a certified copy, apply that the same may be delivered to him through the post at a specified address; and in such case, the copy shall be forwarded accordingly, and if the applicant so requires, by registered post.

199.

Sealing and certificate:

- All copies furnished by the Court shall be certified to be true copies, and shall be sealed with the seal of the Court. The Superintendent of copyists or other officer appointed by the Judge, shall initial every alteration and inter-lineation in the copy, and shall sign a certificate at the foot thereof that the same is a true copy, and shall also state the number of alterations and inter-lineations made therein.

200.

Endorsements as to dates:

- Every copy shall bear an endorsement showing the dates on which:—

(1)

the application was made;

(2)

the application was returned;

(3)

the application was represented;

(4)

the stamps were called for;

(5)

the stamps were deposited;

(6)

the additional stamps were called for;

(7)

the additional stamps were deposited;

(8)

the copy was ready; and

(9)

the copy was delivered.

The copy application (CA.) number shall also be noted on every certified

201.

Copy applications struck off:

(1)

Any copy application struck off under Rule 191 or under Rule 193 supra may be restored by the Court on a petition supported by an affidavit preferred for that purpose. The petitioner may deposit the required copy stamps along with the petition for restoration of the application for copies.

(2)

Every certified copy furnished after such restoration of the application for the copies, shall bear an endorsement showing, in addition to the details specified in Rule 200 supra.

(a)

The date on which the application was struck off;

(b)

The date on which petition was filed to restore the application; and

(c)

The date on which the application was restored to file.

202.

Drafting of formal orders:

(1)

When an application is received for a copy of a judicial order for purpose of appeal or revision, the Court shall draft a formal decree and furnish a copy of the same after collecting necessary charges.

(2)

To avoid inconvenience to the Appellate Court in reading the typed papers, the Court shall furnish the first written copy of judgment, decree or order to the parties requiring them for the purpose of appeal or revision.

203.

Copying Charges:

(1)

One copy stamp paper shall be furnished for every 350 words or part thereof. [In the case of a copy for which Article 21 of Schedule I-A of the Stamp Act, 1899 as amended and the rules made thereunder require the production of non-judicial stamp paper of a particular value, the stamp paper or papers supplied for the purpose shall be used for copying and shall be written on in the same manner as if they were copy stamp papers. Copy stamp papers shall be furnished to make up the deficiency in the papers required to complete the copying.]

[Substituted for figure "75 paise" by ROC No. 378-A/SO/93.]

(2)

175 words shall be written on each page. Four figures shall be taken as equivalent to one word.

(3)

The copying fee for each page shall be [Re.1/-]

[Subs. for figure "75 paise" by ROC No. 378-A/SO/93.]

or such fee as the Government may prescribe from time to time. Where the value of the stamp paper is less than the prescribed fee, the deficiency shall be made good in the shape of adhesive court fee stamps. When the copy is written on non-judicial stamp paper, adhesive court fee stamp of the prescribed fee shall be affixed to each page on which the copy has been made. The copying fee shall not be collected in cash.

(4)

The cost of copying maps, plans, genealogical trees, tabular statements or other matter requiring special skill shall be fixed by the Judge and shall be deposited in cash in Court. Notice of such amount shall be pasted on the notice board of the Court and the provisions of Rule 193 shall apply to the payment of such amount.

(5)

Except in a case requiring special skill, copying charges for execution petitions, diglott registers sale proclamations, books of account or other matters, including lines and columns shall be levied with reference to the space occupied, provided that not more than 175 words shall ordinarily be copied on or computed as the equivalent of one page.

203.

-A. (1) On an application by the party, the Court may grant copy of a proceeding or document filed in or in the custody of the Court by getting it reproduced mechanically on payment of Rs. [2.00]

[Substituted for figure "1.25" by ROC No. 371-A/S0/93.]

per page by means of affixture of court fee labels to the application for-copy or in cash through lodgment Schedule within such time as the Court may grant.

(2)

The same Rules as are applicable to certified copies to be taken out on copy stamp papers will also apply mutatis mutandis to copies taken by mechanical reproduction.

204.

Costs of typing or copying:

- Costs of typing and/or copying may be taxed and dealt with as costs in the cause.

Chapter XVI

Proceedings In Execution

205.

Rules applicable to all proceedings in execution:

- The following rules shall apply to all proceedings in execution as well of decrees as of orders, and in this Chapter the word 'decree' includes 'order'.

206.

Transmission of decree for execution:

(1)

An application for the transmission of a decree to another Court for execution shall be made by a verified execution petition headed with the cause-title of the suit, and the serial number of the execution petition in the suit and shall state, in addition to the particulars set out in clauses (a) to (i), inclusive of Order XXI, Rule 11(2) of the Code, any facts relied on by the applicant to bring the case within the terms of Section 39 and Order XXI, Rules 4 and 5 of the Code, and shall specify the Court to which transmission of the decree is sought, as in Form No. 52.

(2)

If the application is admitted, the applicant shall, within 7 days thereafter, deposit in Court the process fee and the expenses for issue of an order and for transmitting the decree.

(3)

Notice of the application shall be given in all cases in which, under Order XXI, Rule 22 of the Code, notice of an application for execution is required.

(4)

The certificates and orders of transmission of decree to another Court for execution under Rule 6 of Order XXI shall be signed by the Presiding Officer of the Court and the seal of the Court shall be affixed for authentication.

(5)

The Court granting the application may, if prayed for by the applicant handover to him or to his advocate, in a sealed cover, a copy of the order transferring the decree together with the documents enumerated in Rule 6, Order XXI of the Code to be taken to the Court to which they are to be transmitted. The Court shall send a copy of the order in

confirmation to the Court to which the decree is transmitted.

207.

When sent to District Court of another District:

- If the decree is sent to the District Court of another district for execution by a Court subordinate thereto, the District Court shall at once transmit it to the Subordinate Court, and no application to the District Court shall be necessary. No charges for transmitting the decree to such Subordinate Court shall be levied by the District Court.

208.

Return of decree to the Transmitting Court:

(1)

The Court to which a decree is sent for execution shall certify to the Court which sent the decree, the fact of execution of such decree specifying the nature and extent of satisfaction, or, where the former Court fails to execute the decree the circumstances attending such failure.

(2)

If the decree-holder does not, within six months from the date of the receipt of the decree on such transfer, apply for execution thereof, the Court to which the decree has been sent shall certify the fact that no application for execution has been made to the Court which passed the decree and shall return the decree to that Court.

209.

Application for execution:

(1)

Except when made under Order XXI, Rule 11(1) of the Code, an application for execution of a decree shall be by petition and, in addition to the particulars set forth in Order XXI, Rule 11(2) of the Code, shall be headed with the cause title of the suit and separately numbered in each suit.

(2)

The petition shall, if it relates to any property of the judgment-debtor, pray for the realisation thereof, in the manner appropriate to the nature of the property, as in Form No. 53 and shall also set out the whole of the relief which the Applicant requires at the time of presenting the same. The Court shall not grant any relief not claimed by the execution petition.

210.

Certified copy of decree to be filed:

- The judgment-creditor shall, together with the first petition for execution or transmission of a decree, file in Court a certified copy of the decree sought to be executed, and shall not be required, upon any subsequent application, to file a further copy or the same decree, unless the copy already filed has been sent to another Court, under Order XXI, Rule 6 of the Code, and has not been returned and application is made to the Court which passed the decree for simultaneous, execution.

211.

Non-compliance with Rules:

- A petition not complying with the provisions of the Code or these rules or not claiming any substantial relief, shall be returned for amendment or rejected.

212.

Procedure on and after hearing of petition:

(1)

Upon the hearing of the petition the Court shall ascertain whether the provisions of the Code and these Rules have been complied with, and shall determine whether notice thereof is to be served on any person. If the petition is admitted, the Court shall adjourn the further hearing to a fixed day, and the application shall within two days or such other period as may be fixed by the Judge, bring into Court the fees prescribed for issued of process, and, if the application is for arrest of the debtor the subsistence moneys fixed by the Judge under Order XXI, Rule 39(1) of the Code. At the adjourned hearing the Court may, if the prescribed fees and subsistence money have been paid, order process to issue; or in case of default, may extend the time for payment, or dismiss the petition. Provided that the Court may, if it thinks fit, on admitting the petition, in any case in which the prescribed fees and subsistence moneys have been paid order process to issue forthwith.

(2)

While making an order on an execution petition which involves termination or suspension or proceedings in execution the Court shall state clearly in its order whether the execution petition is terminated on the completion of execution or adjourned or dismissed.

213.

Determination of question arising in execution of Decree:

- If any question arises for the determination of the Court executing a decree. the same shall be heard and determined upon the hearing of the petition, or an application made therein, and, if evidence is taken orally, the Court shall record the evidence of the witness, and mark all exhibits admitted in evidence, in accordance with Order XVIII, Rules 4 and 9 to the Code. The Court shall, in any case record its judgment and draw up its order in the same manner as upon the hearing of a suit.

214.

Order to appoint a day for sale:

- In the case of an application for the attachment and sale of any property, the Court unless otherwise orders, shall after passing necessary orders, adjourn the hearing of the petition to a fixed date.

215.

Joint decree-holders:

- When an application is made by one or more of several joint decree-holders unless a written authority signed by the other decree-holder for the applicant to execute the decree and to receive the moneys or property recovered is filed in Court, the Court shall give notice of the order, if any, passed for the execution of the decree, to all the decree-holders who have not joined in the application; and may also, in its discretion, give notice of any application for payment out of Court, or delivery to the applicant, of any money, or property recovered in execution.

216.

Oral application for relief:

- At the hearing or any adjourned hearing of an execution petition, the judgment-creditor may apply orally for any relief prayed for by the petition; and any other party may, upon giving three days notice in writing to the opposite party, make any application with respect thereto.

217.

Application in pending petition:

- If it is necessary to make an application in connection with a pending execution petition otherwise than at the hearing or any adjourned hearing thereof, the application shall be headed with the cause-title of the suit, and the serial number of the execution petition, and shall also be separately numbered in each execution petition.

218.

Application of Rules:

- Rules 53 to 59 and 213 supra shall apply to all applications by a party to the suit or matter made in or with respect to a pending execution petition.

219.

Procedure in case of execution of documents by Court:

- The procedure prescribed by Order XXI, Rule 34(1) to (4) of the Code, shall apply to all documents whereof the execution by any party has been directed by the Court.

220.

Decree-holder to bring into Court the draft and fees for service of notice:

- The decree-holder shall, together with the draft in Order XXI, Rule 34(1) of the Code mentioned, bring into Court a duplicate thereof and two copies of a notice in Form No. 54 and the prescribed court fees stamps for service thereof. One of the said copies shall be annexed to the draft, and shall be served on the person directed to execute the document in manner prescribed for service of summons on a defendant to a suit.

221.

Form of deed and of endorsement of negotiable instruments:

- In case of a deed, the concluding portion shall be in Form No. 55, and in the case of a negotiable instrument, the endorsement shall be in Form No. 56 and the Judge shall sign the name of the party directed to execute the document and his own name, as in the said forms, and shall affix the seal of his Court thereto.

222.

Amount realised in execution to be paid into Court:

- Except when payment is made to the decree-holder under Rule 230 all moneys recovered by an Officer of the Court, or received by an auctioneer shall be paid into Court in the manner prescribed below for payment of moneys into Court and notice of the payment shall be pasted on a notice board of the Court and a certificate thereof shall be endorsed to the lodgment schedule.

223.

Application to certify payment or adjustment:

- An application under Order XXI, Rule 2 of the Code, shall be by petition, or, if an execution petition is then pending by an application at the hearing thereof or an execution application made in the said petition.

224.

Payment into Court in satisfaction of Decree:

(1)

Except when payment is made to the decree-holder under Rule 230, a person paying money or bringing property into Court in satisfaction of decree shall be given notice of such payment or deposit to the judgment-creditor.

(2)

Where money due under a decree is remitted to Court by the judgment-debtor or any one on his behalf by Money Order or through a Bank or by other recognised mode and the judgment-debtor or his Advocate is not available to pay the process fees for the notice required to be issued under Rule 1(2) of Order XXI of the Code the notice may be issued initially at Court's cost, and the same shall be subsequently recovered from the judgment-debtor.

225.

Lodgment schedule to be brought in:

(1)

A person desirous of paying money into Court, hereinafter called the payer, shall bring into Court a lodgment schedule in Form No. 57, headed with the cause-title of the suit, the appeal, or proceeding and the particular account therein, if any, to which the money is to be credited, and stating the decree or order, if any, in pursuance of which the payment is made, or the reason for the payment, and several sums and the total amount to be paid into Court.

[An order for lodgment in triplicate in Form No. 58 stating the date of issue and bearing a serial number shall then be filled-in, except as to the date of payment and the signature of the Receiving Officer by the Officer of the Court and issued to the payer]

[Substituted by ROC No. 1852/50/82, Dated 9-6-1987, Published. in Andhra.Pradesh. Gazette. Dated 15-6-1987.]

. [The particulars of the currency notes, coins and cheques shall be noted on the reverse side of the form of the challan accompanying each remittance]

[Substituted by ROC No. 1852/50/82, Dated 9-6-1987, Published. in Andhra.Pradesh. Gazette. Dated 15-6-1987.]

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(2)

When deposits are made under Rule 85 of Order XXI of the Code, one single challan shall be used in entering the sale proceeds and the amount required for the general stamps for the preparation of the sale certificates.

226.

Delivery to bank or treasury officer [**]

[P. Dis. No. 825 of 1940.]

:

- [The payer shall note the particulars of currency notes, coins and cheques on the reverse side of the form of the Challan accompanying each remittance and deliver the money and/or the Cheques and the order in Triplicate to the Bank or Treasury Officer mentioned therein, who shall retain the Order, and send one copy to the Court, with the daily scroll of the bank and return the receipt duly signed and dated to the payer who shall return the said Receipt to the Court. The receipt when received into Court from the Bank with the daily scroll must be attached by Gum to the Office Counterfoil of the lodgment book]

[Substituted by ROC No. 1852/50/82, Dated 9-6-1987, Published. in Aadhra.Pradesh. Gazette. Dated 15-6-1987.]

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227.

When Bank or Treasury is closed:

- If the bank or the treasury is closed, the money may, with the leave of the Judge, be paid to the Officer of the Court; in such case the lodgment schedule shall be endorsed with a receipt to be signed by the Judge and the amount shall, on the next day on which the bank or treasury is open, be sent, together with an order and counterfoil receipt, by the Officer of the Court to the bank or treasury officer who shall return the said receipt to the Court.

3. ROC No. 6740/41-B1. In the case of deposits by purchasers in Court auctions, when the deposit is made when the Bank or the treasury is closed, the payment should be made to the Officer conducting the sale. The payments shall be entered forthwith in the cash book and the ledger, and in the case of Courts dealing with the branches of "State Bank of India or the State Bank of Hyderabad", in Civil Register No. 38, also, and the money left for safe custody with the head clerk until the next day on which the bank or treasury is open. The lodgment schedule shall be endorsed with a receipt to be signed by the Judge, and shall also be signed by the head clerk in token of his having received the money. A lodgment order shall also be issued on the same day.

[On the next day on which the bank or treasury is open, the Officer of the Court to whom the money was originally paid shall receive it back from the head clerk, and shall in token of having done so, sign the lodgement schedule, and he shall with all convenient speed send the money together with an order and counterfoil receipt to the bank or treasury officer who shall return the said receipt to the Court. On receipt of the counterfoil receipt from the treasury or bank, an entry shall forthwith be made on the disbursements side of the cash book in the column under the heading 'cash' and another on the receipt side of the book in the column under the heading 'Bank or treasury'. No separate entry shall be made in the ledger in respect of the remittances into the bank or treasury, but the number of the bank or treasury receipt shall be entered in it in the form of an inset entry against the original entry.

The same procedure shall apply, as far as may be, to amounts collected by amins and peons on warrants of attachment or warrants of arrest when the money is brought into Court when the bank or treasury is closed]

[ROC No. 6740/14-B1. (H.C. Dis. 727 of 1906 and P. Dis. 343 of 1937).]

Note: - Money paid into Court under this Rule must be remitted to the treasury or bank with the least possible delay and in no instance should an interval of more than 24 hours be allowed to occur if the treasury or bank be open. But where there is no sub-treasury or bank in the station, daily remittance of petty amounts of less than Rs. 25/- to the treasury or bank which involve expenditure on travelling allowance out of proportion to the amounts remitted should be avoided.

228.

Receipt:

- Upon the return of the said receipt to the Court by the payer, or by the bank or treasury officer under the proceeding Rule a receipt signed by the Judge shall be issued to the payer, and the amount paid shall be entered to the credit of the account in respect of which the payment is made.

Note: - The High Court considers that the receipt contemplated by this Rule may be signed by the Chief Ministerial Officer of the Court authorised in this behalf by the District Judge.

(H.C.P. DIS. - 459 OF 1928)

229.

Transmission of money payable in satisfaction of decree:

- Unless it appears to the Court that the personal attendance of the party is necessary, money payable in satisfaction of a decree order may be transmitted to the Court by postal money order or in Government currency notes. In such cases, the payer shall, before transmitting the money, send to the Court, in a pre-paid registered cover, a lodgment schedule in the form prescribed by Rule 225 and stating the manner in which the money is to be sent.

Note: - Suitor's moneys which have been placed in Civil Court deposit held by Courts in trust in all cases can be invested only in securities specified in Section 20 of the Trust Act. Amounts upto Rs. 3,000 may also be deposited in the Post Office Savings Bank.

(H.C.P. DIS. - 88 OF 1943)

[230. Payment by way of crossed cheques: - In all cases where money is payable to a party and cheque petitions are ordered in favour of such party or parties at any stage of the proceedings in the Court or while interlocutory orders are passed by the original Court, or while implementing orders of appellate or revisional Courts, the money so payable shall be paid by drawing a crossed cheque [Account payee] in the name of the party or parties to whom the money is payable or the lawful guardian, in case the payee is a minor, upon proper identification of the said party in such manner as the Court may think fit and in such cases the lodgment schedule shall be endorsed with an order for payment to the person

or persons so entitled, in the manner prescribed above, signed by the Judge and with an acknowledgement of receipt, signed by the payee or payees and satisfaction pro-tanto of the decree or order, if any, in pursuance of which money is paid shall be entered-up]

[Substituted by ROC No. 241/SO/84, Published. in Andhra.Pradesh. Gazette. R.S. to Pt. II (Ext.) Dated 8-1-1987.]

231.

Application for payment out in other cases:

- Except as provided by Rules 230 and 240, payment of money out of Court shall be made only upon the order of the Judge made at the hearing of a suit, appeals, or matter, or upon an interlocutory or execution application, supported by affidavit showing how the applicant is entitled to receive payment.

232.

[* * *]

[Omitted by ROC No. 241/SO/84 Published. in Andhra.Pradesh. Gazette. R.S. to Pt. II (Ext.) Dated 8-1-1987.]

233.

Payment schedule to be brought in:

- A person desirous of obtaining payment of money out of Court, hereinafter called the payee, shall bring into Court a payment schedule, in Form No. 59, headed with the cause title of the suit, appeal or matter and the particular account if any, to which the payment is to be debited, and stating the decree or order authorising the payment, and the several sums and the total amount to be paid out of Court and also a receipt for the said amount signed by the payee. If the payee is the agent of the person entitled to receive the money he shall also file a power of attorney, duly stamped authorising him to receive payment. The Court shall, before making an order for payment out, verify from the weekly statements received from the Treasury that the amount, of which payment out is sought, is supported by the necessary credit in the account and is available for payment out. An order for payment and counterfoil receipt in Form No. 60 stating the date of issue, the amount to be paid, and account to which the payment is to be debited, shall then be issued to the payee. The receipts taken from parties for sum paid out of the Court shall be attached to the office counterfoil of the payment order book.

234.

Presentation of Order:

- The order shall be presented for payment within the account month in which it is issued, and, if not presented within the period shall be returned to the Court and may then, after being re-dated and initialled by the Judge, be re-issued to the payee :

[Provided that the revalidation of a payment order may be made only once and that too within one month after the month of issue. When a payment order is presented for revalidation beyond one month after the month of issue, it shall be destroyed and a fresh payment order be issued in lieu thereof.]

[Memo No. 17007/Accts. 58-3, dated 5-8-1981.]

235.

Receipt by payee:

- On payment of the amount of the order, the payee shall sign a receipt therefor endorsed on the order.

236.

Order not to issue after 25th of the month except in cases of urgency:

- Except in cases of urgency, no order for payment of money out of Court shall be issued after the 25th day of each calendar month.

237.

Rules as to delivery of securities, jewellery or other valuables, into and out of Court:

- The foregoing rules shall apply to the delivery of securities, jewellery or other valuables, into and out of Court, with the following modifications:—

(1)

Government promissory notes and other negotiable securities, shall be endorsed "The Judge of the court of

(2)

□

[P. Dis. No. 577 of 1941.]

When jewellery or other valuables are to be brought into Court, two copies of a descriptive list thereof shall be presented with the lodgment schedule, and shall be checked and signed by the Judge in the presence of the depositor. The jewellery or other valuables shall be placed in a box, furnished with a lock and key, to be provided by the depositor. The box shall then be locked and sealed in the presence of the Judge with the special seal supplied for this purpose, and forwarded by the Court to the Bank or Treasury Officer together with one of the copies of the said list and the key shall be retained by the Judge. The remaining copy of the said list shall be returned to the depositor, and on the return of the counterfoil receipt by the Bank or Treasury Officer, a receipt signed by the Judge shall be given to the depositor, in the exchange for the said descriptive list.

[The Court may call upon the party at whose instance the deposit is made to pay into Court such sum of money as may be necessary to meet the safe custody charges payable to the Bank in the first instance or from time to time. In default of payment the Court may refuse to make the deposit in Bank or withdraw the property from the Bank or may pass such order as may be necessary for recovering any dues payable to the Bank from the party liable to pay the same.]

[P. Dis. No. 11 of 1948.]

Note: - Deposit receipt of moneys belonging to minors or concerned in land acquisition cases and [Post Office Cash Certificate, should be treated as valuables and kept in the treasury for safe custody]

[P. Dis. No. 540 of 1942.]

238.

Cases where payment may be made in cash to Officer of Court:

- Notwithstanding anything contained in this Chapter moneys for any of the purposes hereunder mentioned may be paid in cash to an Officer of the Court, to be appointed by the Judge :

1. Service of summons in respect of which the fees cannot be paid in stamps.
2. Allowances to witnesses.
3. Commission Fees.
4. Money-Order commission for transmission of Commissioner's fees.
5. Judgment-debtor's subsistence moneys.
6. Tom-Tom charges.
7. Charges for the conveyance of attached property and for feeding attached cattle.
8. Postage and other charges for calling for records for reference, or for transmission of decrees to other Courts for execution.
9. Moneys representing the values of non-judicial stamps for sale certificates when the amount does not exceed Rs. 5/-; and
10. Safe custody charges payable under Rule 237:

Provided that, if, in the opinion of the said Officer, disbursement of the said money is not likely to be made within a month, the procedure prescribed by Rules 225 to 236 inclusive shall be followed:

Provided also that if any cash deposit or any part thereof is not expended, and if it is not probable that the same will be refunded to the depositor within a month [from the date on which it became available for refund, it shall be forthwith remitted to the Bank or treasury officer]

[Substituted for the words "fourteen days" by HCP Dis. No. 199 of 1927.]

:

Provided also that where the amount paid under (9) above is less than Re.1/- the Court may retain it for a period not exceeding three months after which if it is not disbursed. It shall be credited direct to the Government as revenue subject to its being refunded to the party entitled to it if and when claimed:

Provided further that in cases where the amount paid under (9) above does not exceed Rs. 5/- and said amount is likely to be disbursed within a period of three months, it shall, subject to the provisions of the previous proviso, be remitted to the Bank or Treasury Officer.

239.

Presentation of receipt:

- The person making any such deposit as aforesaid shall present therewith a memo, in Form No. 61, headed with the cause-title of the suit, appeal or matter, and specifying the purpose for which the deposit is made, and a receipt shall be granted to the depositor.

240.

Repayment:

(1)

The repayment of any cash, which has not been extended for the purpose for which the same deposited shall be made upon the production of the receipt and under the immediate superintendence of the Judge, who shall satisfy himself as to the identity of the person to whom such repayment is made and of his authority to receive it.

(2)

Provided that if the amount so deposited or the unexpended portion thereof has been sent by the Court to a Bank or Treasury Officer, Rules 231 to 236 inclusive, shall apply to an application for repayment.

(3)

If the applicant is unable to produce receipt, he shall file an affidavit accounting for its non-production.

241.

[Arrest of public servant]

[H.C. Cir. 1111/1907 and Dis. No. 85 of 1916.]

:

- Before a warrant is issued by a Civil Court for the arrest of a public servant (as defined in Section 21 of the Indian Penal Code) or a railway, postal or telegraph official, seven days' notice may be given to the immediate superior of the person to be arrested.

Explanation: - In the case of a railway official, the expression 'immediate official superior' shall include a railway official of the rank of Station Master, Foreman or Inspector but not one of lower rank. In the case of a postal official, the said expression shall mean the Superintendent of Post Office concerned. In the case of a telegraph official, the expression shall mean the Superintendent of Telegraphs of the concerned division.

242.

[Attachment of property in custody of Public Officer]

[Here to shall be used for issue of notice of attachment.]

:

- If the property sought to be attached is in the custody of Public Officer, the execution petition shall ask that the property may be brought into Court and realised; and the notice of attachment shall request that the money or property may be brought into Court, or that such Officer may state whether he has any and what objection to so doing. If any objection is raised by such Officer, notice may be issued, in manner provided by Order XXVII of the Code for issue of summons, for the determination of such objection.

[243]

[Form No. 62 of Appendix III-A, Pt. II of Vol. 11.]

. Attachment of decree:

- An application for the attachment of a decree shall also pray that the applicant may be at liberty to apply for execution thereof. If an order of attachment is made, it may be as in Form No. 63 or 64 and the application shall be adjourned to a fixed day for the applicant to apply to the Court, or if the decree of another is attached, to that Court, for execution of the attached decree, and notice may, if the Court thinks fit, be, given to the holder of the decree. The application shall be made by execution petition, entitled in the suit or matter in which the attached decree was made; and shall be accompanied by certified copies of the order of attachment, and of the decree sought to be executed, provided that, if the attached decree is the decree of another Court other than a decree for money, the applicant shall also pray for the transmission of the decree sought to be executed to that Court, and the Court may transmit the same accordingly, together with a notice in Form No. 65. The applicant may then apply to the former Court by execution petition entitled in the suit or matter in which the attached.

244.

Decree not to be sold in execution of another decree:

- No decree shall be ordered to be sold in execution of another decree.

245.

Attachment of decree by several decree holders:

- If a decree is attached by more than one decree-holder, liberty to execute the same shall be given to the decree-holder whose attachment is first in date and the Court shall direct any money or property recovered by the said decree-holder

decree was made, for execution of its decree, to be brought into Court for rateable distribution:

Provided that, if the decree-holder to whom liberty is given as aforesaid does not show due diligence in executing the attached decree, or for any other sufficient reason the Court may give to any other decree-holder liberty to execute the attached decree in place of former decree-holder.

246.

Claim to attached property:

- An application by a claimant or objector, under Rule 58 [of Order XXI of the Code shall be made by a verified execution application entitled in execution petition under which the property in question has been attached and shall set forth the particulars of the claim in the manner prescribed for the plaint in a suit as Form No. 66]

[P. Dis. No. 12 of 1948.]

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247.

Procedure when application admitted:

- If the application is admitted, the claimant or objector shall, within seven days thereafter or such other period as may be allowed by the Judge, bring into Court the prescribed fees for service of notice on the attaching creditor, and the same shall be served in manner prescribed for service of summons on a defendant to suit.

248.

Hearing of application:

- At the hearing of the application the Court shall record the evidence, and mark all exhibits admitted in evidence and shall draw up its order thereon.

249.

[Extension of application of provisions]

[P. Dis. No. 12 of 1948]

:

- The provisions in Rules 246 to 248 shall apply, so far as they may be, to application under Order XXI, Rules 97 and 100 of the Code.

250.

Realisation of attached debts by the appointment of Receiver:

(1)

Unless it is made to appear to the Court that, from the smallness of the amount of the debt attached, or otherwise, the appointment of a Receiver to collect the same would be useless or vexatious, no debt or right to any periodical payment shall be realised by sale.

(2)

If a Receiver is appointed, he shall be empowered to sue in the name of the judgment-debtor and to grant receipts for any moneys or property recovered by him; and the order appointing him may be in the form prescribed by paragraph 7 of Form No. 5 of Appendix III-D [so far as it may be applicable]

[Vide Pt. II, Vol. II.]

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251.

Realisation of property attached by seizure:

- When an attachment of property is made by actual seizure, the Court shall, if, within one month from the date of the attachment, the property has not been sold or the attachment has not been removed, of its own motion, direct the property to be sold by the Officer of the Court; and the proceeds of the sale after payment of the expenses of the sale, and the prescribed fees shall be brought into Court to the credit of the suit or matter in which the attachment was made.

252.

Attachment of movables property:

- When movable property is attached in execution of any civil process, the attaching officer shall give copy of the list of attached property with description sufficient for identification, to the person from whose possession the property is attached, or if he is not present then, to any adult male member of the family of such person, who is present, or if none is present, shall affix it on the outer door of the house of such person and shall note on the list despatched or brought to the Court which issued the process, the mode in which the copy of the list has been delivered or affixed.

253.

Cash, Jewels etc.:

(1)

If the property attached consists of Government or other securities, jewels or other valuable articles of small bulk, the Nazir shall keep the same together with a descriptive list in a box (other than the ordinary cash chest of the Court) under lock and seal and send the box for safe custody to the nearest Government Treasury under the orders of Judge.

(2)

In other cases, attached property brought to the Court shall be retained by the Nazir in the Court house if it can conveniently be stored or kept there.

254.

Custody of fire-arms, etc.:

- When the property attached is a fire-arm or explosive substance, it may be sent at once the officer-in-charge of the nearest Police Station who shall hold in subject to the further order of the Court.

255.

Payment of charges:

(1)

The District Judge shall fix, and may, from time to time, after the rates to be charged for the maintenance of very description of livestock attached by the several Courts in its district with reference to reasons and local conditions.

(2)

Every person applying to the Court to attach movable property shall, in addition to the process fee, deposit such reasonable sum as the Court may direct for the cost of its removal to the Court house and of its custody and if such property is livestock, for its maintenance in accordance with the prescribed rates. If such deposit when ordered, be not made, the attachment shall not issue.

(3)

The Court at any time during the pendency of an attachment direct the decree-holder to pay into Court within a specified time, such additional sum as may be necessary to cover the costs for attachment, transport maintenance and custody of property and if such payment is not made within the time prescribed may withdraw the attachment.

256.

Curator:

(1)

In order to provide for the custody of property which cannot be conveniently stored or kept in the Court-house, the District Judge may appoint for any Court or group of Courts a Curator who shall furnish security in any form applicable to a Government servant, for an amount to be fixed in each case by the District Judge.

(2)

Every Curator and Nazir shall maintain the register of attached movables in Civil Register Nos. 30 and 31 respectively.

(3)

The curator or the Nazir as the case may be shall be responsible for the due custody and preservation of all property entrusted to him until he delivers it up under the orders of the Court.

257.

Remuneration:

- The Curator shall receive such sums for his remuneration and expenses incurred for the custody and preservation of attached movables as the District Judge by general rule or the Court by special order, may prescribe.

258.

Application for sale of attached property:

- The decree-holder may apply, at an adjourned hearing of the execution petition orally, and at any other time, by written application in Form No. 67, for the sale of any attached property.

259.

Affidavits and in the case of immovable property certificates to be filed by the applicant:

- The applicant shall, not less than five days before the adjourned hearing or together with his written application, file in Court an affidavit or affidavits stating the interest of the judgment-debtor in the attached property, and whether any person other than the judgment-debtor has any, and what interest, therein; and, in the case of immovable property, then

an amount for the realisation of which the sale is held exceeds Rs. 100/- or when the Court so orders, that a search has been made in the office of the Registrar of Assurances of the district, or sub-district, in which the property is situate, for not less than 12 years prior to the date of attachment. In the case of immovable property situated within the limits of a municipality, a certificate from the municipality showing the particulars of municipal tax due on the property shall also be filed.

260.

Order for sale:

- If the provisions of the Code and these rules have been complied with and the proclamation of sale is approved by the Judge, the application shall then be adjourned to a fixed day and the applicant shall, within two days or such other period as may be fixed by the Judge, bring into Court the prescribed fees for proclamation. An order for sale shall then be made. The batta for the sale warrant shall be paid a week before the date fixed for sale and the warrant of sale shall then issue. In case of default, the Court may adjourn the application to a fixed day or may dismiss the execution petition.

261.

Date and place for sale:

- The District Judge shall fix a particular place and a particular day in the week or the sale of such movable properties as may be brought to Court. When there are more Courts than one in the same station, the sales for all such Courts shall be held on the same day, and in the same place, in such sequence as the District Judge may by general or special order, determine. All sales at Court shall begin at noon, and the sale of any lots, not put up before 5.00 p.m. shall be adjourned to, noon on the next Court day.

262.

Sale of livestock etc.:

- Unless the Court otherwise orders, all sales of livestock agricultural produce, articles of local manufacture and other articles commonly sold at village markets which have not been brought to the Court, shall be held at such market in the neighbourhood of the place where the articles were attached as may appear to be for the greatest advantage of the judgment-debtor, regard being had to the prospect of good prices and the saving of expenses of transport.

263.

When movable property is in custody of Nazir or Curator:

- If movable property is in the custody of Nazir or Curator, and it appears to the Court that an immediate sale is necessary, the Court may authorise him to sell the same by public auction and may give such directions as to the date and place of sale and the manner of publishing the same as the circumstances of the particular case admit.

264.

Sale by public auction:

- If the Officer attaching movable property is, under Order XXI, Rule 43 of the Code, authorised to sell it at once, the sale shall be made by public auction, and after such publication and notice as the circumstances to the particular case admit and the Officer shall, not more than two days after the sale, bring into Court, his report of the sale, in manner prescribed by Rule 278.

265.

Applicability of general rules about sale of property infra:

- Subject to the foregoing rules the provisions of Rules 271 to 285 relating to sale of property under order of Court shall apply to all sales in execution of a decree..

266.

[Sale of Arms, etc.]

[H.C. Dis. No. 287 of 1800.]

:

- Whenever guns or other arms in respect of which licences have to be obtained by purchasers under the Arms Act (Act No. LIV of 1959) are sold by public auction in execution of decrees the Court directing the sale shall give due notice to the District Magistrate concerned of the names of and addresses of the purchasers and of the time and place of the intended delivery to the purchasers of such arms. The Court before delivery of such arms shall satisfy that the purchasers are entitled to possess arms.

267.

Articles of petty value:

- If the total of the property attached, is in the opinion of the Court, less than Rs. 25/-, the Court may order the sale of such property after notifying, on the notice-board of the Court, the date and time of sale, and sale proceeds, after defraying the expenses shall be treated as attached property.

268.

Charges of custody:

(1)

In cases in which expenses are incurred for the care and custody of attached movable property such expenditure shall not be allowed for a period longer than 30 days, provided, however, that it shall in no case exceed the value of the property. The person-in-charge may, however, in the case of postponement of sale, apply to the Court at the end of every period of 30 days for an order for payment of such expenditure.

(2)

Where postponement of sale is occasioned by the intervention of a claim to attached property, the expenses incurred during the period of postponement shall be borne by the claimant, if he fails to establish his claim, and by the attaching creditor, if such claim is allowed.

269.

Application by the surety for discharge of sale:

- When attached movable property is left in the custody of a surety, the surety may apply for its sale, or for his being discharged from liability. The Court shall direct notice of such application to issue to the parties at the surety's cost and if the parties interested do not take steps to get the properties sold or released within the time fixed, it may be sold and the proceeds shall be deposited in the Court, after paying the surety the charges for custody and for issuing the notice.

270.

Disallowing custody charges:

- When cattle or other livestock are in the custody of a surety or the attaching credits, the Court may in its discretion disallow wholly or in part the remuneration due to him for keeping and feeding them if he uses them in any profitable manner or otherwise derives any benefit therefrom.

271.

Conduct of sale under order of Court:

- Subject to the provisions of Rules 258 to 264 inclusive, with respect to the sale of attached property, a sale by public auction of any property, when directed in any suit or matter shall be conducted in manner prescribed hereunder.

272.

Manner of conducting sale by public auction:

- The order for sale shall direct the party applying for the sale hereinafter called 'the applicant' to bring into Court:—

(1)

Affidavits: - An affidavit or affidavits by himself or some other person acquainted with the property, giving the particulars prescribed by Order XXI Rule 66 of the Code, and also stating what, in his opinion, is the best time and place of sale and method of advertising the same and the lots if any into which the property should be divided;

(2)

Affidavits of fitness: - If an Officer of the Court is not to be appointed, an affidavit as to the fitness of the proposed auctioneer;

(3)

Where the property is immovable property situated within the limits of a Municipality, affidavit stating the Municipal tax if any, due on the property sought to be sold, and the affidavit shall be accompanied by a certificate from the municipality showing the particulars of tax due; and

(4)

Certificate of search: - In the case of immovable property when a search has been made under Rule 273, a certificate of the result of the search.

273.

Search of encumbrances:

- In the case of a sale of immovable property, the applicant shall when the amount for the realization of which the sale is held' [exceeds]

[Substituted by H.S. Dis. 1916 of 1913.]

Rs.100 [and in any other case in which the Court so orders]

[The figure 100 was substituted for 500 H.C. Dis. 2133 of 1918.]

, causes a search to be made in the office of the Registrar of Assurances of the district or sub-district in which the property is situate. If a previous search has been made in the suit or matter; the search shall be made from the date on which the previous search was made, but so that the whole period shall be not less than 12 years, or, if no search has been made, then for a period of not less than 12 years prior to the date of the execution application on which the sale is ordered [**]

[Substituted by H.C. Dis. 1247 of 1922.]

274.

Matter to be determined by Court:

- The Court shall determine the lots, if any, in which the property shall be sold; the manner of advertising the sale; and the probable expenses thereof; and shall fix the date and place of sale; and, after giving notice to the judgment-debtor or other party to the suit or proceeding whose property is to be sold and hearing his objections, if any, settle the proclamation of sale, as in Form Nos. 69 and 70.

275.

Appointment of person to sell:

- The Court may, if it is made to appear that a more advantageous sale can be had thereby or for other sufficient reason appoint a fit person, other than an Officer of the Court or an Advocate, to sell the property, and may fix as his remuneration a sum certain, or a percentage on the net sale proceeds. Such remuneration shall include all personal and travelling expenses, but not the expenses of the sale.

276.

Proclamation of sale:

- The Proclamation of sale, when settled by the Judge shall be signed by him, and an order for sale shall then be made; and the further hearing of the suit or proceeding shall be adjourned to a day not more than thirty one days from the day fixed by the Court for the sale.

[Note:]

[P. Dis. No. 4 of 1941]

- Under Rule 67(2) of Order XXI of the First Schedule to the Code of Civil Procedure, Civil Courts may direct the publication of the proclamation of sale of immovable property attached in execution proceedings in the Official Gazette or a local newspaper or in both. Where the property attached is immovable property mortgaged to a land Mortgage Bank the proper course for the Court will be to direct the publication of the sale proclamation in the local District Gazette so as to enable the Collector to apprise the land Mortgage Bank concerned of the impending sale.

277.

Leave to bid:

(1)

An application for leave to bid at the sale shall be supported by an affidavit setting forth any facts showing that an advantageous sale cannot otherwise be had; and an undertaking shall be given by or on behalf of the applicant, that, in the event of his being declared the purchaser of the property, or of any lot or lots, he will give credit, or will enter up satisfaction of the decree or order under which the sale is made, for the purchase money:

Provided that if there are several decree-holders entitled to rateable distribution, the purchase money shall be paid into Court.

(2)

Upset price: - In cases in which the Court may consider that the applicant should not be allowed to bid for less than a sum to be fixed, it shall be competent to the Court to give leave to bid at the sale, only on condition that the applicant's bid shall not be less than the amount so fixed by the Court, which amount shall, as far as practicable, be determined with reference to the probable market value of the property, or of the lot or lots into which the property or of the property is divided for sale.

278.

Conduct of sale:

(1)

The person appointed to sell the property shall conduct the sale in the manner prescribed by the Code for the sale of

attached property, and shall, out of the deposit or sale moneys, so soon as the same are received by him, purchase court-fee stamps to the amount of the poundage [if any, payable on the sale and shall bring the same into Court forthwith, together with the balance of the deposit or sale moneys. If the applicant purchased the property with the leave of the Court, and is allowed to set off the purchase money against any sum due to him he shall pay the amount chargeable for poundage to the person appointed to sell the property so soon as he is declared to be the purchaser. The amount deducted or paid on account of poundage shall form part of the costs and expenses of the sale]

[For rules as calculation of poundage vide Chapter I-B of Pt. II, Vol. I.]

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(2)

Upon the completion of the sale, the person appointed to sell the property shall file in Court his report of the sale as in Form No. 71.

279.

Application to set aside sale:

- In the case of any application under Order XXI, Rules 89, 90 or 91 of the Code to set aside a sale, the applicant shall, if the application is under Order XXI, Rules 89 or 90, give to the purchaser and the parties to the suit or matter, or, if the application is under Order XXI, Rule 91, give to the parties to the suit or proceeding not less than five days' notice in writing of the application, setting forth his objections to the sale or the confirmation thereof. If no such notice or insufficient notice is given, the Court may adjourn the hearing and order the person in default to pay to the other parties their costs of the adjournment, or may dispose of the application forthwith. If no application to set aside the sale is made, or if such application is made and disallowed, the Court shall make an order confirming the sale. An application under Order XXI, Rule 89 of the Code, may be as in Form No. 72.

280.

Costs:

- At the adjourned hearing, the Court may make an order directing the payment to the applicant of the costs and expenses of the sale and to the person appointed to sell the property of his commission, if any, and providing for the application of the balance of the sale proceeds. If, under Order XXI, Rule 81 of the Code a vesting order is required, the order shall also direct that the property sold shall vest in the purchaser.

281.

Refund of Poundage:

(1)

If the sale is set aside under Order XXI, Rule 89 of the Code, the Court may make an order for payment by the judgment-debtor or applicant at whose instance the sale is set aside, of the poundage, costs and interest, if any, not covered by the proclamation of sale. [The amount deducted as poundage from the deposit made by the purchaser shall be refunded to him]

[H.C. Pro. 433/1895.]

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(2)

If the sale is set aside under Order XXI, Rule 90 of the Code, the Court shall determine whether any and what party is responsible therefor and may order such party to pay the costs and expenses of the sale, and may make an order that any other party entitled to have the property sold may have the conduct of the sale and may make an order for the re-sale of the property.

(3)

If the sale is set aside under Order XXI, Rule 91 of the Code, the Court may make an order for payment by the execution-creditor of the poundage and other costs of the sale.

282.

Sale Certificate:

(1)

A certificate of sale of immovable property shall specify as part of the description of the property, the survey number, if any, and the registration district or sub-district in which the same is situate.

(2)

All sale certificates of immovable property shall be engrossed on stamp papers of proper value and copies thereof be

forwarded to the registering officer or officers under Section 89 of the Registration Act (Act XVI of 1908) within three days for the issue of the certificate.

(3)

The copy sent to the registering officer shall disclose the stamp value of the documents and the registering officers to whom copies of the sale certificates are being sent within whose jurisdiction any part of the property is situate.

(4)

The sale certificates shall be drawn up without delay and the certificate ready for delivery shall be notified, on the notice board of the Court within 24 hours of its signature by the Judge.

(5)

Where a Court sale is finally set aside the Court setting it aside shall send a copy of the order to the, registering officer or officers in whose office a copy of the sale certificate has been filed.

283.

Default by applicant:

- If at any time it is made to appear to the Court that the applicant has failed to comply with any order of the Court, or any of the provisions of the Code or these rules, or is not proceeding with due diligence, the Court may make such order as to the application for sale, or the suit or matter, and the costs thereof, as it thinks fit.

284.

Acceptance of Guarantee Societies as Sureties

[**]

[H.C. Dis. No. 68 of 1927]

: - (1) Notwithstanding anything in the foregoing rules, in all cases in which a Court requires a party to a proceeding to execute a bond with one or more sureties as guarantee society duly approved by the High Court may be accepted as surety upon its joining in a bond with the person ordered to give security.

Note: - In cases where specific form of surety bonds are not prescribed, Courts are at liberty to adopt Form No. 8 and 5 in Appendix III-E and F respectively of Part II, Vol. II, with such variation as will suit the circumstances of the case. (H.C. Dis. 68 of 1927).

(2)

The High Court, may from time to time, after such inquiry as it deems sufficient and subject to such conditions as it may deem fit to impose by a notification in the gazette, declare the names of the guarantee societies together with the names of their duly authorised agents, if any, qualified to join in a bond within the meaning of the above sub-rule. The High Court may also for sufficient cause remove from the approved list the name of any such guarantee society or of any agent of any such guarantee society.

285.

[Notice to surety]

[H.C. P. Dis. No. 208 of 1940]

: - In an inquiry for the determination the liability which has been guaranteed by a surety, the Court shall give notice of the enquiry to the surety by registered post. But the cost of his appearance shall be borne by the surety himself unless the Court otherwise directs.

Chapter XVII

Receivers

286.

Panel of suitable persons to be maintained for appointment as Receivers:

- Subject to the approval of the District Judge concerned the Presiding Officer of each Court shall maintain a panel of legal practitioners and other persons with suitable qualifications from among whom receiver shall ordinarily be appointed.

287.

Security to be furnished by the persons included in the panel of Receivers:

- Every person included in the panel shall within one month furnish security for the sum of Rs. 2,000 in favour of the Presiding Officer to secure his liability in respect of all receiver-ships to which he may be appointed. He shall furnish one or other of the following kinds of securities: (a) immoveable property; (b) cash; (c) a Government security; (d) fixed deposit or cash deposit in the Post Office Savings Bank; (e) Post Office Cash Certificate; (f) National Savings

Certificates; (g) Bonds or Debentures issued by the Local Authorities in India as defined in Section 3(31) of the General Clauses Act, 1897 (Central Act X of 1897) (Local Authorities includes Port Trust). The security bond shall be in one of the Form Nos. 75, 76 and 77 of Appendix III-A of Part II of Volume II. Only on such security being furnished he may be considered for appointment as a Receiver. Such security shall be irrespective of the security, if any, that may be required of the Receiver by the Court under Order XL, Rule 3(a).

288.

Filing of Accounts by Receiver:

- Unless otherwise ordered a receiver shall file his accounts once in every three months. The first of such accounts commencing from the date of his appointment and ending with the expiry of three months from such date, shall be filed within ten days after the expiry of the said period for three months and subsequent accounts brought down to the end of the three months period for which they are filed, shall be filed within ten days after the expiry of the said periods of three months.

289.

Manner of filing Accounts:

- The accounts of the Receiver shall be in the form prescribed and shall be verified by affidavit in the form prescribed. Items shall be numbered consecutively.

290.

Receiver to file an affidavit:

- Where a Receiver has not since the date of his appointment or since the date of his last account, as the case may be, received or paid any money, he shall file an affidavit to that effect on or before the date on which he has to file accounts.

291.

Books to be maintained by Receiver:

- The receiver shall maintain true regular accounts of the receivership and shall in particular maintain a cash book in which shall be entered from day to day all receipts and payments and also a ledger. He shall also maintain a counterfoil receipt books with the leaves numbered serially in print from which shall be given as far as possible all receipts for payments made to the receiver.

292.

Receiver to open account in a Scheduled Bank:

- Unless the Court otherwise orders the receiver shall, as soon as may be after his appointment, open an account in the name of the receivership in a scheduled bank as defined in clause (e) of Section 2 of the Reserve Bank of India Act, 1934, as the Court may direct and shall deposit into it all monies received in the course of the receivership immediately on receipt thereof save any sums that may be required for current expenses. All payments by the receiver shall, as far as possible, be made by cheques drawn on the account.

293.

Procedure to adopt in case of failure of duties by the Receiver:

- If a receiver fails to maintain true and regular accounts or fails to file his accounts into Court on the due date without proper cause, or unduly delays the passing of his account by failing to appear before the passing officer or improperly retains any cash in his hands, the Court may disallow the whole or any portion of the remuneration due to him for the period of the account with reference to which default is committed and may also charge interest at a rate upto 12 percent per annum on the monies improperly retained by him for the period of such retention without prejudice to any other proceedings which might be taken against the receivers.

Chapter XVIII

Caveat

294.

Presentation of and particulars to be stated in Caveat:

(1)

Every caveat shall be lodged with the Presiding Officer of the Court along with an affidavit by the Caveator either personally or by his advocate. The caveat shall state the name, place or abode, description, occupation and the address for the service on the caveator and where he is represented by an advocate the name and full address of the advocate. Such address for service must be within the local limits of the jurisdiction of the Court and shall hold good in all subsequent stages of the proceedings.

(2)

In addition to the particulars mentioned in sub-rule (1), the caveat shall state the following particulars:—

(i)

name, description, place of residence and full address of the person by whom an application has been or is expected to be made;

(ii)

full particulars of the claim or the subject matter in respect of which an application is expected to be made in a suit or proceeding, and the nature of relief likely to be sought. If an application has been made, particulars of the application and the suit or proceedings;

(iii)

where the subject matter is immovable property, description of the property sufficient to identify it.

295.

Examination and Registration of Caveat and its requirements:

(1)

Every Caveat shall be entered in the register of caveats maintained for the purpose and examined by the Chief Ministerial Officer of the Court. If he finds that the caveat complies with all the requirements he shall make an endorsement on the Caveat 'Examined and may be registered'. If he thinks that the Caveat does not comply with the requirements, he shall place the matter before the Presiding Officer for orders.

(2)

Caveat returned for non-compliance with these rules or provisions of Section 148-A of the Code shall be represented after rectification of the time specified.

(3)

The affidavit shall state the right and the interest of the Caveator and the grounds of the objections to the application.

(4)

The caveat shall also be accompanied by a notice in duplicate duly filled in by the party or his counsel [* * *]

[The words "together with the required process fee for service of notice on the caveator as soon as an application is Ned" omitted by ROC No. 1757/S0/89 Dated 17-11-1989 (vide R.S. to Pt. II (Ext.) A.P. Gaz. Dated 25-10-1990).]

(5)

A Court fee of [Rs. 10]

[Substituted by ROC No. 451/S0/92 for "Rs. 5/-" (R.S. to Pt. II (Ext.) A.P. Gaz. Dated 9-2-1996.)]

shall be charged on every caveat.

296.

Notice to issue by Caveator:

- Where a caveat has been lodged the caveator shall serve without delay, notice of the caveat by registered post, acknowledgement due on the person by whom the application has been or is expected to be made and file in Court proof therefor.

297.

Copy of plaint, application or proceeding to be served on Caveator before filing:

- Any person or advocate instituting a suit or proceeding in respect of which a caveat has been entered in the Register of Caveats shall before filing the application, suit or proceeding serve a copy thereof upon the party by whom the caveat has been entered or upon his advocate and annexed to the plaint or proceeding a statement of such service.

298.

Withdrawal of Caveat:

- A caveat may be withdrawn by the party who has entered the caveat or by his advocate on an interlocutory application supported by an affidavit.

Chapter XIX

Legal Aid To Indigent Persons

299.

Panel of Advocates willing to appear to be maintained:

- (I) There shall be maintained in each Court a panel of advocates willing to appear for the undefendant indigent person or persons in a suit or proceeding at the expenses of the State or free of charge. Such panel shall be prepared by the

District Judge after consultation with the Presiding Officer of the Court, the President of the Bar Association and such other persons as the District Judge may consider necessary.

(2)

The panel may be revised by the District Judge at the end of each calendar year.

300.

Contents of Panel:

(1)

The panel to be prepared and maintained under sub-rule (1) of the Rule 299 shall be in two parts: The first part of the panel shall contain the names of suitable advocates who offer themselves to appear for the undefended indigent persons without charging any fee and part two thereof shall have the names of such advocates as are willing to appear for such persons at State expense and are selected for the purpose.

(2)

An advocate with a standing not less than three years at the Bar shall be eligible for being brought on the panel. The District Judge shall, so far as may be, persuade competent senior lawyers to enlist themselves for representing indigent persons without charging any fee.

(3)

The District Judge shall in the month of January in each year, communicate the names of the advocates on the panel maintained for each Court in his district to the High Court in the following form:—

(a)

Name of the advocate.

(b)

Date of birth.

(c)

General reputation and standing at the Bar.

(4)

The Registrar, High Court of Andhra Pradesh, shall cause the panels for each district to be entered separately in a Register.

(5)

The District Judge or the High Court may strike off the name of any advocate from the panel without assigning any reasons.

301.

Assignment of Advocate by Court:

(1)

Where a person, who is permitted by a Court to use as an indigent person under sub-rule (3) of Rule 7 of Order XXXIII of the Code, is not represented by an Advocate, the Presiding Officer of the Court shall, if the circumstances of the case so require, assign an Advocate to him from the list.

(2)

In any case where it is decided to assign a pleader under sub-rule (1), the Court shall endeavour in the first instance to select a suitable advocate from that part of the list which comprises the names of the advocates, if any, willing to appear for undefended indigent persons without charging any fee.

302.

Time to be allowed to the Advocate assigned for preparation:

(1)

Where an advocate is assigned to represent an indigent person at State expenses or otherwise, the Court shall allow a period of atleast seven days to the advocate to prepare the brief and shall adjourn the hearing of the case for that purpose.

(2)

The Court shall allow, free of cost, inspection of the record of the case by the advocate so assigned.

303.

Fee payable to Advocate assigned:

(1)

The fee payable to an advocate assigned to represent an indigent person at State expense, shall not be less than Rs. 50 and not more than Rs. 300 for the entire case, at the discretion of the Presiding Officer of the Court.

(2)

In suitable cases, the District Judge may, with the approval of the High Court, sanction fee not exceeding Rs. 500.

(3)

If an advocate assigned to represent an indigent person is required to retire at any time after the engagement of an advocate by the indigent person at his own expense, he shall be entitled to get as compensation an amount not less than Rs. 50.

304.

Order to contain Advocate's fee and Costs:

- Where the indigent plaintiff represented by an advocate assigned by the Court succeeds, the order made under Rule 10 of Order XXXIII CPC shall also contain the advocate's fee and other expenses calculated in accordance with the Advocates Fee Rules and Rule 155 of these Rules.

305.

Advocate engaged to prepare diary:

- An advocate engaged, to represent an indigent person in any Court subordinate to the High Court at State expense shall, at the conclusion of each day of hearing in the case, prepare and submit for counter-signature by the Presiding Officer of the Court a diary containing the following details fully set out:—

Name of The Advocate

Date Case

Number Name of the parties

Names of the party represented

Duration of hearing

Work Done

Signature of the presiding Officer

Remarks

306.

District Judge to be the Controlling Officer for payment and audit of fees of Advocates engaged:

(1)

The District Judge shall be controlling officer for the payment and audit of all fees due to advocates engaged to represent indigent persons in Courts subordinate to the High Court.

(2)

The advocates shall submit their bills to the District Judge within one month of the disposal of the case by the Court.

[CHAPTER XX] PART I

Civil Procedure Alternative Dispute Resolution and Civil Procedure Mediation Rules, 2005

307.

Procedure for directing parties to opt for alternative Modes of settlement:

(a)

The Court shall, after recording admission and denials at the first hearing of the suit under Rule 1 or Order X, and where it appears to the Court that there exist elements of a settlement which may be acceptable to the parties, formulate the terms of settlement and give them to the parties for their observations under sub-section (1) of Section 89, and the parties shall submit to the Court their responses within thirty days of the first hearing.

(b)

At the next hearing, which shall be not later than thirty days of the receipt of responses, the Court may reformulate the terms of a possible settlement and shall direct the parties to opt for one of the modes of settlement of disputes outside the Court as specified in clauses (a) to (d) of sub-section (1) of Section 89 read with Rule 1 A of Order X, in the manner stated hereunder:

Provided that the Court, in the exercise of such power, shall not refer any dispute to arbitration or to judicial settlement by a person or institution without the written consent of all the parties to the suit.

308.

Persons authorized to take decision for the Union of India, State Governments and others:

(1)

For the purpose of Rule 307, the Union of India or the Government of a State or Union Territory, all local authorities, all Public Sector Undertakings, all statutory corporations and all public authorities shall nominate a person or persons or group of persons who are authorized to take a final decision as to the mode of Alternative Dispute Resolution in which it proposes to opt in the event of direction by the Court under Section 89 and such nomination shall be communicated to the High Court within the period of three months from the date of commencement of these rules and the High Court shall notify all the subordinate Courts in this behalf as soon as such nomination is received from such Government of authorities.

(2)

Where such person or persons or group of persons have not been nominated as aforesaid, such party as referred to in clause (1) shall, if it is a plaintiff, file along with the plaint or if it is a defendant file, along with or before the filing of the written statement, a memo into the Court, nominating a person or persons or group of persons who is or are authorized to take a final decision as to the mode of alternative dispute resolution, which the party prefers to adopt in the event of the Court directing the party to opt for one or other mode of Alternative Dispute Resolution.

309.

Court to give guidance to parties while giving direction to opt:

(a)

Before directing the parties to exercise option under clause (b) of Rule 307, the Court shall give such guidance as it deems fit to the parties, by drawing their attention to the relevant factors which parties will have to take into account, before they exercise their option as to the particular mode of settlement, namely:

(i)

that it will be to the advantage of the parties, so far as time and expense are concerned, to opt for one or other of these modes of settlement referred to in Section 89 rather than seek a trial on the disputes arising in the suit;

(ii)

that, where there is no relationship between the parties which requires to be preserved, it may be in the interest of the parties to seek reference of the matter of arbitration as envisaged in clause (a) of sub-section (1) of Section 89.

(iii)

that, where there is relationship between the parties which requires to be preserved, it may be in the interest of parties to seek reference of the matter of conciliation or mediation, as envisaged in clauses (b) or (d) of sub-section (1) of Section 89.

Explanation: Disputes arising in matrimonial, maintenance and child custody matters shall, among others, be treated as cases where a relationship between the parties has to be preserved.

(iv)

That, where parties are interested in a final settlement which may lead to a compromise, it will be in the interests of the parties to seek reference of the matter to Lok Adalat or to judicial settlement as envisaged in clause (c) of sub-section (1) of Section 89.

(v)

The difference between the different modes of settlement, namely, arbitration, conciliation, mediation and judicial settlement is explained below:

Settlement by 'Arbitration' means the process by which an arbitrator appointed by parties or by the Court, as the case may be, adjudicates the disputes between the parties to the suit and passes an award by the application of the provisions of the Arbitration and Conciliation Act, 1996 (

26 of 1996

), in so far as they refer to arbitration.

Settlement by 'Conciliation' means the process by which a conciliator who is appointed by parties or by the court, as the case may be, conciliates the disputes between the parties to the suit by the application of the provisions of the Arbitration and Conciliation Act, 1996 (

26 of 1996

)' in so far as they relate to conciliation, and in particular, in exercise of his powers under Sections 67 and 73 of that Act, by making proposals for a settlement of the dispute and by formulating or reformulating the terms of a possible settlement; and has a greater role than a mediator.

Settlement by 'Mediation' means the process by which a mediator appointed by parties or by the Court, as the case may be, mediates the dispute between the parties to the suit by the application of the provisions of the Mediation Rules, 2003 in part II, and in particular, by facilitating discussion between parties directly or by communicating with each other through the mediator, by assisting parties in identifying issues, reducing misunderstandings, clarifying priorities, exploring areas of compromise, generating options in an attempt to solve the dispute and emphasizing that it is the parties own responsibility for making decisions which affect them.

Settlement in lok Adalat' means settlement by Lok Adalat as contemplated by the Legal Services Authorities Act, 1987.

Judicial settlement' means a final settlement by way of compromise entered into before a suitable institution or person to which the Court has referred the dispute and which institutions or persons are deemed to be the Lok Adalats under the provisions of the Legal Services Authorities Act, 1987 (39 of 1987) and after such reference, the provisions of the said Act apply as if the dispute was referred to a Lok Adalat under the provisions of that Act.

310.

Procedure for reference by the court to the difference modes of settlement:

(a)

Where all parties to the suit decide to exercise their option and to agree for settlement by arbitration, they shall apply to the Court, within thirty days of the direction of the Court under clause (b) of Rule 307 and the Court shall, within thirty days of the said application, refer the matter to arbitration and thereafter the provisions of the Arbitration and Conciliation Act, 1996 (

26 of 1996

) which are applicable after the stage of making of the reference to arbitration under that Act, shall apply as if the proceedings were referred for settlement by way of arbitration under the provisions of that Act.

(b)

Where all the parties to the suit decide to exercise their option and to agree for settlement by the Lok Adalat or where one of the parties applies for reference to Lok Adalat, the procedure envisaged under the Legal Services Authorities Act, 1987 and in particular by Section 20 of that Act, shall apply.

(c)

Where all the parties to the suit decide to exercise their option and to agree for judicial settlement, they shall apply to the Court within thirty days of the direction under clause (b) of Rule 307 and then the Court shall, within thirty days of the application, refer the matter to a suitable institution or person and such institution or person shall be deemed to be a Lok Adalat and thereafter the provisions of the Legal Services Authorities Act, 1987 (39 of 1987) which are applicable after the stage of making of the reference.ta, Lok Adalat under that Act, shall apply as if the proceedings were referred for settlement under the provisions of that Act;

(d)

Where none of the parties are willing to agree to opt or agree to refer the dispute to arbitration, or Lok Adalat, or to judicial settlement, within thirty days of the direction of the Court under clause (b) of Rule 307, the court shall consider if they could agree for reference to conciliation or mediation, within the same period.

(e)

(i)

Where all the parties opt and agree for conciliation, they shall apply to the Courts within thirty days of the direction under clause (b) of Rule 307 and the Court shall, within thirty days of the application refer the matter to conciliation and thereafter the provisions of the Arbitration and Conciliation Act, 1996 (

26 of 1996

) which are applicable after the stage of making of the reference to conciliation under that Act, shall apply, as if the proceedings were referred for settlement by way of conciliation under the provisions of that Act;

(ii)

Where all the parties opt and agree for mediation, they shall apply to the court, within thirty days of the direction under clause (b) of Rule and the Court shall, within thirty days of the application, refer the matter to mediation and then the Mediation Rules, 2005 in Part II shall apply.

(f)

Where under clause (d), all the parties are not able to opt and agree for conciliation or mediation, one or more parties may apply to the court within thirty days of the direction under clause (b) of Rule 307, seeking settlement through

conciliation or mediation, as the case may be, and in that event, the Court shall, within a further period of thirty days issue notice to the other parties to respond to application and

(i)

in case all the parties agree for conciliation, the Court shall refer the matter to conciliation and thereafter, the provisions of the Arbitration and Conciliation Act, 1996 which are applicable after the stage of making of the reference to conciliation under that Act, shall apply.

(ii)

in case all the parties agree for mediation, the Court shall refer the matter to mediation in accordance with the Civil Procedure-Mediation Rules, 2005 in part II shall apply.

(iii)

in case all the parties do not agree and where it appears to the Court that there exist elements of a settlement which may be acceptable to the parties and that there is a relationship between the parties which has to be preserved, the Court shall refer the matter to conciliation or mediation, as the case may be. In case the dispute is referred to Conciliation, the provisions of the Arbitration and Conciliation Act, 1996 which are applicable after the stage of making of the reference to Conciliation under that Act shall and in case the dispute is referred to mediation, the provisions of the Civil Procedure - Mediation Rules 2005, shall apply.

(g)

(i)

Where none of the parties apply for reference either to arbitration, or Lok Adalat, or judicial statement, or for conciliation or mediation, within thirty days of the direction under clause (b) of Rule 307, the Court shall, within a further period of thirty days, issue notices to the parties or their representatives fixing the matter for hearing on the question of making a reference either to conciliation or mediation.

(ii)

After hearing the parties or their representatives on the day so fixed, the Court shall, if there exist elements of a settlement which may be acceptable to the parties and there is a relationship between the parties which has to be preserved, refer the matter to conciliation or mediation. In case the dispute is referred to Conciliation, the provisions of the Arbitration and Conciliation Act, 1996 which are applicable after the stage of making of the reference to Conciliation under that Act shall and in case the dispute is referred to mediation, the provisions of the Civil Procedure - Mediation Rules, 2005, shall apply.

(h)

(i)

No Next friend or guardian for the plaintiff/defendant, shall, without the leave of the Court, expressly recorded in the proceedings of the Court, opt for any one of the modes of alternative dispute resolution and shall not enter in to any settlement on behalf of a minor or person under disability with reference to the suit in which he acts as mere friend or guardian.

(ii)

Where an application is made to the Court for leave to enter into a settlement initiated into the alternative dispute resolution proceedings on behalf of a minor or other person under disability and such minor or other person under disability is represented by Counsel or pleader, the counsel or pleader shall file a certificate along with the said application to the effect that the settlement is, in his opinion, for the benefit of the minor or other person under disability. The decree of the Court based on the settlement to which the minor or other person under disability is a party, shall refer to the sanction of the Court thereto and shall set out the terms of the settlement.

311.

Referral to the Court and appearance before the Court upon failure of attempts to settle disputes by conciliation or judicial settlement or mediation:

(1)

Where a suit has been referred for settlement for conciliation, mediation or judicial settlement and has not been settled or where it is felt that it would not be proper in the interests of justice to proceed further with the matter, the suit shall be referred back again to the Court with a direction to the parties to appear before the Court on a specific date.

(2)

Upon the reference of the matter back to the Court under sub-rule (1) or under sub-section (5) of Section 20 of the Legal

Services Authorities Act, 1987, the Court shall proceed with the suit in accordance with law.

312.

Training in alternative methods of resolution of disputes, and preparation of manual:—

(a)

The High Court shall take steps to have training courses conducted in places where the High Court and the District Courts or Courts of equal status are located, by requesting bodies recognized by the High Court or the Universities imparting legal education or retired Faculty Members or other persons who, according to the High Court are well versed in the techniques of alternative methods of resolution of dispute, to conduct training courses for lawyers and judicial officers.

(b)

(i)

The High Court shall nominate a committee of judges, faculty members including retired persons belonging to the above categories, senior members of the Bar, other members of the Bar specially qualified in the techniques of alternative dispute resolution, for the purpose referred to in clause (a) and for the purpose of preparing a detailed manual of procedure for alternative dispute resolution to be used by the Courts in the State as well as by the arbitrators, or authority or person in the case of judicial settlement or conciliators or mediators.

(ii)

The said manual shall describe the various methods of alternative dispute resolution, the manner in which any one of the said methods is to be opted for, the suitability of any particular method for any particular type of dispute and shall specifically deal with the role of the above persons in disputes which are commercial or domestic in nature or which relate to matrimonial, maintenance and child custody matters.

(c)

The High Court and the District Courts shall periodically conduct seminars and workshops on the subject of alternative dispute resolution procedures throughout the State or States over which the High Court has jurisdiction with a view to bring awareness of such procedures and to impart training to lawyers and judicial officers.

(d)

Persons who have experience in the matter of alternative dispute resolution procedures, and in particular in regard to conciliation and mediation, shall be given preference in the matter of empanelment for purposes of conciliation or mediation.

313.

Applicability to other proceedings:

- The provisions of these Rules may be applied to proceedings before the Courts, including Family Courts constituted under Family Courts Act (66 of 1984), while dealing with matrimonial, maintenance and child custody disputes, wherever necessary, in addition to the rules framed under the Family Courts Act, (66 of 1984).

Part II

Civil Procedure Mediation Rules, 2005

314.

Appointment of mediator:

(a)

Parties to a suit may all agree on the name of the sole mediator for mediating between them.

(b)

Where, there are two sets of parties and are unable to agree on a sole mediator, each set of parties shall nominate a mediator.

(c)

Where parties agree on a sole mediator under clause (a) or where parties nominate more than one mediator under clause (b), the mediator need not necessarily be from the panel of mediators referred to in Rule 315 nor bear the qualifications referred to in Rule 316 but should not be a person who suffers from the disqualifications referred to in Rule 317.

317.

(d)

Where there are more than two sets of parties having diverse interests, each set shall nominate a person on its behalf and the said nominees shall select the sole mediator and failing unanimity in that behalf, the Court shall appoint a sole

mediator.

315.

Panel of Mediators:

(a)

The High Court shall, for the purpose of appointing mediators between parties in suits filed on its original side, prepare a panel of mediators and publish the same on its Notice Board, within thirty days of the coming into force of these Rules, with copy to the Bar Association attached to the original side of the High Court.

(b)

(i)

The Courts of the Principal District and Sessions Judge in each District or the Courts of the Principal Judge of the City Civil Court or Courts of equal status shall, for the purposes of appointing mediators to mediate between parties in suits filed on their original side, prepare a panel of mediators, within a period of sixty days of the commencement of these Rules, after obtaining the approval of the High Court and shall publish the same on their respective Notice Boards.

(ii)

Copies of the said panels referred to in clause (i) shall be forwarded to all the Courts of equivalent jurisdiction or Courts subordinate to the Courts referred to in sub-clause (i) and to the Bar Associations attached to each of the Courts.

(c)

The consent of the persons whose names are included in the panel shall be obtained before empanelling them.

(d)

The panel of names shall contain a detailed Annexure giving details of the qualifications of the mediators and their professional or technical experience in different fields.

316.

Qualifications of persons to be empanelled under Rule 315:

- The following persons shall be treated as qualified and eligible for being enlisted in the panel of mediators under Rule 315 namely:

(a)

(i)

Retired Judges of the Supreme Court of India.

(ii)

Retired Judges of the High Court

(iii)

Retired District and Sessions Judges or retired Judges of the City Civil Court or courts of equivalent status.

(b)

[Legal practitioners with at least seven years standing at the Bar at the Level of the Supreme Court or the High Court; or the District Courts or Courts of equivalent status.]

[Substituted by Notification No. G.O. Ms. No. 170, Law (L, LA&J-Home-Courts-B) Department, dated 9.11.2017 (w.e.f. 27.10.1983).]

(c)

Experts or other professionals with at least fifteen years standing; or retired senior bureaucrats or retired senior executives;

(d)

Institutions which are themselves experts in mediation and have been recognized as such by the High Court, provided the names of its members are approved by the High Court initially or whenever there is change in membership.

(e)

[The Mediator who have undergone training programme conducted in accordance with the curriculum approved by Mediation and Conciliation Project Committee of India (MCPC) shall alone be accredited as Mediator.]

[Added by Notification No. G.O. Ms. No. 170, Law (L, LA&J-Home-Courts-B) Department, dated 9.11.2017 (w.e.f. 27.10.1983).]

317.

Disqualifications of persons:

- The following persons shall be deemed to be disqualified for being empanelled as mediators:

- (i)
any person who has been adjudged as insolvent or is declared of unsound mind.
- (ii)
or any person against whom criminal charges involving moral turpitude are framed by a criminal Court and are pending,
or
- (iii)
any person who has been convicted by a criminal Court for any offence involving mortal turpitude;
- (iv)
any person against whom disciplinary proceedings or charges relating to moral turpitude have been initiated by the appropriate disciplinary authority which are pending or have resulted in a punishment.
- (v)
any person who is interested or connected with the subject-matter of dispute or is related to any one of the parties or to those who represent them, unless such objection is waived by all the parties in writing.
- (vi)
any legal practitioner who has or is appearing for any of the parties in the suit or in any other suit or proceedings.
- (vii)
such other categories of persons as may be notified by the High Court.

318.

Venue for conducting mediation:

- The mediator shall conduct the mediation at one or other of the following places:

- (i)
Venue of the Lok Adalat or permanent Lok Adalat.
- (ii)
Any place identified by the District Judge within the Court precincts for the purpose of conducting mediation.
- (iii)
Any place identified by the Bar Association or State Bar Council for the purpose of mediation, within the premises of the Bar Association or State Bar Council, as the case may be.
- (iv)
Any other place as may be agreed upon by the parties subject to the approval of the Court.

319.

Preference:

- The Court shall, while nominating any person from the panel of mediators referred to in Rule 315 consider his suitability for resolving the particular class of dispute involved in the suit and shall give preference to those who have proven record of successful mediation or who have special qualification or experience in mediation.

320.

Duty of mediator to disclose certain facts:

- (a)
When a person is approached in connection with his possible appointment as a mediator, the person shall disclose in writing to the parties, any circumstances likely to give rise to a justifiable doubt as to his independence or impartiality.
- (b)
Every mediator shall, from the time of his appointment and throughout the continuance of the mediation proceedings, without delay, disclose to the parties in writing, about the existence of any of the circumstances referred to in clause (a).

321.

Cancellation of appointment:

- Upon information furnished by the mediator under Rule 320 or upon any other information received from the parties or other persons, if the court, in which the suit is filed, is satisfied, after conducting such inquiry as it deems fit, and after giving a hearing to the mediator, that the said information has raised a justifiable doubt as to mediator's independence or impartiality, it shall cancel the appointment by a reasoned order and replace him by another mediator.

322.

Removal or deletion from panel:

- A person whose name is placed in the panel referred to in Rule 315 may be removed or his name be deleted from the

said panel, by the Court which empanelled him if :

- (i)
he resigns or withdraws his name from the panel for any reason;
- (ii)
he is declared insolvent or is declared of unsound mind;
- (iii)
he is a person against whom criminal charges involving moral turpitude are framed by a criminal Court and are pending;
- (iv)
he is a person who has been convicted by a criminal Court for any offence involving moral turpitude;
- (v)
he is a person against whom disciplinary proceedings on charge relating to moral turpitude have been initiated by appropriate disciplinary authority which are pending or have resulted in punishment.
- (vi)
he exhibits or displays conduct, during the continuance of the mediation proceedings, which is unbecoming of a mediator;
- (vii)
the Court which empanelled, upon receipt of information, if it is satisfied, after conducting such inquiry as it deem fit, is of the view, that it is not possible or desirable to continue the name of that person in the panel.

Provided that, before removing or deleting his name, under clauses (vi) and (vii), the Court shall hear the mediator whose name is proposed to be removed or deleted from the panel and shall pass a reasoned order.

323.

Procedure of mediation:

- (a)
The parties may agree on the procedure to be followed by the mediator in the conduct of the mediation proceedings
 - (b)
Where the parties do not agree on any particular procedure to be followed by the mediator, the mediator shall follow the procedure hereinafter mentioned, namely:
 - (i)
he shall fix, in consultation with the parties, a time schedule, the dates and the time of each mediation session, where all parties have to be present;
 - (ii)
he shall hold the mediation conference in accordance with the provisions of Rule 318
 - (iii)
he may conduct joint or separate meetings with the parties;
 - (iv)
each party shall, ten days before a session, provide to the mediator a brief memorandum setting forth the issues, which according to it, need to be resolved, and its position in respect to those issues and all information reasonably required for the mediator to understand the issue and such memoranda shall also be mutually exchanged between the parties;
 - (v)
each party shall furnish to the mediator, copies of pleadings or documents or such other information as may be required by him in connection with the issues to be resolved.
- Provided that where the mediator is of the opinion that he should look into any original document, the Court may permit him to look into the original document before such officer of the Court and on such date or time as the Court may fix.
- (vi)
each party shall furnish to the mediator such other information as may be required by him in connection with the issues to be resolved.

- (c)
Where there is more than one mediator, the mediator nominated by each party shall first confer with the party that nominated him and shall thereafter interact with the other mediators, with a view to resolving the disputes.

324.

Mediator not bound by Evidence Act, 1872 or Code of Civil Procedure, 1908:

- The mediator shall not be bound by the Code of Civil Procedure, 1908 or the Evidence Act, 1872, but shall be guided by principles of fairness and justice, have regard to the rights and obligations of the parties, usages of trade, if any, and the nature of the dispute.

325.

Non-attendance of parties at session or meetings on due dates:

(a)

The parties shall be present personally or may be represented by their counsel or power of attorney holders at the meetings or sessions notified by the mediator.

(b)

If a party fails to attend a session or a meeting notified by the mediator, other parties or the mediator can apply to the Court in which the suit is filed, to issue appropriate directions to that party to attend before the mediator and if the Court finds that a party is absenting himself before the mediator without sufficient reason, the Court may take action against the said party by imposition of costs.

(c)

The parties not resident in India, may be represented by their counsel or power of attorney holders at the sessions or meetings.

326.

Administrative assistance:

- In order to facilitate the conduct of mediation proceedings, the parties, or the mediator with the consent of the parties, may arrange for administrative assistance by a suitable institution or person.

327.

Offer of settlement by parties:

(a)

Any party to the suit may, 'without prejudice', offer a settlement to the other party at any stage of the proceedings, with notice to the mediator.

(b)

Any party to the suit may make, 'without prejudice', an offer, to the party at any stage of the proceedings, with notice to the mediator.

328.

Role of mediator:

- The mediator shall attempt to facilitate voluntary resolution of the dispute by the parties, and communicate the view of each party to the other, assist them in identifying issues, reducing misunderstandings, clarifying priorities, exploring areas of compromise and generating options in and attempt to solve the dispute, emphasizing that it is the responsibility of the parties to take decision which affects them; he shall not impose any terms of settlement on the parties.

329.

Parties alone responsible for taking decision:

- The parties must understand that the mediator only facilitates in arriving at a decision to resolve disputes and that he will not and cannot impose any settlement nor does the mediator give any Warranty that the mediation will result in a settlement. The mediator shall not impose any decision on the party.

330.

Time limit for completion of mediation:

- On the expiry of sixty days from the date fixed for the first appearance of the parties before mediator, the mediation shall stand terminated, unless the Court, which referred the matter, either suo-motu, or upon request by the mediator or any of the parties, and upon hearing all the parties, is of the view that extension of time is necessary or may be useful; but such extension shall not be beyond further period of thirty days.

331.

Parties to act in good faith:

- While no one can be compelled to commit to settle his case in advance of mediation, all parties shall commit to participate in the proceedings in good faith with the intention to settle the dispute possible.

332.

Confidentiality disclosure and inadmissibility of information:

(1)

When a mediator receives confidential information concerning the dispute from any party, he shall disclose the substance of that information to the other party, if permitted in writing by the first party.

(2)

When a party gives information to the mediator subject to a specific condition that it be kept confidential, the mediator shall not disclose that information to the other party, nor shall the mediator voluntarily divulge any information regarding the documents or what is conveyed to him orally as to what transpired during the mediation.

(3)

Receipt or perusal, or preparation of records, reports or other documents by the mediator, receipt of information orally by the mediator while serving in that capacity, shall be confident and the mediator shall not be compelled to divulge information regarding the documents nor in regard to the oral information nor as to what transpired during the mediation.

(4)

Parties shall maintain confidentiality in respect of events that transpired during mediation and shall not rely on or introduce the said information in any other proceedings as to:

(a)

Views expressed by a party in the course of the mediation proceedings.

(b)

Documents obtained during the mediation which were expressly required to be treated as confidential or other notes, drafts or information given by parties or mediators.

(c)

Proposals made or views expressed by the mediator;

(d)

Admission made by a party in the course of mediation proceedings;

(e)

The fact that a party had or had not indicated willingness to accept a proposal;

(5)

There shall be no stenographic or audio or video recording of the mediation proceedings.

333.

Privacy:

- Mediation sessions and meetings are private; only the concerned parties or their counsel or power of attorney holders can attend. Other persons may attend only with the permission of the parties or with the consent of the mediator.

334.

Immunity:

- No mediator shall be held liable for anything bona fide done or omitted to be done by him during the mediation proceedings for civil or criminal action nor shall he be summoned by any party to the Suit to appear in a Court of law to testify in regard to information received by him or action taken by him or in respect of drafts or records prepared by him or shown to him during the mediation proceedings.

335.

Communication between mediator and the Court:

(a)

In order to preserve the confidence of parties in the Court and the neutrality of the mediator, there should be no communication between the mediator and the Court, except as stated in clauses (b) and (c) of this Rule.

(b)

If any communication between the mediator and the Court is necessary, it shall be in writing and copies of the same shall be given to the parties or their counsel or power of attorney.

(c)

Communication between the mediator and the Court shall be limited to communication by the mediator:

(i)

with the Court about the failure or party to attend;

(ii)

with the Court with the consent of the parties;

(iii)

regarding his assessment that the case is not suited for settlement through mediation;

(iv)

that the parties have settled the dispute or disputes.

336.

Settlement Agreement:

(1)

Where an agreement is reached between the parties in regard to all the issues in the suit or some of the issues, the same shall be reduced to writing and signed by the parties or their power of attorney holder. If any counsel have represented the parties, they shall attest the signature of their respective clients.

(2)

The agreement of the parties so signed and attested shall be submitted to the mediator who shall, with a covering letter signed by him, forward the same to the Court in which the suit is pending.

(3)

Where no agreement is arrived at between the parties, before the time limit stated in Rule 330 or where, the mediator is of the view that no settlement is possible, he shall report the same to the said Court in writing.

337.

Court to fix a date for recording settlement and passing decree:

(1)

Within seven days of the receipt of any settlement, the Court shall issue notice to the parties fixing a day for recording the settlement, such date not being beyond a further period of fourteen days from the date of receipt of settlement, and the Court shall record the settlement, if it is not collusive.

(2)

The Court shall then pass a decree in accordance with the settlement so recorded, if the settlement disposes of all the issues in the suit.

(3)

If the settlement disposes of only certain issues arising in the suit, the Court shall record the settlement on the date fixed for recording the settlement and

(i)

If the issues are servable from other issues and if a decree could be passed to the extent of the settlement covered by those issues, the Court may pass a decree straightaway in accordance with the settlement on those issues without waiting for a decision of the Court on the other issues which are not settled.

(ii)

If the issues are not servable, the Court shall wait for a decision of the Court on the other issues which are not settled.

338.

Fee of mediator and costs:

(1)

At the time of referring the disputes to mediation, the Court shall, after consulting the mediator and the parties, fix the fee of the mediator.

(2)

As far as possible a consolidated sum may fixed rather than for each session or meeting.

(3)

Where there are two mediators as in clause (b) of Rule 314, the Court shall fix the fee payable to the mediators which shall be shared equally by the two sets of parties.

(4)

The expense of the mediation including the fee of the mediator, costs of administrative assistance, and other ancillary expenses concerned, shall be borne equally by the various contesting parties or as may be otherwise directed by the Court.

(5)

Each party shall bear the costs for production of witnesses on its side including experts, or for production of documents.

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(6)

The mediator may, before the commencement of mediation, direct the parties to deposit equal sums, tentatively, to the extent of 40% of the probable costs of the mediation, as referred to in clauses (1), (3) and (4). The remaining 60% shall be deposited with the mediator, after the conclusion of mediation. For the amount of cost paid to the mediator, he shall issue the necessary receipts and a statement of account shall be filed, by the mediator in the Court.

(7)

The expense of mediation including fee, if not paid by the parties, the Court shall, on the application of the mediator or parties, direct the concerned parties to pay, and if they do not pay, the Court shall recover the said amounts. as if there was a decree for the said amount.

(8)

Where a party is entitled to legal aid under Section 12 of the Legal Services Authorities Act, 1987, the amount of fee payable to the mediator and costs shall be paid by the concerned Legal Services Authority under that Act.

339.

Ethics to be followed by mediator:

- The mediator shall:-

(1)

follow and observe these Rules strictly and with due diligence:

(2)

not carry on any activity or conduct which could reasonably be considered as conduct unbecoming of a mediator;

(3)

uphold the integrity and fairness of the mediation process;

(4)

ensure that the parties involved in the mediation are fairly informed and have an adequate understanding of the .procedural aspects of the process.

(5)

Satisfy himself/herself that he/she is qualified to undertake and complete the assignment in a professional manner.

(6)

Disclose any interest or relationship likely to affect impartiality or which might give an appearance of partiality of bias;

(7)

Avoid, while communicating with the parties, any impropriety or which might seek an appearance of partiality of bias;

(8)

Be faithful to the relationship of trust and confidentiality imposed in the Office of mediator;

(9)

Conduct all proceedings related to the resolutions of a dispute, in accordance with the applicable law;

(10)

Recognize that mediation is based on principles of self-determination by the parties and that mediation process relies upon the ability of parties to reach a voluntary, undisclosed agreement;

(11)

Maintain the reasonable expectations of the parties as to confidentiality.

(12)

Refrain from promises or guarantees of results.

340.

Transitory provisions:

- Until a panel of arbitrators is prepared by the High Court and the District Court, the courts referred to in Rule 315 may nominate a mediator of their choice if mediator belongs to the various classes of persons referred to in Rule 316 and is duly qualified and is not disqualified, taking into account the suitability of the mediator for resolving the particular dispute";

(3)

the following forms shall be inserted in forms under Civil Rules of practice,—

Form No. 14(A)

Rule 7 (2) (b) (ii)

Affidavit

(To be furnished by the Courier Service Company Agent)

Case No...../200

I..... S/o.....aged.....years, resident of.....Occupation.....Employee in M/s. Courier Service Company, do hereby solemnly affirm and state as follows:

(a)

I have served the Notice on the party, Sri.....on dt.....

(b)

I have served the notice on Sri.....an adult member of the family of the party, as the party was absent from his house.

(d)

I could not serve the notice on the party, as he was absent from the address given and as no adult member of the family prepared to receive the notice.

(e)

Sri.....S/o.....r/o. and Sri.....S/o.....r/o.....were present at the time of the above service.

Solemnly affirmed and signed before me

Deponent

Note:

1. Strike off (a) (b) (c) (d) whichever is not applicable.
2. The Affidavit can be sworn before the persons authorized by the Board of the Courier Service Company/ Village Assistant/ Sarpanch of the Village/any Gazetted Officer/Notary/First Class Magistrate/ Advocate / Municipal Councillor / Corporator.
3. If the endorsement of service is found false, the person shall be summarily tried and punished for perjury.

Form No. 14 (B)

Rule 7(2) (b) (iii)

Affidavit

(To be furnished by the person authorized by the Courier Service Company)

Case No. /200

I, S/o aged years, working as Manager in M/s Courier Service Company, do hereby solemnly affirm and state as follows:

(a)

Our agent Sri S/o served the notice on the party, Sri S/o r/o on dated

(b)

Our agent Sri S/o served the notice on Sri and adult member of the family of the party as the party was absent from his house.

(c)

Our agent Sri S/o could not serve the notice on the party Sri S/o r/o as he refused to receive the notice.

(d)

Our agent Sri S/o could not serve the notice on the party Sri S/o as he was absent at the address given and as no adult member in his family prepared to receive the notice.

Solemnly affirmed and Signed before me

Deponent

Note:

1. Strike off (a) (b) (c) (d) whichever is not applicable.
2. The affidavit can be sworn before the persons authorized by the Board of the Courier Service Company/Village Assistant/Sarpanch of the Villages/any Gazetted Officer/Notary/First Class Magistrate/ Advocate/Municipal Councillor/Corporator.
3. If the endorsement of Service is found false, the person shall be summarily and punished for perjury.

Form No. 17 in Appendix III-L

Part II

Volume II

[Rule 20(3) of Civil Rules of Practice Part I, Volume I]

Receipt

Original

Duplicate

(1)

(2)

Receipt showing Court-fee paid In the Court of the

..... of Stamp Register No. Brief description.Particulars

Receipt showing Court-fee paid In the Court of the

..... of[Stamp Register No. Brief description]

[Serial Number in C.R. 17 to be entered here.]

.Particulars

Amount

Amount

Rs. Rs.

Rs. Rs.

Court-fee stamps on plaint or memo.

Court-fee stamps on plaint or memo.

Court-fee Stamp on petition

Court-fee Stamp on petition.

Court-fee Stamps on enclosures and exhibits.

Court-fee Stamps on enclosures and exhibits.

Court-fee stamps on vakalat.

Court-fee stamps on vakalat.

Court-fee stamps on batta.

Court-fee stamps on batta.

Court-fee stamps on other papers.

Court-fee stamps on other papers.

Total Rs.

Total Rs.

DateSignature of Receiving Clerk.

DateSignature of Receiving Clerk.

N.B.: - This form duly filled should be presented by the party along with the papers filed into Court and the Receiving Clerk should issue the receipt after entering the S.R.No.

Note: - This form was inserted by P. Dis. No. 195 of 1948.

Appendix - A

Rules regulating applications for and payment of the services of the Government Examiner of Questioned Documents: -

1. Application should be sent direct to the Government Examiner of Questioned Documents, Intelligence Bureau, Ministry of Home Affairs, "Doners". Simla-1.

2. (i) Applications received direct from private individuals will not be entertained.

(ii)

Applications received from Police Officers below the rank of Superintendent of Police will not be entertained.

3. Acceptable applications fall into two classes:—

A. Official applications from: - (i) State Governments (including Part C States), and offices subordinate to them;

(ii)

Presiding Officers of Criminal Courts (including Sessions Courts); High Court; Courts Martial etc.; Ministries of Government of India and their attached and Sub-ordinate offices;

(iv)

Railway administrations under the Ministry of Railway (Railway Board).

B. Other applications: - These include—

(i)

Cases from private parties in civil suits in Indian Union Courts. These will be accepted only on the requisition of the Court in which the case is being heard. The party concerned must move the Court and it will rest with the Court to take the further steps necessary to obtain the services of the Government Examiner of Questioned Documents.

Explanation: - Reference made by a Court suo motu in civil cases in which the State is not a party will be deemed to be cases from private parties for the purposes of these rules.

(ii)

Cases from municipal corporations, district boards, municipalities and other local bodies and from universities Railway Administration (not under the Ministry of Railways of the Government of India), from autonomous corporation and quasi-Government Bodies, eg. D.V.C., D.T.S. etc., with Indian Union. Applications from recognised universities will be received direct. Applications from Railway Administrations (not under the Ministry of Railways Government of India) should be submitted through the Agent of the Railway concerned. Applications from municipal corporations will be received direct but from other local bodies will be accepted only if received through the local District Magistrate who should satisfy himself before forwarding the application, that it is desirable that the Government Examiner of Questioned Documents should be consulted.

(iii)

Complaint cases, revenue cases, Tenancy Act cases, and other miscellaneous Act cases from Indian Union Courts.

These cases will be accepted only if forwarded by Presiding Officers of Courts.

4. Applications falling under classes A and B will ordinarily be accepted but may be refused at the discretion of the Government Examiner of Questioned Documents if they cannot be undertaken without detriment of his other work.

5. An inclusive fee will be charged in each case in which an opinion is given and will normally cover the opinion, the cost of photographs and the giving of evidence, limited in class B cases to one day. The inclusive fee for class A cases (see Rule 3) will be Rs. 220/- and for class B cases Rs. 250/- (This fee does not cover travelling allowance which is governed by Rule 15 below). Where one class A case is split up in Court into several cases, a fee of Rs. 150/- will be charged for each split up case. Similarly, where one class B case is split up in Court into several cases, the fee will be Rs. 200/- for each split up cases.

6. Subject to the exception stated at the end of this rule, the fee is payable in advance in all cases and each application should be accompanied by a certificate in the following form:

"Certified that sum of Rupees Two hundred and twenty (220)/Two hundred and fifty (250) has been deposited in the Treasury on on account of the Government Examiner of Questioned Documents fee in case/suit No And that this amount has been shown under Head XXXIII .Police—Central—Fees, fines and forfeitures," in the cash Account of Central subjects for the month of and appears at item No. in the relevant Receipt Schedule".

Signature of Treasury Officer counter-signed.

Signature of Officer submitting the case.

In special circumstances, which should be stated in application Class A cases will be accepted without this certificate, but the certificate should be forwarded as soon as possible.

7. In cases where the cost photographs is exceptionally, heavy the fee will be Rs. 180/- plus actual cost of the photographs in Class A cases and in Class-B cases, Rs. 200/- plus the actual cost of the photographs.

In class B cases the authority submitting the case will be informed of the extra cost involved before it is incurred and will be required to certify that it has been deposited before the Government Examiner of Questioned Documents proceeds with the case.

8. (A) No fees are chargeable by the Government Examiner of Questioned Documents for the cases investigated by the Special Police Establishment and also for cases arising in

(i)

the main Ministries of the Central Government;

(ii)

the attached offices; and

(iii)

part C States who have no consolidated funds of their own within the meaning of Section 39 of the Government of Part

C States Act, 1951 (No. XLIX of 1951).

(B)

Fees are however chargeable in all other cases.

9. (i) cases in which no opinion is given but photographs are taken, only the actual cost of the photographs will be charged, subject to a minimum of Rs. 35/-.

(ii)

in cases in which examination has been completed but no opinion could be expressed, a consolidated fee of Rs.100/- will be charged.

10. No reduction in the fee will be allowed if evidence is not required or is taken on commission.

11. (i) In class B cases an additional fee of Rs. 200/- will be charged for each day after the first day on which evidence is given, whether in Court or on commission, or on which the Officer is detained. The Presiding Officer or the Commissioner will be requested to certify before the second and each subsequent day's work is begun, that the fee for that day and also for any intervening day or days of detention has been deposited, and subsequently to furnish certificate in Rule 6 above;

(ii)

A fee of Rs. 250/- will be charged in a civil suit even for the first day's evidence if evidence is taken upon an opinion expressed on the same documents when they formed part of a criminal case.

12. In cases falling under class B, the Government Examiner or his Assistant will be prepared to attend Courts provided that he can do so without detriment to his other work. When evidence is taken on commission, the commission should be issued to the Senior Sub-Judge, Simla and normally should be so worked that either the Government Examiner or his Assistant can give evidence.

13. Presiding Officers of Courts are requested to detain the Government Examiner of Questioned Documents or his Assistant for the least possible time compatible with the requirement of the case. They are also requested to accept, so far as possible the time and dates for attendance offered by these Officers, because the latter frequently have to attend several Courts in the course of one time.

14. The Government of India in the Ministry of Home Affairs reserve the right to impose an extra charge in any case in which they consider on that. the usual fee is incommensurate with the time and labour spent on the case.

15. When the Government Examiner of Questioned Documents or his Assistant is required to travel in order to give evidence or for any other purpose the authority or party employing his services will be required to pay travelling allowance at the rates laid down in the supplementary rules of the Government of India for journeys on tour. Travelling allowances will also be payable for the Class IV servant accompanying the Officer at the rates fixed for Government of India, Class IV servants. These payments will be adjusted in the Home Department (now Ministry of Home Affairs) letter No. F. 128NII/27-Police, dated 12th January, 1928 (see appendix).

In class B cases the Presiding Officer of the Court concerned will be required to certify that the cost of travelling allowance has been deposited before the Government Examiner of Questioned Documents or his Assistant undertakes the journey.

Appendix

Procedure for the payment of Audit of Travelling Allowances drawn by the Government Examiner of Questioned Documents or his Assistant during tours (vide Home Department Lr. No. F. 128/ VII/27-Pol,-dated the 12th January, 1928)

(1)

The examiner or his assistant should submit his travelling allowance bills to the Accountant General, Central Revenues, for audit and payment.

(2)

As soon as a journey is completed that is in respect of any complete journey from headquarters to headquarters, the examiner or his assistant should send a statement to the Accountant-General, Central Revenues, showing the total amount of travelling allowance claimed or drawn and the distribution of the entire amount among the various courts for recovery.

(3)

In cases where several Courts are attended, the cost should be distributed between them in proportion to the distance by rail from the headquarters.

(4)

As the travelling allowance is debitable to the various local Governments or the parties concerned, the recoveries should be treated as follows:

(i)

Recoveries from the various local Governments shall be taken in reduction of expenditure provided they are effected within the accounts of the same year if not, they should be shown as receipts; and

(ii)

Recoveries from parties such as local boards, local bodies, and private persons should be taken as receipts under the Head XXIII—Police—Central—Fees, Fines and Forfeitures.

(2)

The principles laid down above apply to the payment and audit of the travelling allowance of the peon accompanying the examiner or his assistant.

(3)

If after the examiner or his assistant has actually commenced tour, intimation is received from a Court included in the tour to the effect that his evidence would not be required on the date originally fixed, the Court shall pay the difference between the total expenditure actually incurred or, the tour and the expenditure that would have been incurred if attendance in the Court had not been included in the tour. This shall be specifically made clear when the bill is sent to the Court for acceptance.

(4)

The examiner and his assistant shall observe the provisions of supplementary Rule 30 when they frame their programme for tour.

(Copy of letter No. 41/3/53-Police II, dated 6th July, 1953, from the Deputy Secretary to the Government of India)

(HCP Dis. No. 409/55)

High Court of Andhra Pradesh, Hyderabad

Circular

Read: - G.O.Ms.No. 2445, Home Department, dated 31st July, 1953 issued by the Government of Madras.

The attention of all Courts is drawn to the instructions issued by the Government of India contained in the G.O. cited for the guidance of Courts seeking the services of the Government Examiner of Questioned Documents, Simla.

The work of the Government Examiner of Questioned Documents, Simla, is mainly technical in character. He gives his opinion on the disputed documents referred to him after a meticulous and scientific examination. He also gives evidence in support of that opinion when required by the Courts.

Naturally, the Government Examiner has to work under extreme pressure to keep abreast of his technical work at the Head quarters and at the same time keep to the schedule of attendances at the Courts.

The Government of India feel that the pressure on the time of the Government Examiner should be relieved.

The attention of all Courts is drawn to paragraphs 12 and 13 of the instructions contained in the G.O. cited and it is necessary that those instructions should be strictly followed. All Courts should seek the attendance of the Government Examiner of Questioned Documents only when the requirements of any particular case demand it. Ordinarily they should be able to obtain his evidence on commission, which in civil cases should be issued to the Senior Sub-Judge, Simla and in Criminal Cases, under the provisions of Section 503, Cr.PC. (Old) (Section 284 (1) of New Cr.PC.).

(High Court Circular dated 19th February, 1954 in P. Dis. No. 110/54)

High Court of Andhra Pradesh, Hyderabad

Circular

Subject: - Applications for requisitioning the services of the Examiner of Questioned Documents at Simla—Appointment of a State Examiner of Questioned Documents, Andhra Pradesh, at Hyderabad—Services—Requisition of—Instructions—Issued.

It has been brought to the notice of the High Court that in requisitioning the services of the Government Examiner of Questioned Documents at Simla, some of the subordinate Courts do not appreciate his difficulties or the difficulties of his assistants, who besides actual examination of cases, have to attend Courts all over India. The State Government have since appointed a State Examiner of Questioned Documents for Andhra Pradesh at Hyderabad under the Administrative Control of the Inspector General of Police. The Government also propose to issue separate rules for regulating applications for and payment of fees to the State Examiner. The Presiding Officers of all subordinate Courts are

informed that in future, they should requisite the services of the State Examiner (Office of the Inspector General of Police), Hyderabad in all references relating to disputed documents.

(Copy of ROC No. 7152/57-B-1, dated 24th February, 1958 in P. Dis. 483/58)

Appendix-B

Rules regulating application for the payment of services of the Director, Scientific Section, C.I.D. Branch, Andhra Pradesh

1. Applications should be sent direct to the Director, Scientific Section, C.I.D. Branch, Saifabad Lines (A.C. Guards) Government of Andhra Pradesh, Hyderabad-4 (Deccan).

2. (i) Applications received from private individual will not be entertained.

(ii)

Applications received from Police Officers below the rank of Superintendent of Police will not be entertained.

3. Acceptable applications fall into four classes namely:—

(a)

applications from an Officer not below the rank of Superintendent of Police in respect of Police Department, Presiding Officers of Criminal Courts and from the High Court, Andhra Pradesh;

(b)

applications from the Head of Departments in respect of other departments of the Government of Andhra Pradesh;

(c)

cases from Municipal Corporations, District Boards, Municipalities and other local bodies and from Universities in Andhra Pradesh;

(d)

cases from private parties in civil suits in Andhra Pradesh Courts. These will be accepted only in application from the Court in which the cases are being heard. The party concerned must move the Court and it will rest with the Court, to take further steps necessary to obtain the services of the Director, Scientific Section, C.I.D. Branch.

Explanation: - Reference made by a Court suo motu in civil cases in which the State is not a party will be deemed to be cases from private parties for the purposes of these rules.

Note: - The Director, Scientific Section, C.I.D. Branch, will give preference to applications received from the Presiding Officers of Civil and Criminal Courts over others.

Applications from recognised Universities will be received direct. Applications from municipal corporations will also be received direct, but those from other local bodies will be accepted only if received through the competent District Magistrate or the Additional District Magistrate as the case may be, who should satisfy himself before forwarding the applications, that it is desirable that the Director, Scientific Section, C.I.D. Branch, should be consulted.

4. Applications falling under the above classes of (b)/(c) and (d) will ordinarily be accepted but may be refused at the discretion of the Director, Scientific Section, C.I.D. Branch. If they cannot be undertaken without detriment to his other work.

5. No fees are chargeable for cases coming under class (a). An inclusive fee of Rs. 220/- will be charged for each case under class (b) in which an opinion is given and will normally cover the opinion, the cost of photographs and the giving of evidence. An inclusive fee of Rs. 250/- will be charged for each case under class (c) and class (d) in which an opinion is given and will normally cover the opinion, the cost of photographs and the giving of evidence limited to one day.

This fee does not cover travelling allowance with regard to class (c) and class (d) cases which is governed by Rule 13 below.

6. Subject to the exception stated at the end of this rule, the fee is payable in advance in all cases and each application should be accompanied by a treasury challan showing the payment of the amount under the head of account "XXIII-Police '13' Miscellaneous (iv) Fees for the Director, Scientific Section, C.I.D. Branch, Andhra Pradesh".

In special circumstances, which should be stated in the application, class '13' cases will be accepted even without this challan, but the challan should be forwarded as soon as possible.

7. In cases where the cost of photographs is exceptionally heavy the fee will be Rs. 180/- plus actual cost of the photographs in class (b) cases, Rs. 200/- plus the actual cost of photographs in class (c) cases and Rs. 225/- plus the actual cost of photographs in class (d) cases.

In class (c) and in class (d) cases, the authority submitting the cases will be informed of the extra cost involved, before it is incurred and will be required to certify that it has been deposited before the Director or his Assistant Scientific Section,

C.I.D. Branch, proceeds with the case.'

8. (i) In cases in which no opinion is given but photographs are taken, only the actual cost of the photographs will be charged, subject to a minimum of Rs. 35/-.

(ii)

In cases in which examination has been completed but no opinion could be expressed, a consolidated fee of Rs. 100/- will be charged.

No reduction in the fee will be allowed if evidence is not required or is taken on commission.

"The Deputy Inspector-General of Police, Railways and C.I.D. shall be the authority who is competent to sanction refunds".

9. (i) In class (c) cases an additional fee of Rs. 100/- and in class (d) cases an additional fee of Rs. 200/- will be charged for each day after the first of day on which evidence is given whether in the Court or on commission, or on which the Officer is detained. The Presiding Officer or the Commissioner will be requested to certify before the second and each subsequent days work is begun that the fee for that day and also for any intervening day or days of detention has been deposited and subsequently to furnish a certificate referred to in Rule 6 above.

(ii)

A fee of Rs. 250/- will be charged in a civil suit even for the first day's evidence if evidence is taken upon and opinion expressed on the same documents when they formed part of a criminal case.

10. In cases under class (c) and in class (d) the Director or his Assistant, Scientific Section, C.I.D. Branch will be prepared to attend Courts provided that he can do so without detriment to his other work. When evidence is taken on commission, the commission should be issued to a Chief City Magistrate, Hyderabad.

11. Presiding Officers of Courts are requested to detain the Director or his Assistant, Scientific Section, C.I.D. Branch for the least possible time comparable with the requirements of the case. They are also requested to accept, so as far as possible, the time and dates for attendance offered by this Officer, as the latter has frequently to attend several Courts in the Course of one tour.

12. The Government of Andhra Pradesh in the Home Department reserves the right to impose an extra charge in any case in which they, consider that the usual fee is not commensurate with the time labour spent on the case.

13. When the Director or his Assistant, Scientific Section, C.I.D. Branch is required to travel in order to give evidence for any other purpose the authority or party employing his services is required to pay travelling allowance at the rates laid down by the Government of Andhra Pradesh for journeys on tour. Travelling Allowance will also be payable for the peon accompanying the Officer at the rates fixed for Government of Andhra Pradesh peons.

In class (c) and in class (d) cases, the Presiding Officer of the Court concerned will be required to certify that the cost of travelling allowance has been deposited before the Director or his Assistant, Scientific Section, C.I.D. Branch, undertakes the journeys.

G.O.Ms.No. 2033, dated the 30th August, 1958 and G.O.Ms.No. 1248— Home (Personnel-B) Department, dated the 30th May, 1959 in P. Dis. 483/58).

Forms Under Civil Rules Of Practice

Form No. 1

Rule 9(1) - Cause title in a Suit or Original Petition

In The Court of The District Munsif of.....

Original Suit No. 1 of 19.... or Original Petition No. 1 of 19.....

Between

1.2.

A.B.

Plaintiffs (or Petitioners)

and

1.2.

CD

Defendants (or Respondents)

Form No. 2

Rule 9 - Cause title of an Appeal

In The Court of The District Judge of.....

Appeal No of

Between:

1.2.

A.B., and C.D.

Appellants

and

1.2.

E.F. and G.H.

Respondents

On Appeal From The Court of The District Munsif of

(Original Suit No..... of)

(or Original Petition No..... of)

Between:

12

A.B., and C.D.

Plaintiffs

and

12.

E.F.G.H.

Defendants

Forms 3 And 4

Omitted by G.O.Ms.No.2603; Home; dated 7.10.1936.

Form No. 5

Rule 9 - Form Parts of Plaint or Original Petition

(Cause-title)

Plaint

(or Petition under the Guardian and Wards Act, 1890)

The above named plaintiffs (or petitioner) state as follows:

1. Tanjore Ramaswamy Chetty, the 1st plaintiff (or petitioner), is a dealer in grain and resides at.....

Tanjore Sivaswamy Chetty, the 2nd Plaintiff (or Petitioner), is a land owner, and resides at.....

The addresses of the plaintiffs (or petitioners) for service of all notices and process are -

2. Madura Munuswamy Pillai, the defendant (or respondent), is a land owner and resides at.....

Madura Ramaswamy Pillai, the 2nd defendant (or respondent) is an infant of about years and residing with Tanjore Maniam Pillai, a land owner at and is issued as the representative of Madura Venkatachala Pillai, land owner deceased.

3. Set out the facts showing the cause of action in consecutive numbered paragraphs.

4. The plaintiffs (or petitioners) estimate the value of the relief sought by them at the sum of Rs.

5. The plaintiffs (or petitioners) pray that --

(a)

Set out reliefs claimed in successive paragraphs.

Note: - We declare that what is stated in paragraphs (.....) is true to our knowledge and that what is stated in paragraphs () is stated on information and belief and we believe the same to be true.

(Signed)

T. Ramaswamy Chetty

(Signed)

T. Sivaswamy Chetty

Form No. 6

Rules 9 and 61 - Form parts of original petition when it is not intended to serve any person with notice thereof

In The Court of The District Munsif of.....

Original Petition No. 2 of 19.....

1. Ramaswamy Chetty

Petitioners

2. T. Sivaswamy Chetty

Petition under Indian Succession Act, 1865

The above named petitioners state as follows:-

1. Insert as in paragraph 1 of Form No. 5
2. Set out facts relied on in numbered paragraphs.
3. Insert as in paragraph 4 of Form No. 5
4. It is not intended to serve any person with notice of this petition.
5. The petitioners pray that—

(a)

Set out reliefs asked for in successive paragraphs.

(Here enter verification as in Form No. 5).

Form No. 7

Rules 16, 17 and 102 - List of documents under Order VII, R. 14 or Order XIII, R. 1 of the Code of Civil Procedure
(Cause title)

List of documents filed under Order VII, Rule 14 or Order XIII, Rule I of the Code of Civil Procedure

S.No.

Date if any of documents in Parties to the Description of
vernacular and in English

Parties to the document

Description of document

(Signed)

E.F.

Plaintiff (or Defendant) or Pleader for Plaintiff (or Defendant)

Form No. 8

Rules 14 and 45 of Part I, C.R.P. & C.O.

Particulars of value of immoveable property - Cause Title

Valuation of immovable property under Section 10 of the Andhra Pradesh Court Fees and Suits Valuation Act, 1956

1. Serial number of item of immovable property.
2. Registration district and sub-district.
3. Taluk and Village where the property is situate.
4. Survey number and sub-division number.
5. Extent.
6. Class of land, wet or dry..
7. Rental value of the land.
8. Present market value.
9. Value for purpose of court fee and jurisdiction with the provision of law under which it is valued.
10. Remarks.

(Signed) C.D.

(Signed) A.B.

Pleader for plaintiff

Plaintiff.

Substituted by ROC 21.10.60, B.I. Published in R.S. to Pt. II, Andhra Pradesh Gazette p. 326 Dated 5.10.1961.

Form No. 9

Rule 15 - Notice of grant of leave to be endorsed on summons to the defendant

And also take notice that leave to institute the said suit in this Court has been granted by an order, dated the day
of and that you are at liberty to apply to this Court to stay the said proceedings.

Form No. 10

Rule 12 - Application to sue or defend on behalf of numerous parties

(Cause-title)

Application of the above named plaintiffs, under Order 1, Rule 1 of the CPC.

The above named plaintiffs hereby apply that they may be permitted to sue on behalf of themselves and all the other

creditors of X, Y, late of (residence and description) deceased [or and all the other worshippers at the..... temple, situate.....] or, [to sue the defendants as representing all persons interested in the Tarwad of], for the reasons set out in the affidavit of AB. filed herewith.

Dated the..... day of.....

(Signed)

R.S.

Pleader of the Plaintiffs.

Form No. 11

Rule 12 - Notice of permission to sue on behalf of numerous parties

And also take notice that by an order, dated..... day of permission was granted to the plaintiff to sue on behalf of himself and all the other creditors..... X, Y..... lateof.....etc., deceased [or to sue you, the above named defendants as representing all persons interested in the Tarwad of.....].

Form No. 12

Rule 30 - Vakalat

(Cause title)

I do hereby appoint and retain-to-appear for me in the above Original suit Miscellaneous Petition and to conduct and prosecute (or defend) the same and all proceedings that may be taken in respect of any application for execution of any decree or order passed therein. I empower any vakil to appear in all miscellaneous proceedings in the above suit or matter till all decrees or orders are fully satisfied or adjusted and to obtain the return of documents and draw any moneys that might be payable to me in the suit or matter and I do further empower my vakil to accept on my behalf, service of notice of all or any of the appeals or petitions filed in any Court of Appeal. Reference or Revision with regard to the said suit or matter before the disposal of the same in this Hon'ble Court.

"Accepted" - The address for service of the said (Pleader) is....

Form No. 13

Rule 59 - Interlocutory Application

In The Court of The District Munsif of

Original Suit No. 1 of 19.....

Interlocutory Application No.....

Between:

1.2.

T. Ramaswamy Chetty and T. Sivaswamy Chetty

.....Plaintiffs

and

1.2.

M. Munuswamy Pillai and M. Ramaswamy Pillai

.....Defendants.

Application of the above named plaintiff under Order IX, R. 9 of the Code of Civil Procedure.

The plaintiffs' pray that the order made on the..... day of..... dismissing the suit for default of appearance by the plaintiffs may be set aside, and a day appointed for the trial of this suit and that the defendants may be ordered to pay the costs of this application.

On the hearing of this application the plaintiffs will read the three affidavits filed this day. Dated the..... day of.....

Signed) A.B.

Pleader for Plaintiff.

Form No. 14

Rule 39 - Affidavit on solemn Affirmation

(Cause-title)

1. I, Madura Ramaswamy Pillai, S/o. A.B. and a Hindu..... [.....] of.....years of age, land owner residing at..... do solemnly and sincerely affirm [or make oath and say] as follows:

1.

2.

(Signed) Madura Ramaswamy Pillai

Before me

L.S.

(Signed G.H.)Deputy Nazir of the said Court.

Note: - The word "of the caste" omitted by ROC No. 1464-60 PBI published in A.P. Gazette Rules Supplement to Part II dated 5.1.0.1961.

Form No. 15

Rule 41 - Certificate when deponent is unacquainted with the language of the affidavit or is blind or illiterate

Solemnly affirmed or sworn at the office of the..... (Court of the District Munsif of) this..... day of..... before me the contents of this affidavit [or solemn affirmation] [and the exhibits therein referred to] having been first truly and audibly read over to the deponent in telugu he being unacquainted with English [or being blind] who appeared perfectly to understand the same, and made his mark thereto [or signed the same] in my presence.

(Signed)

G.H. (Signed) G.H. (Description).

Form No. 16

Certificate to be endorsed on an exhibit to an affidavit

(Short Cause-title)

This is the exhibit marked "A" referred to in the affidavit of A.B., sworn [affirmed], before me this..... day of.....

(Signed)

C D. - Deputy Nazir.

Form No. 17

Rule 48(1) - Application for transfer of a suit

In The Court of The District Judge of.....

Original Petition No.of

Between:

1.2.

A.B. AndC.D.

Petitioner

and

1.2.

E.F. AndG.H

Respondent.

In the matter of the Original Suit No. of the file of the file of Court of the District Munsif of

Between:

1.2.

E.F. andG.H.

Plaintiffs

and

1.2.

A.B. andC.D.

Defendants.

Petition of A.B. and C.D., under Sections 22 to 24 of the Code of Civil Procedure. The above named petitioners state as follows:

1. and

2. (Proceed as in paragraphs 1 and 2 of Form No. 5 supra)

3. State shortly the reason for the application (as thus): Your petitioners and their witnesses reside within the jurisdiction of the Court of the District Munsif of at a distance of 40 miles from the Court of the District Munsif of and it will cause them great loss of time and great expense to attend at the latter Court.

4. Your petitioners therefore pray—

(a)

That notice of this application may be issued to the above named respondents.

(b)

That the above mentioned suit may be transferred to the Court of the District Munsiff of;

(c)

That the respondents may be ordered to pay the costs of this petition.

(d)

For such other reliefs as to this Court may seem fit.

Note: - We declare that what is stated in paragraphs (....) is true to our knowledge and that what is stated in paragraphs (....) is stated on information and belief and we believe the same to be true.

Vide Order VI, Rule 15(2), Civil Procedure Code, 1908)

(Signed)

A.B.

(„) C.D.

Verification

Form No. 18

Rules 63 & 64 - Notice of application to transfer suit

(Cause-title as in Form No. 17)

To

Take notice that on the.....day of.....an application was presented to this Court by the above named A.B. and C.D for the transfer of the above mentioned suit to the Court of the District Munsif ofand, that this Court has appointed the day offor the hearing thereof, when you are at liberty to appear and oppose the same; and also take notice that the said application is supported by the affidavit of P.O. of etc., and R.S. of etc., and that you are at liberty to file an affidavit in reply thereto and you are not required to file any petition for this purpose.

Dated theday of.....19.....

(Signed)

.....

Judge.

Form No. 19

Rule 70 - Common form of summons for: (1) settlement of issues; (2) ascertaining whether a suit is contested or not and V not contested, for immediate disposal; (3) final disposal

(Order V, Rules 1 and 5 of the Code)

(Cause-title)

To

(Name, description and place of residence)

Whereas.....has instituted a suit against you for..... you are hereby summoned to appear in his Court in person or by a pleader duly instructed and able to answer all material questions relating to the suit [or who shall be accompanied by some person able to answer all such questions) on the..... day of19.... at O'clock in the noon.

(1)

to answer the claim and you are directed to produce on that day all the documents upon which you intend to rely in support of your defence;

(2)

to state whether you contest or do not contest the claim and if you contest to receive directions of Court as the date on which you have to file the written statement, the date of trial and other matters; take notice that in the event of the claim not being contested the suit shall be decided at notice;

(3)

to answer the claim and as the day fixed for your appearance is appointed for the final disposal of the suit you must be prepared to produce on that day all the witnesses upon whose evidence and all the documents upon which you intend to rely in support of your defence.

[x x x x x] penalty clause omitted.

Take notice that in default of your appearance on the day (and hour), before mentioned, the suit will be heard and determined in your absence Given under my hand and the seal of the Court, this day of.....

Judge.

Note:

(1)

Should you apprehend your witnesses will not attend of their own accord, you can have a summons from this Court to compel the attendance of any witness and the production of any document that you have a right to call on the witness to produce, on applying to the Court and on depositing the necessary expenses.

(2)

If you admit the claim, you should pay the money into Court together with the cost, of the suits, to avoid execution of the decree which may be against your person or property or both.

(3)

[You are hereby informed the following:

(a)

The Services of an advocate from the District Legal Services Authority are available, as per the eligibility criteria applicable to litigants. In case you desire to avail the services of an advocate from the District Legal Services Authority, you may contact to the Secretary, District Legal Services Authority, Nyaya Seva Sadan, District Court Buildings /Chairman, Mandal Legal Services Committee, Court Buildings, Legal Aid is given free of charge, subject to eligibility.

(b)

In case you are inclined to settle the matter amicable you may approach the coordinator of the District Mediation Centre Nyaya Seva Sadan, District Court Buildings,during working hours. A Pamphlet explaining the mediation process is attached].

Form No. 20

Rule 93 - List of witnesses for issue of summons

(Cause-title)

List of persons to be summoned as witnesses for the plaintiff (or defendant)

Sl. No.

Full Name

Residence

Occupation or other description

Purpose for which summoned

Allowance

Service Fees

1.

Madura Manuan pillai

Door No. 2, Civil Street Peddu Natck's Pettan, Madras.

Cooly

To give evidence

Rs. Rs.

Rs. Rs.

2.

Tanjore Kuppuswamy Nayudu

Door No. 11, Mount Rd, Royapeta Madras.

Land Owner

To produce a deed, dated.... day of being assignment of by

A.B. to C

Total

A detailed memorandum of the amount to be deposited in Court is presented herewith. It is requested that summonses may be issued as above.

(Signed)

E.F.,

Pleader for plaintiff/defendant.

Form No. 21

Rule 107-Issues

(Cause-title)

The suit coming on this day for the settlement of issues in the presence of etc., and the vaki] for the plaintiff applying that a commission may issue for the examination of certain witnesses on his behalf, it is ordered that the following issues be tried.

1.

2. (Insert the issues as framed by the Judge)

3.

And it is ordered that E.F., of (address and description) be appointed as Commissioner to take the examination of the persons described in the schedule hereto, and for that a commission do issue to the Court of the District Munsif of.....to take the examination of the persons described in the schedule here to, and that such Court be requested to make return of such examination to this Court as soon may be, and in any case before the.....day of..... and that A.B., the plaintiff, do on or before the..... day of pay into Court the sum of Rs. for the expenses of such commission *To be omitted if the commission be issued to another Court. [and the further sum of Rs. on account of the remuneration and costs of the Commissioner] and that the question of *To be omitted if the commission be issued to another Court. [the amount of such remuneration and of] the costs of the said commission be reserved until the Commissioner shall, have made his return..... [or and if appearing to the Court that the evidence of the persons for the examination of whom the plaintiff applies for a commission is not material or relevant to the above issues it is ordered that the said application be refused]..... and the..... day of..... is appointed for the trial of this suit.

Schedule

Sl. No.

Name

Father's Name

Address

Description

1.

2.

3.

Form No. 22

Rule 128 - Letter of request by one Court to the Presiding Judge of another Court for the production of records

To

The Judge of the Court of.....

Whereas upon the application for the above named plaintiff-appellant/ defendant-respondent it has been made to appear to this Court that a perusal of the undermentioned papers, now in your custody is of material importance in the suit above appeal now before this Court and it is found that the production of matter the original documents is necessary for the purpose of justice, you are hereby requested to cause the said papers to be produced in this Court, or to transmit the said papers to this Court..... or before the day of..... (Enter description of papers).

(Signed)

.....

Form No. 23

Rule 129 - Summons for the production of public records and other documents in the possession of a public servant other than a Court

(Cause-title)

To

Whereas upon the application of the above named plaintiff-appellant/ defendant-respondent it has been made to appear to the Court that the perusal of the undermentioned papers, now in your custody, is of material importance in the above suit/appeal/matter now before this Court and that the production of the original matter/documents is necessary for the purpose of justice, or that the said applicant cannot obtain a duly authenticated copy of the same without unreasonable delay or expense, you are hereby requested to cause the said papers to be produced in this Court or to transmit the said papers to this Court, or to forward to this..... Court a duly authenticated copy of the said document..... on or before the..... day of..... (Enter description of paper).

(Signed)

.....

Judge.

Form No. 23-A

Rule 129-Summons for production to public records and other documents in the possession of a public servant other than a Court

(Cause-title)

To

The Speaker, Lok Sabha,
Legislative Assembly.

The Chairman, Rajya Sabha,
Legislative Council.

Whereas upon the application of the above named plaintiff/defendant, appellant/respondent it has been made to appear to this Court that a perusal of the undermentioned paper, now in the custody of the Secretary of the Lok Sabha/Rajya Sabha/State Legislature is of material importance in the above suit/appeal/ matter now before this Court and that the production of original documents is necessary for the purpose of justice, or that the said applicant cannot obtain duly authenticated copy of the same without reasonable delay or expense, you are hereby requested to direct your Chief Executive Officer to make arrangements for the transmission of or to forward to this Court a duly authenticated copy of the said document on or before the..... day of.....(Enter description of papers).

(Signed)

.....

Judge.

Note: - Form No. 23-A was inserted by ROC No. 3528-58-1 B published in Rules Supplement to Part II of the Andhra Pradesh Gazette, p. 224 on 20.7.1961.

Form No. 24

Rule 143 - Heading of the Judgment

In The Court of The District Judge of

Present - A. B Esquire

Tuesday, the 3rd day of January, 19.....

Original Petition No. of

(or Original Suit No. of.....)

Between:

12.

A.B. andC.D.

Plaintiff (or Petitioners)

and

12.

E.F. andG.H.

Defendants (or Respondents)

The suit (or original petition), coming on for final hearing on Wednesday, Thursday and Friday the 18th, 19th and 20th of January, 19.... in the presence of etc., and having stood over for consideration to this day, the Court delivered the following judgment:

Or, in the case of an appeal.

In The Court of The District Judge of

Present - A.B. Esquire

Tuesday, the 3rd day of January, 19.....

Appeal No..... of.....

Between:

12.

A.B. andC.D.

Appellants

and

12.

E.F. and G.H.

Respondants

On appeal from the decree (or order) of the Court of the District Munsifs Dated the..... day of..... and made in

Original Suit No.

Interlocutory Application No.

Between:

1.2.

A.B. and C.D.

Appellants

and

1.2.

E.F.G.H.

Respondants

This appeal coming on the day in the presence of etc., (or having been heard on the..... day of..... in the presence of etc., and having stood over to this day, for consideration), the Court delivered the following judgment:—

Form No. 25

Rule 146 - Forms of concise statements

Money lent

The plaintiff's claim is Rs. for money lent (and interest).

Several Demands

The plaintiff's claim is Rs. where of Rs. is for the price of goods sold and Rs. for money lent for interest.

Rent

The plaintiff's claim is Rs. for arrears of rent.

Salary etc.

The plaintiff's claim is Rs. for arrears of salary as a clerk [or, as the case may be]

Interest

The plaintiff's claim is Rs. for interest upon money lent.

General Average

The plaintiff's claim is Rs. for a general average contribution.

Freight etc.

The plaintiff's claim is Rs. for freight and demurrage.

Bank balance

The plaintiff's claim is Rs. for money deposited with the defendant as a banker.

Fees etc., as pleader

The plaintiff's claim is Rs. for fees for work done [and Rs. money expended] as a pleader

Commission

The plaintiff's claim is Rs. for commission earned (state character as auctioneer, cotton broker, etc.)

Medical attendance

The plaintiff's claim is Rs. for medical attendance.

Return of Premium

The plaintiff's claim is Rs. for return of premiums paid

upon policies of insurance.

Warehouse rent

The

Carriage of goods

The plaintiff's claim is Rs. for the carriage of goods by Railway.

Use and occupation of house

The plaintiff's claim is Rs. for the use and occupation of a house.

Hire of goods

The plaintiff's claim is Rs. for the hire of [furniture].

Work done

The plaintiff's claim is Rs. for work done as a Surveyor.

Boarding and Lodging

The plaintiff's claim is Rs. for boarding and lodging.

Schooling

The plaintiff's claim is Rs. for the [boarding, lodging and] tuition of X.Y.

Money received

The plaintiff's claim is Rs. for money received by the defendant as pleader [or collector or etc.] of the plaintiff.

Fees of office

The plaintiff's claim is Rs. for fees received by the defendant under the office of.

Money overpaid

The plaintiff's claim is Rs. for a return of money overcharged for the carriage of goods by railway. The plaintiff's claim is Rs. for a return of fees overcharged by the defendant as.....

Return of money by stake-holder

The plaintiff's claim is Rs. for a return of money deposited with the defendant as stake-holder.

Money won from stake-holder

The plaintiff's claim is Rs. for money entrusted to the defendant as stake-holder and become payable to plaintiff.

Money entrusted to agent

The plaintiff's claim is Rs. for a return of money entrusted to the defendant as agent of plaintiff.

Money obtained by fraud

The plaintiff's claim is Rs. for a return of money obtained from the plaintiff by fraud.

Money paid by mistake

The plaintiff's claim is Rs. for a return of money paid to the defendant by mistake.

Money paid for consideration which has failed

The plaintiff's claim is Rs. for a return of money paid to the defendant for [work to be done, or, work left undone; or a bill to be taken of a bill not taken up; or etc.] The plaintiff's claim is Rs. for a return of money paid as a

deposit upon shares to be allotted.

Money paid by surety for

The plaintiff's claim is Rs. for money paid for the defendant as his surety.

Defendant Rent paid

The plaintiff's claim is Rs. for money paid for rent due by the defendant.

Money paid on accommodation bill

Money paid on accommodation The plaintiff's claim is Rs. upon a bill of exchange accepted [or endorsed] for the defendant's accommodation.

Contribution by surety

The plaintiff's claim is Rs. for a contribution in respect of money paid by the plaintiff as surety.

By-co-debtor

The plaintiff's claim is Rs. for a contribution in respect of a joint debt of the plaintiff and the defendant, paid by the plaintiff.

Money paid for calls

The plaintiff's claim is Rs. for money paid for calls upon shares, against which the defendant was bound to indemnify the plaintiff.

Money payable under award

The plaintiff's claim is Rs. for money payable under an award.

Life policy

The plaintiff's claim is Rs. upon a policy of insurance upon the life. X, Y. deceased.

Money bond

The plaintiff's claim is Rs. upon a bond to secure payment of Rs. and interest.

Foreign judgment

The plaintiff's claim is Rs. upon a judgment of the Court in U.S.S.R.

Bills of exchange etc

A.B., as acceptor, and against the defendant C.D., as drawer [or endorser] of a bill of exchange.

Surety.

The plaintiff's claim is Rs. against the defendant as surety for the price of goods sold. The plaintiff's claim is Rs. against the defendant. A.B., as principal, and against the defendant C.D., as surety, for the price of goods sold [or for arrears of rents, or for money lent, or for money received by the defendant A.B., as traveller for the plaintiff, or etc.]

Calls

The plaintiff's claim is Rs. for calls upon shares.

Endorsement for Costs, etc.

Costs, etc.

[add to the above forms] and Rs. for costs, and if

Costs, etc. the amount claimed to be paid to the plaintiff or his

pleader within days [or if the summons is to be served out of the jurisdiction, insert the time for appearance by the order] from the service hereof, further proceedings will be stayed.

Damage and other claims

Agents etc.

The plaintiff's claim is for damages for breach of a contract to employ the plaintiff as traveller. The plaintiff's claim is for wrongful dismissal from the defendant's employment as traveller [and Rs. for arrears of wages].

The plaintiff's claim is for the damages for the defendant's wrongfully quitting the plaintiff's employment as manager.

The plaintiff's claim is for damages for breach of duty as factor, [or etc.] of the plaintiff [and Rs. for money received as factor, etc.]

Apprentices

The plaintiff's claim is for damages for breach of terms of a deed of apprenticeship of X,Y to defendant [or plaintiff].

Arbitration

The plaintiff's claim is for damages for non-compliance with the award of X, Y.

Assaults etc.

The plaintiff's claim is for damages for assault [and false imprisonment, and for malicious prosecution].

By husband and wife

The plaintiff's claim is for damages for assault and false imprisonment of the plaintiff, C.D.

Against husband and wife

The plaintiff's claim is for damages for the assault by defendant C.D.

Pleader

The plaintiff's claim is for damages for injury by the defendant's negligence as pleader of the plaintiff.

Bailment

The plaintiff's claim for damages for negligence in the custody of goods [and for wrongfully detaining the same].

Pledge

The plaintiff's claim is for damages for negligence in the keeping of goods pawned [and for wrongfully detaining the same].

Hire

The plaintiff's claim is for damages for negligence in the custody of furniture [or carriage] lent on hire [and for wrongfully, etc.]

Banker

The plaintiff's claim is for damages for wrongfully neglecting [or refusing] to pay plaintiff's drafts.

Bill

The plaintiff's claim is for damages for breach of contract to accept the plaintiff's cheque.

Bond

The plaintiff's claim is upon a bond conditioned not to carry on the trade of a.....

Carrier

The plaintiff's claim is for damages for refusing to carry the plaintiff's goods by Railway.

The plaintiff's claim is for damages for breach of duty in and about the carriage and delivery of coals by Railway. The plaintiff's claim is for damages for breach of duty in and about the carriage and delivery of machinery by sea.

Charter-party

The plaintiff's claim is for damages for breach of charter party of ship [Mary].

Claim for return of goods damaged

The plaintiff's claim is for return of household furniture [or etc.] or their value and for damages for detaining the same.

Damages for depriving of goods

The plaintiff's claim is for wrongfully depriving plaintiff of goods, household furniture etc.

Defamation

The plaintiff's claim is for damages for libel. The plaintiff's claim is for damages for slander.

Wrongful distress

The plaintiff's claim is for damages for improperly distraining.

This form shall be sufficeent whether the distress complained to be wrongful or excessive or irregular

Ejectment

The plaintiff's claim is to recover possession of house No..... in..... Street or of a farm called Black acre situated in the.....of..... in the.....

To establish title and recover rents

The plaintiff's claim is to establish title to [here describe property] and to recover the rents thereof. [The two previous forms may be combined].

Fishery

The plaintiff's claim is for damages for infringement of the plaintiff's right of fishing.

Fraud

The plaintiff's claim is for damages for fraudulent misrepresentation on the sale of a horse [or a business, or shares, etc.]The plaintiff's claim is for damages for fraudulent misrepresentation of the credit of A.B.

Guarantee

The plaintiff's claim is for damages for breach of a contract of guarantee for A.B.The plaintiff's claim is for damages for breach of a contract to indemnify the plaintiff as the defendant's agent to distrain.

Insurance

The plaintiff's claim is for a loss under a policy upon the ship [Royal Charter], and freight to cargo [or return of premiums].

(The form shall be sufficient whether the loss claimed be total or partial)

Fire Insurance

The plaintiff's claim is for a loss under a policy of fire insurance upon house and furniture. The plaintiff's claim is for damages for breach of a contract to insure a house.

Landlord and tenant

The plaintiff's claim is for damages for breaches of a contract to keep a house in repair. The plaintiff's claim is for damages for breach of covenants contained in a lease of a farm.

Medical man

The plaintiff's claim is for damages for injury to the plaintiff from the defendant's negligence as a medical man.

Mischievous animal

The plaintiff's claim is for damages for injury by the defendant's dog.

Negligence

The plaintiff's claim is for damages for injury to the plaintiff by the negligent driving of the defendant or his servants. The plaintiff's claim is for damages for injury to the plaintiff while a passenger on the defendant's railway by the negligence of the defendant's servants. The plaintiff's claim is for damages for injury to the plaintiff at the defendant's railway station from the defective condition of the station.

Act XIII of 1855

The plaintiff's claim is as executor of A.B., deceased for damages for the death of the said A.B., for injuries received, while a passenger of the defendant's railway, by the negligence of the defendant's servants.

Promise of marriage

The plaintiff's claim is for damages for breach of promise of marriage.

Sale of goods

The plaintiff's claim is for damages for breach of contract to accept and pay for goods. The plaintiff's claim is for damages for non-delivery, [or short delivery or defective quality, or other breach of contract of sale] of cotton (or etc.) The plaintiff's claim is for damages for breach of warranty of a house.

Sale of land

The plaintiff's claim is for damages for breach of contract to sell [or purchase] land. The plaintiff's claim is for damages for breach of contract to accept and pay for goods. The plaintiff's claim is for damages for breach of a contract for title [or take] a house. The plaintiff's claim is for damages for breach of a contract to sell [or purchase] or lease with good-will, fixtures and stock-in trade of a public house. The plaintiff's claim is for damages for breach of Covenant for title or for quiet enjoyment (or etc.) in a conveyance of land.

Trespass on land

The plaintiff's claim is for damages for wrongfully entering the plaintiff's land and drawing water from his well (or cutting

his grass or felling his timber, or pulling down his fences or removing his gate or using his road or path, or crossing his field, or depositing sand there or carrying away gravel from thence, or carrying away stones from the river).

Support

The plaintiff's claim is for damages for wrongfully taking away the support of plaintiff's land [or house or mine].

Way

The plaintiff's claim is for damages for wrongfully obstructing a way (public highway or private way).

Water course etc.

The plaintiff's claim is for damages for wrongfully diverting (or obstructing or polluting, or diverting water from) water course. The plaintiff's claim is for damages for wrongfully discharging water upon the plaintiff's land (or into the plaintiff's mine). The plaintiff's claim is for damages for wrongfully obstructing the plaintiff's use of a well.

Pasture

The plaintiff's claim is for damages for the infringement of the plaintiff's right of pasture.

Light

The plaintiff's claim is for damages for obstructing the access of light to plaintiff's house.

Patent

The plaintiff's claim is for damages for the infringement of the plaintiff's patent.

Copyright

The plaintiff's claim is for damages for infringement of plaintiff's copyright.

Trade-mark

The plaintiff's claim is for damages for wrongfully using (or imitating) the plaintiff's trademark.

Work

The plaintiff's claim is for damages for breach of a contract to build up a ship (or to repair a house etc.) The plaintiff's claim is for damages for breach of contract to employ plaintiff to build a ship etc.

Nuisance

The plaintiff's claim is for damages to his house, trees, crops, etc., caused by noxious vapours from the defendant's factory (or etc.) The plaintiff's claim is for damages from nuisance by noise from the defendant's works (or stables or etc.)

Injunction

(Add to endorsements) and for an injunction.

Mesne profits

(Add to endorsement where claim is to land or to establish title or both) and for mesne profits.

Arrears of rent

and for an account of rents or arrears of rents

Breach of Covenant

and for breach of covenant for (repairs).

1. Creditor to administer estate: - The plaintiff's claim is as a creditor of X,Y, of.....deceased to have the movable and immovable property of the said X,Y, administered. The defendants C, D., is sued as the administrator of the said X,Y, (and defendants, E, F. and G,H., as his co-heirs-at-law)..
2. Legatees to administer estate: - The plaintiff's claim is as a legatee under the Will, dated the.....day of 19..... of X, Y The defendant, C, D is used as the executor of the said X, Y (and the defendants E, F and G, H as his devisees).
3. Partnership: - The plaintiff's claims to have an account taken of the partnership dealings between the plaintiff and defendant (under articles of partnership dated the..... day of..... and to have the affairs of partnership wound up.
4. By Mortgage: - The plaintiff's claim is to have an account taken of what is due to him for principal, interest and costs on a mortgage dated the..... day of..... made between (parties) or, (by deposit of title deeds), and that the mortgage may be enforced by foreclosure or sale.
5. By Mortgagor: - The plaintiff's claim is to have an account taken of what, if anything is due on a mortgage dated..... and made between (parties) and to redeem the property comprised therein.
6. Raising Portions: - The plaintiff's claim is that the sum of Rs..... which by a deed of settlement, dated..... was provided for the portions of the younger children of.....may be raised.
7. Execution of Trusts: - The plaintiff's claim is to have the trusts of an indenture dated.....and made between (parties) carried into execution.
8. Cancellation or Rectification: - The plaintiff's claim is to have a deed dated.....and made between (parties) set aside or rectified.
9. Specific Performance: - The plaintiff's claim is for specific performance of an agreement dated the.....day of.....for the sale by the plaintiff to the defendant of certain (freehold) hereditaments at.....

Form No. 26

Rule 148 - Decree under O. XXI, R. 11 (1) of the Code

(Cause-title)

This suit coming on this day for final disposal before in the presence of.....on the part of the plaintiff, and on the part of the defendant it is ordered as follows:

1. That C.D., the defendant, do pay to A.B., the plaintiff, the sum of Rs..... and also the sum of Rs. for the costs of the suit together with interest on the said sums at the date of Rs..... per cent, per annum from this day until payment thereof respectively.
2. That if the said sums are not paid a warrant do issue for the arrest of the said C.D.
3. That if a warrant is issued as aforesaid, defendant, do pay to the plaintiff the further sum of Rs. for his costs thereof and that the said sum be inserted in the warrant accordingly.

Given under my hand and the seal of the Court, this..... day..... of.....19....

L.S.

Judge.

Form No. 27

Rule 150 - Order setting aside an ex parte decree under which moneys have been recovered

(Cause-title)

Upon reading the petition of the above named defendant presented to this Court on the..... day of..... praying that the decree herein dated the day of the..... may be set aside, and upon hearing Mr..... Vakil for the defendant and Mr..... Vakil for the plaintiff it is ordered as follows:

1. That the said decree set aside, and this suit be posted for final hearing before this Court on the..... day of.....
2. That the plaintiff do on or before the..... day of..... pay into the Court the sum of Rs..... being the amount recovered by him the defendant under the said decree, and to abide by the further order of this Court.
3. That the cost of this hearing be reserved to the final disposal of this suit.

Form No. 28

Rule 150 - Decree dismissing suit after order in Form No. 27

(Formal parts)

It is decreed that this suit be dismissed and that the sum of Rs..... now in Court be paid to the defendant; and it is decreed that the plaintiff do pay to defendant the sum of Rs.....(being interest at the rate of Rs..... per cent per annum on the said principal sum of Rs. X from the day of (date of payment by defendant) to this day,) also and the sum of Rs. Z, for his costs of this suit and of the order herein, dated the..... day of..... together with further interest on the

said sum of Rs. Y and Rs. Z at this rate aforesaid from this day to the date of realisation.

Form No. 29

Rule 151 - Decree reversing the decree of a lower Court, under which moneys have been recovered

(Cause-title)

And it is appearing that on the..... day of..... the plaintiff in the above suit recovered from the defendant, under the said decree, the sum of Rs. X, it is decreed as follows:—

1. That the said decree be reversed, and the said suit dismissed.
2. That A.B., the plaintiff, do pay to C.D., the defendant the said sum of Rs.X, and the sum of Rs. Y being interest thereon at rate of Rs per cent per annum from the said..... day of..... to this day), and also the sum of Rs. Z for his costs of this appeal; and the sum of Rs..ZZ for his costs of the said suit making in all the sum of Rs. (X+Y+Z+ZZ) together with further interest on the said aggregate sum at the said rate from this day to the date of realisation.

Form No. 30

Rule 151 - Decree reversing the decree of a lower Court, when possession has been given thereunder

(Cause-title)

And it appearing that on the..... day of the plaintiff in above suit obtained possession of the immoveable property specified, in the schedule hereto, under the said decree, and that he has since that day been in receipt of the rents and profits thereof, it is decreed as follows:—

1. That the said decree be reversed and the suit dismissed.
2. That A.B., the plaintiff do forthwith deliver possession of the said property to C.D., the defendant, and do also pay to the said defendant the mesne profits of the said property from the said..... day of..... until delivery of possession or until the..... day of..... if possession is not sooner delivered together with interest thereon at the rate of Rs..... per cent per annum from date of receipt by the plaintiff until realisation.
3. That the plaintiff do pay to the defendant the sum of Rs..... for his costs of this appeal, and also the sum of Rs..... for his costs of the said suit, making in all the sum of Rs..... together with interest thereon at the rate aforesaid from this day until realization.

Form No. 31

Rule 156 - Setting off costs

And it is declared that the plaintiff is entitled to the sum of Rs..... for the costs of the suit and defendant is entitled to the sum of Rs..... for his costs of the set off claimed by him in his written statement, dated the day of..... (or of the commission to take evidence herein dated, the day of..... or as the case may be) and it is ordered that the said costs be set off against one another, and that the plaintiff (or defendant) do pay to the defendant (or plaintiff) the sum of Rs..... being the balance of the said costs.

Form No. 32

Rule 159 - Order for withdrawal of suit

(Cause-title)

The suit coming on this day for hearing in the presence of..... etc., and the plaintiff by his pleader applying for leave to withdraw from this suit and for liberty to bring a fresh suit, it is ordered as follows:—

(1)

That upon payment by the plaintiff to the defendant, on or before the..... day of of the sum of Rs..... for the costs to this suit the plaintiff do have leave to withdraw from this suit and be at liberty, to bring a fresh suit for the same cause of action.

(2)

That in default of payment as aforesaid within the said period this suit shall stand dismissed with costs, and the plaintiff shall pay to the defendant the sum of Rs..... for his costs of this suit together with the interest thereon at the rate of Rs..... per cent per annum from this day until realisation.

Form No. 33

Rule 161 - Statement of objection and surcharge against an accounting party

(Cause-title)

Statement of objections (and surcharge) of the above named plaintiff against the above named A.B., the 1st defendant under the account directed by interim decree in the above suit dated the day of....

1. The plaintiff objects to the payment by A.B., that 1st defendant, hereinafter particularised, included in his statement of

account marked A, filed in Court on the..... day of..... (or to the payment by and allowances to A.B., the 1st defendant, hereinafter particularised which C.D., the Commissioner appointed by the said interim decree, has by his report dated the..... day of credited and found to be due to the said defendant) that is to say --.

Number of items

Reference to of account

Date of payment

Name of persons to whom paid

Particulars of amount paid

Amount paid or allowed

Nature of objection to the payment

Rs.

Ps.

Total

2. The plaintiff seeks to charge A.B., the first defendant, with the several sums of money hereinafter particularised beyond what the said defendant has, by his said statement of account, admitted to have been received by him (or beyond what the said Commissioner has, by his said report, found to be due by the said defendant) that is to say:

No. of terms

Date when received

Name of person from whom received

Amount received

Reasons of Surcharge

Rs.

Rs.

Total

3. The plaintiff claims that the 1st defendant should be debited with the said sums of Rs..... and Rs..... making in all the sums of Rs and that the total balance on the said account due from the said defendant is Rs..... Dated this..... day of.....

(Signed) G.HPleader for the Plaintiff

(Signed) E.F.,Plaintiff.

If the objections are lengthy, they may be set out in consecutive numbered paragraphs following the tabular form, and referring to the number of the item therein.

Form No. 34

Rule 137 - Interim decree appointing Commissioner to vouch accounts

(Proceed as in Form No. 40, but in place of paragraph 7 onwards insert the following)

7. E. F., (address and description) is appointed Commissioner to audit the books and papers of the partnership, and to touch the several items of accounts, as in the preceding paragraph mentioned and shall on or before the..... day of..... file in Court his proceeding and the statement of account and balance sheet prepared by him.

8. All parties shall be at liberty to file in Court, on or before the day of..... a statement of their objection to the said statement of account and balance sheet, and at any time to inspect any of the said books, statements or balance sheet.

9. The question of the remuneration of the said Commissioner is reserved until the consideration of this report.

10. On or before the..... day of..... the plaintiff shall pay into Court the sum of Rs..... for the expenses of the said Commissioner, and the further sum of Rs..... to abide by the order of the Court as to the said remuneration; and shall also bring into Court copies of the plaint, written statement, and issues herein, and of this decree; for delivery to the Commissioner.

11. The several parties hereto shall forthwith deliver to the Commissioner all books and papers relating to the partnership in their possession or power, respectively, and such books and papers are now in Court shall also be delivered out to him.

(Or if Receiver has been appointed and paragraph 9 of Form No. 40 is inserted)

12. The Receiver hereby appointed shall whenever so required by the Commissioner produce before him all books and papers of the partnership in his hands and all books and papers of the partnership now in Court shall be delivered out to the said Commissioner.

Form No. 35

Rules 138 and 179 - Declaration as to partnership accounts

1. The books of the partnership contain sums paid by the 1st defendant on account of the X charity, which are not chargeable to the firm and the same, commencing with the sum of Rupees paid to S., on the..... day of..... must be disallowed accordingly.
2. The purchase of 100 bales of piece goods for Rupees made by the 1st defendant on the..... day of..... was on his own behalf, and is to chargeable to the firm and in taking the partnership account all items relating to the said transactions must be excluded accordingly.
3. The business of dealer in grain carried on by the 1st defendant at was carried on by means of the capital of the partnership and the assets thereof and all transactions relating thereto must be included in taking the accounts hereby directed.
4. Except as herein before mentioned the accounts of the partnership have been regularly and properly kept and correctly represent all the dealings and transactions thereof. Accounts were last settled between the parties hereto on the..... day of..... and the same and all previous settlements of accounts ought not be disturbed.

Form No. 36

Rule 138 - Interim decree appointing a Commissioner to take accounts

(Proceed as in Form No. 40, but in place of paragraph 7 onwards insert as follows)

7. E.F. (address and description) is appointed Commissioner to take accounts directed by the preceding paragraphs, in accordance with the declarations herein before contained; and for this purpose shall have power to call for and examine such books and documents and examine witnesses he may think fit, and shall on or before the..... day of..... return to this Court his proceeding and report; and shall state what in his opinion are proper and just allowances and what disbursements and receipts are attributable to the partnership, and what is due from any party to any other party.
8. All parties shall be at liberty to file in Court on or before the day of..... a statement of their objections to the said report and at any time to inspect the said report and any statement of objections, and any books or papers of the partnership.
- 9.
10. Insert paragraphs 9, 10 and 11 as in Form No. 34.

Form No. 37

Rule 139 - Report of Commissioner appointed to take partnership accounts

(Cause-title)

Report of E.F., the Commissioner appointed by the interim decree herein dated the..... day of.....

1. In pursuance of the said decree I have examined the books and papers of the partnership therein mentioned and taken the accounts thereby directed. A copy of any proceedings is annexed hereto, and Appendix I thereto sets out the names of the witnesses examined and Appendix II the documents proved before me.
2. The credits, property and effects to the said partnership consist of the particulars specified in Schedule I hereto, whereof Part I sets out assets in hand and Part II assets still outstanding. I estimate the value of the several particulars mentioned in the said schedule and the several amounts set opposite thereto respectively in the third column and the total value thereof at the sum of Rs..... The particulars mentioned in Schedule II are irrecoverable or valueless, and I have therefore not included them in the assets of partnership.
3. The debts and liabilities of the said partnership are specified in Schedule III hereto, and amount to the sum of Rupees..... and including advance, made to the firm by the several partners, amount to Rs.....
4. The particulars of the advances made to the firm by the several partners are set forth in Schedule IV hereto.
5. After deducting from the total estimated value of the assets of the partnership, the total amounts due from the firm to third parties, the sum due to the partners for advances and capital, and the sum of Rs..... for the estimated costs of this suit, as specified in Schedule VI hereto, there remains the sum of Rs..... as the estimated net profits of the partnership.
6. The separate accounts of the several parties hereto, showing the several sums drawn by them on account of profits, the amounts due to them respectively, for capital advances and profits and the balance due to or by them respectively, are set forth in Schedule V hereto under their respective names.

Or if there has been a loss: -

5. The debts and liabilities of the partnership, together with the estimated costs of this suit, as shown in Schedule VI

hereto, exceed the estimated value of the assets by the sum of Rupees..... which must be debited to several partners in the following sums; to the plaintiff, rupees..... to the 1st defendant, Rupees..... and to the second defendant the sum of rupees.

6. The separate accounts of the several partners showing the balances due from them respectively, are set forth in Schedule V hereto under their respective names.

7. In taking the said accounts I have disallowed the payments and items specified in Schedule VII hereto, for the reasons set out in column 4 thereof, and the same are payable to the partnership by the several persons mentioned in column 2, and are included in Part II of Schedule I as outstanding of the firm.

I

Assets

Part I ? In hand

Serial No.

Description

Amount

Estimated Value

Rs. Ps.

1.

Cash with plaintiff

1500.00

2.

Cash with defendant No. 1

3.

Cash with Receiver

4.

Cash with Court

5.

Stock in hands of plaintiff

Total

1500.00

Part-II - Outstanding

6.

Pronote of X.Y.

1,000.00

7.

Goods consigned to L.M.

8.

Payments disallowed to plaintiff as per Schedule VII, Items 1

& 4

Total

1,000.00

II

Irrecoverable Assets

Sl. No.

Description of Properties

AmountRs. Ps.

III

Debts and Liabilities

Sl. No.

Description of Properties

Amount

Part-I - To third parties

1.

To P, Q. for rent

Rs. Ps.

120.00

Part-II - To partners

1.

To A.B. plaintiff for advance to the firm, as per Schedule IV

Rs. Ps.

IV

Accounts of partner's advances Plaintiff's Account

Dr.

Cr.

Date

Items

Date

Items

Rs. Ps

Rs. Ps.

Amount withdrawn Advance Interest drawn from Interest to per annum

Advance Interest from to

Balance

Total

Total

1st.

defendant's account

[Set out account as above]

V

Accounts of the several parties Plaintiff's account

Dr.

Cr.

Date

Items

Date

Items

Rs. P.s.

Rs. Ps.

1.

Drawn on account of profits

1.

By Capital

2.

By Balance

2.

By 1/3 share of profits

Total

Total

Set out accounts of other partners, and persons entitled to share profits showing whether there is a balance due to or from each of them. If there be a loss, share of the loss will appear on the debit side, instead of the share of profits on the credit side.

VI

Estimate of the costs of Suit

Rs.

Ps.

1.

Costs of plaintiff

2.

Costs of first defendant

3.

Costs of second defendant

4.

Costs of third defendant

5.

Costs of fourth defendant

6.

Remuneration of Commissioner at Rs. per day of hours

Total

VII

Amount disallowed

Sl. No.

Part Chargeable

Description of item and reference to partnership books

Reasons for disallowance

Amount

1.

Plaintiff

1st July, 68 Ledger No. 1.P For charity

This is not authorised by the partnership agreement or the usage of the partners.

Rs. Ps.

2.

First defendant

1st August, 69 Ledger No. 11.,P. to X,Y for rent

This is on account of 1st defendant's private residence

3.

Second defendant

(Signed)

E.F.,

Commissioner.

Dated the..... Day of.....

Form No. 38

Rule 175 - Plaint in a suit for dissolution of partnership or for an account of partnership dealings

(Cause-title)

The above named plaintiff stated as follows:

1. 2. Insert as in paragraphs 1 and 2 of Form No. 5.

3. The plaintiff and the said C.D., the first defendant and the said E.F., the second defendant, have since the..... day of..... been carrying on the business of..... as partners, at..... within the jurisdiction of this Court, under articles of partnership, in writing dated day of and signed by them respectively [or under a verbal agreement between them and on the said..... day of.....].

4. Under the partnership agreement the plaintiff and the said defendants are entitled to the profits and are liable to the losses of the said business in the following proportions; to the plaintiff, six-sixteenths, to the first defendant seven-sixteenths, and the second defendant, three-sixteenths.

5. The said L.M., the third defendant and the said N.O. the fourth defendant, are not partners in the said business, but are entitled as remuneration for their services therein to the following shares in the net profits thereof; to the third defendant, from the..... day of..... one sixteenth; and to the fourth defendant from the..... day of one-sixteenth.

6. In accordance with the arrangement in the preceding paragraphs mentioned, the plaintiff and the first and second defendant are entitled to profits as follows: from the said day of..... to the plaintiff, six-sixteenth to the first defendant, six-sixteenths; and the second defendant, three-sixteenths; and from the said..... day of..... to the plaintiff, five-sixteenths to the first defendant, six-sixteenths; and to the second defendant three-sixteenths.

7. Accounts were last settled between the partners on the..... day of [or non-settlement of the accounts has been made between the partners since the commencement of the partnership].

8. Disputes have arisen between the plaintiff and the first and second defendants, as such partners aforesaid, whereby it has become impossible to carry on the said business in partnership with advantage to partners.

9. The plaintiff desires to have the said partnership dissolved, and is ready and willing to bear his share of the debts and liabilities of the firm according to the terms of the partnership agreement.

[Or, by the terms of the partnership agreement, the same is determinable at six months' notice and was determined by a notice in writing given on the..... day of..... by the plaintiff to the first and second defendants.

[Or, the first defendant has refused and still refuses to concur in taking and setting the accounts of the partnership, notwithstanding that no such account has been taken or settled since the..... day of.....].

10. The plaintiff prays—

(a)

That the said partnership may be dissolved as from this day [or, be declared to have been dissolved on the..... day of.....].

(b)

That the account of the partnership business may be taken by the Court, [without a dissolution of the partnership] as from the..... day 'of.....].

(c)

That the assets may be realised, and that each party may be ordered to pay into Court any balance due from him upon such partnership account and that the debts and liabilities of the said partnership, may be paid and that the costs of the suit may be paid out of the partnership assets, and that any balance remaining of such assets after such payment and discharge and the payments of the said costs, may be divided between the plaintiff and defendant according to the terms of the said articles [or deed or agreements) or agreement, or that, if the said assets shall prove insufficient, the plaintiff and the said first and second defendants may be ordered to contribute in such proportions as shall be just to a fund to be raised for the payment and discharge of such debts, liabilities and costs.

(d)

For the appointment of a Receiver.

(e)

For an injunction to restrain the first defendant from remaining receiving, disposing of or otherwise dealing, with the property and effects of the partnership.

(f)

. For such other relief as the Court shall think fit.

(Here enter verification as in Form No. 5)

Form No. 39

Rule 176 - Order at first hearing, when it appears that the plaintiff has neglected to make, or has been refused inspection of the partnership accounts; or when the plaintiff makes formal allegations of fraud

The suit coming on this day for settlement of issues in the presence of etc., and it appearing that the plaintiff has not had inspection of the partnership accounts (though the defendant has been willing to afford the same or through the wilful default of the defendant, or as the case may be], it is ordered as follows:

1. That the defendant do forthwith produce at..... [insert place of inspection] or, [bring into Court] the books of account and all other papers, in his possession or power, relating to the business of..... in the plaint mentioned and that the plaintiff be at liberty, at all reasonable times, to inspect the same, and take copies and extracts therefrom.

2. That the plaintiff do on or before the..... day of..... file in Court a written statement setting forth his objections if any, to the said accounts (if fraud, is alleged by the plaintiff specifying any items or transactions which he alleges to have

been fraudulently omitted therefrom or included therein by the defendant, or any other acts of fraud alleged by him, with dates and full particulars thereof).

3. That the plaintiff do pay to the defendant the sum of Rs..... for his costs of the hearing.

And the hearing of this suit for the settlement of issues is adjourned to the day of.....

Form No. 40

Rules 160 and 180 - Interim decree in a suit for dissolution of a partnership

(Cause-title)

This suit coming on this day for final disposal in the presence of..... etc., it is declared as follows:

1. A partnership existed between the plaintiff and the first and second defendants in the business of..... in the plaintiff mentioned, as from the..... day of..... to the..... day of..... and they were interested in the assets and profits and liable to the losses of the same in the proportion of one-sixth to the plaintiff, two-sixths to the first defendant, and the remaining three-sixths to the second defendant.

2. The accounts of the partnership have been regularly and properly kept, and were last settled between the parties hereto on the..... day of..... and the same and all previous settlements of accounts ought not to be disturbed

3. The property specified in the schedule hereto was and is the separate property of the plaintiff, and is to be treated as a part of his capital in the said business.

4. The plaintiff is entitled to have the said partnership dissolved as from the day of.....

And it is decreed as follows:—

5. That the said partnership do stand dissolved as from the said day of..... and that such dissolution be advertised in etc.

6. That the following accounts be taken:—

(1)

An account of the credits, property and effects now belonging to the partnership;

(2)

An account of the debts and liabilities of the partnership;

(3)

An account of the dealings and transactions between the said partners from the said..... day of..... (The date of the last settlement of accounts, if any, or the commencement of the partnership).

(Insert any necessary directions as to the manner of taking the account for example:—

And in taking such accounts, interest at the rate of Rs..... per cent per annum, shall be allowed on the capital contributed and advances made by the several parties thereto).

7. For the purpose of taking the said accounts the first defendant shall on or before the..... day of..... file in the Court his account of the several matters in the preceding paragraph mentioned, verified by the affidavit or himself or some duly qualified person; and the plaintiff and the second defendant shall on or before the..... day of..... file in Court statements of their objections thereto; and all parties shall be entitled to inspect all books of the partnership and the said statement of account and objections.

8. [G.H. of (address and description) is]

[If it is intended to distribute assets among the partners, this clause and clause 9 will be confined to specified assets.]

[upon giving security in the bond of himself and two sureties to be approved by the Judge, in the sum of Rupees.....]

[May be omitted by consent.]

, appointed Receiver to realise and collect the debts; assets and effects of the said partnership with power to bring and defend suits in his own name and to grant receipts and generally to act as the owner thereof might act. [He shall also have power to manage and carry on the said partnership business, and to sell the said business and the stock in trade and goodwill thereof as a going concern, either by a private sale or at public auction, and any of the parties to this suit shall be at liberty to bid for and purchase the same.]

[This clause will not be inserted when it is intended to distribute assets among the partners, and the firm is solvent.]

9. The plaintiff and the defendant shall, forthwith deliver to the said receiver all the stock in trade and effects of the partnership, and all securities, books and papers in their hands relating to the said effects and the said partnership.

10. The receiver shall out of the first moneys to be received by him pay debts due from the said business, and shall be entitled to retain in his hand the sum of Rs. 100 for current expenses, but subject thereto shall pay his net receipts, so soon as the same came into his hands, into Court to the credit of the suit. He shall once in every six months file his

accounts and vouchers in Court; the first account to be filed on the..... day of.....and to be passed before the Judge..... on the..... days of..... He shall be entitled to a commission at the rate of Rs..... per cent, on the net amounts collected by him [or, the sum of Rs..... per month, or as the case may be] as his remuneration, [or, he shall act without any remuneration].

And the further consideration of the suit is adjourned to the..... day of.....

Form No. 41

Rule 180 - Interim decree in suit for dissolution of a partnership, to which persons entitled to share of net profits are made parties

(Cause-title)

This suit coming on this day etc.,

It is declared as follows:

1. A partnership existed between the plaintiff and the first and second defendants in the business of..... in the plaint mentioned, as from the day of..... to the..... day of.....
2. The third and fourth defendants were not partners in the said business but were entitled as remuneration for their services to share in the net profits thereof in the proportion of one sixteenth to the third defendant from the day of..... and two-sixteenths to the fourth defendant from the..... day of..... to the said day of.....
3. The plaintiff and the first second defendants were interested in the assets and profits of the said partnership from the..... day of..... to the..... day of..... in the proportion of six-sixteenths to the plaintiff, six-sixteenths to the first defendant and the remaining three-sixteenths to the second defendant and from the..... day of..... to the said..... day of..... in the proportion of five-sixteenths to the plaintiff, five-sixteenths to the first defendant; and the remaining three-sixteenths to the second defendant.

Proceed as in paragraphs 2 to 10 of Form No. 40 but to the accounts directed paragraph (6), and the following as (4) items.

5. An account of the moneys due to and withdrawn by the third and fourth defendants in respect of their share in the net profit of the said business from the..... day of..... and the..... day of, respectively.

Form No. 42

Rule 184 - Partnership-Order upon the taking of accounts by the Court, when assets are to be distributed among the partners

(Cause-title)

This suit coming on this day for consideration of the statement of accounts and balance sheet filed by the first defendant, and the statement of objections thereto filed by the plaintiff and the second and third defendants, it is ordered the objections Nos..... be allowed and the remainder thereof be disallowed. And it is declared accordingly as follows:—

1. The assets of the said partnership consist of the particulars specified in Schedule I hereto, which are respectively of the amounts or values in columns 3 and 4, and in the possession of the several persons in column 2 thereof mentioned and are of the total estimated value of Rs
2. The debts and liabilities of the said partnership consist of the particulars specified in the Schedule II hereto, amount to Rs
3. The sum of Rs..... is due to the plaintiff for advances made by him to the firm, together with Rs..... for interest thereon to this day at Rs..... per cent per annum, making together the sum of Rs.....
4. The costs of the several parties to this suit are payable out of the assets of the partnership, and the amounts thereof respectively are as set forth in Schedule III hereto.
5. After providing for the payment of the amounts in paragraphs 2, 3 and 4 hereof mentioned, the estimated net profits of the firm are Rs.....
6. The said profits are divisible among the parties hereto as follows: to L.M., the third defendant, Rs..... and to N.G., the fourth defendant Rs..... as remuneration for their services; and the balance is divisible between the partners, namely to A.B., the plaintiff, Rs..... to C.D., the first defendant Rs..... and to E.F., the second defendant, Rs.....
7. On the separate accounts of the several parties hereto (including herein the assets of the partnership in their hands respectively) there are due to or by the firm or to the several parties, the following balances respectively—to the firm, by the first defendant the sum of Rs..... from the firm to the plaintiff, the sum of Rs..... to the second defendant to the

sum of Rs..... to the third defendant, the sum of Rs..... and to the fourth defendant the sum of Rs.....

8. And the parties hereto by their vakils consenting that in place of sale of the assets of the partnership the same shall be divided between the partners, and that, after payments of the said, balances they shall respectively retain the several assets now in their hands in satisfaction of their several shares, it is ordered that the first defendant to forthwith, out of the said sum of Rs..... due from him as aforesaid, in the first place discharge the liabilities in Schedule II mentioned; secondly, do pay to the plaintiff the said sum of Rs..... in paragraph 3 hereof mentioned; thirdly, do pay the sum in paragraph 4 and in Schedule III hereto mentioned; fourthly, do pay to L.M., the said sum of Rs..... and to N.G., the said sum of Rs..... and lastly, do pay the plaintiff the said sum of Rs..... and do file in Court, vouchers for all payments made by him (or if a receiver appointed, proceed as in Form No. 43).

And the further consideration of this suit is adjourned to the day of.....

I

(Set out assets of the firm as in Schedule I to Form No. 37)

II

(Set out debts and liabilities, of the firm as in Schedule III to Form No. 37)

III

(Set out costs of the several parties, which are payable of the assets of the firm, as in Schedule VI to Form No. 37)

Form No. 43

Rule 184 - Order confirming Commissioner's report upon taking accounts, when the firm is solvent, and assets are to be distributed among the partners, and a Receiver has been appointed

(Cause-title)

This suit coming on this day for further consideration, upon reading the report dated the..... day of..... of the Commissioner appointed by the interim decree herein dated..... the day of..... and the objections of the plaintiff thereto; and upon hearing etc.

And the parties by their vakils applying that in place of a sale of the partnership assets the same may be distributed among the several partners, it is ordered that the said report be confirmed, and the objections of the plaintiff thereto be disallowed. And it is declared that there is due to the partnership by the first defendant the sum of Rs and from the partnership to the plaintiff, the sum of Rs..... to the second defendant the sum of Rs..... and to the third defendant, the sum of Rs..... as appears from the several accounts in Schedule I hereto set out as under the respective names of the said parties. And it is ordered as follows:

1. That the first defendant do forthwith pay into Court the said sum of Rs.....
2. That out of the sum of Rs..... now in Court, the sum of Rs..... be paid out of Court to E.F., the Receiver herein, and that the said Receiver do apply the same, and the sum of Rs now in his hands, in discharge of the debts and liabilities set out in Part I of Schedule III of the said report.
3. Upon payment in by the first defendant as aforesaid the several sums in column 4 of Schedule II hereto shall be paid out of Court to the several persons and for the several purposes in columns 2 and 3 thereof respectively mentioned.

And the further consideration of the suit is adjourned to the day of.....

I

Accounts

Account of A.B. plaintiff

Dr.

Cr.

Sl. No.

Items

Amount

Items

Amount

Rs..

Ps.

Rs.Rs.

Rs.

Ps.

1.

By assets in his possession as per Schedule I of
Commissioner's report

By Capital By advance By interest thereon By 1/3
share of estimated net profit.

2.

By payments disallowed as per Schedule VII, items 1 and 2, of
Commissioner's report.

3.

Drawn on account of profits.

Balance Total

Total

(Set out accounts of other parties)

II

[Payments]

[If the amount in Court, mentioned in paragraph 2 of the order, is in sufficient to pay debts and liabilities, the first item will be "LA.: E.F. Receiver, for payment of balance of debts and liabilities of the partnership, and there will be a direction inserted in the order for payment thereof in priority to the other payments.]

Sl. No.

Names of payees

Purpose for which payment is made

Amount Rs. Rs.

1.

G.H. of etc.

Remuneration as Commissioner

2.

L.M. (non-partner)

Balance as per Schedule I

3.

N.O. (non-partner)

Balance as per Schedule I

4.

A.B. Plaintiff

Balance as per Schedule I

Total

Form No. 44

Rules 184 and 185 - Order confirming report of the Commissioner, when the assets or part of them are to be realised or when the firm is insolvent

(Cause-title)

This suit coming on this day for further consideration, upon reading the report, dated the..... day of..... of the Commissioner appointed by the interim decree herein, dated the..... day of..... and the objections of the plaintiff thereto and upon hearing etc. It is ordered as follows:

1. That items 1 and 2 of the said objections be allowed, and that subject thereto the said report be confirmed.

2. That the plaintiff do forthwith pay into Court the sum of Rs..... and the first defendant do forthwith pay into Court the sum of Rs..... being total amount of the sums due to the partnership by them respectively, as set forth in Schedule I (and Schedule V) of the said report (as varied as aforesaid).

3. That the plaintiff and the first defendant do forthwith deliver to the E.F., Receiver herein, possession of the several effects of the partnership now in the possession of them respectively as shown by Schedule I of the said report or if particular items only are to be sold and the remainder distributed possession if item Nos..... now in the hands of the plaintiff, and item Nos..... now in the hands of the first defendant, as appears in Schedule of the said report.

4. That the Receiver do forthwith sell (out of Court) by public auction or by private contract the properties set out in

Schedule I of the said report (except item Nos.....) and do collect and realise the outstanding therein mentioned (except item Nos.....); and any of the parties hereto shall be at liberty to bid at such sale.

5. That out of the moneys now in Court, and the moneys to be paid in as aforesaid, the sum of Rs..... be paid out of the Court of E.F., the Receiver, and that he do apply the same and the sum of Rs..... now in his hands (and the net sale-proceeds and the collections in the preceding paragraph mentioned) first, in discharge of the debts and liabilities set out in Part I of Schedule II of the said report; secondly payment of the sums set out in Part II of the said Schedule II; and lastly, in payment of G.H., the Commissioner, and the balance, if any, in his hands into Court.

And the further hearing of this suit is adjourned to the day of.....

Form No. 45

Rule 184 - Final decree subsequent to the order in Form No. 42

(Cause-title)

The suit coming on this day for further consideration in the presence of etc., and it appearing that the payments directed by the order herein dated the..... day of..... have been duly made by the first defendant; it is by consent decreed that the plaintiff and second defendants do respectively retain the assets of the said partnership in their hands in full satisfaction of their several shares and interests of and in the said partnership, and do execute and make all such transfers, endorsements and delivery of such assets, and any securities therefor, as may be necessary to carry out this decree [**]

[It will be advisable to specify any particular transfer or endorsement required.]

Form No. 46

Rules 184 and 185 - Final decree after order in Form No. 43

(Cause-title)

This suit coming on this day, etc.....

And it is appearing that the debts and liabilities of the partnership have been duly paid and discharged by E.F., the Receiver herein, who has duly passed his accounts before this Court and that nothing now remains due from him, it is ordered and decreed as follows:

1. That the said Receiver be discharged and the bond, dated the day of..... entered into by him, and P and Q, his sureties be cancelled.
2. That the costs of all the parties to this suit be paid out of the assets of the partnership (or as the case may be).
3. That the sum of Rs..... now in Court be paid out of Court to the several persons whose names and descriptions are set out in the Schedule hereto, for the purposes and in the proportions specified in columns 3 and 4 of the said Schedule.
4. [That the several partners do retain the assets of the partnership in their possession in full satisfaction of their respective shares and interests of and in the said partnership and do respectively execute, make and do all such transfers, endorsements and things, as may be necessary to complete the title of the several partners thereto.]

[If any particular transfer or endorsement is required, it should be specified here.]

Schedule 14

Sl. No.

Name and description of payees

Purpose of which payment is Amount made

Amount

1.

R. Plaintiff's Vakil

Costs of plaintiff.

2.

S. First defendant's Vakil.

Costs of first defendant.

3.

T. Second defendant's Vakil.

Costs of second defendant.

4.

U. Third defendant's Vakil.

Costs of third defendant.

5.

A.B. Plaintiff.

Balance of 1/3 share of profits.

6.

C.D. first defendant.

Balance of 1/3 share of profits.

7.

L.M. second defendant.

Balance, etc.

8.

N.O. third defendant.

Balance, etc.

Total

Form No. 47

Rule 184 - Final decree - Distribution of assets, after payment of debts and liabilities among the several partners, who hold the same in various proportions

(Proceed as in Form No. 46 and continue)

And the parties hereto by their vakils applying that in place of the sale of the assets of the partnership, the same may be distributed among the partners as hereinafter directed. It is declared that the amounts due from the partnership to the several parties are as set forth in the several accounts placed under their respective names in Schedule I hereto namely, to the plaintiff, Rs..... to the first defendant, Rs..... to the second defendant, Rs..... and to the third defendant, Rs..... and that the remaining assets of the partnership consist of the sum of Rs..... now in Court and the particulars set out in Schedule II hereto, and it is decreed as follows:

1. (Insert paragraph 1 of Form No. 46).

2. (Insert direction as costs; see paragraph 2 of Form No. 46).

3. That with the consent of the several parties hereto, the partnership assets be distributed among the several partners at the value and in the manner set forth in Schedule II hereto, and that they do accept the properties set out under their respective names in full satisfaction of their respective shares and interest of and in the said partnership.

4. That the several persons mentioned in column 4 of Schedule II do respectively transfer and deliver to the several persons under whose names the descriptions of the several properties are set out in Parts I to IV of the said Schedule, possession of the said properties, or of the same from part of their own share, do retain the same in their possession.

5. That the sum of Rs..... now in Court be paid to the several persons in column 2 of Schedule III hereto, for the purposes and in the proportions specified in columns 3 and 4 of the said Schedule.

I

Accounts

Account of A.B. Plaintiff

Dr.

Cr.

Sl. No.

Rs.

Ps.

Rs.

Ps.

By Profits withdrawn Balance

By Capital By 1/3 share of net profits after
payment of costs

Total

Total

(Set out accounts of other parties)

II

Assets

Share of A.B. Plaintiff

Sl. No.

Description of property

Estimated value

Persons in possession

Rs.

Ps.

1.

A.B.

2.

Balance

C.D.

3.

Total as per Schedule I

L.M.

(Set out shares of other partners)

III

Payments

Sl. No.

Name and description of payee

Purpose of the payment

AmountRs. Ps.

1.

R. Plaintiff's Vakil

Costs of suits

2.

Plaintiff

Expenses of commission paid into Court on day.

3.

?Do?

Balance for equality of partition as per Schedule II

Form No. 48

Rule 187 - Injunction and appointment of a Receiver

(Cause-title)

Upon reading the petition of the plaintiff, dated the..... day of..... praying that the first defendant may be restrained from dealing with the assets of the firm, and for the appointment of a Receiver; and upon hearing etc..... and it appearing that the said first defendant has made default in complying with the terms of the order therein, dated the..... day of..... It is ordered as follows:—

1. The C.D., the first defendant, be restrained by injunction from selling, disposing of or intermeddling with any part of the stock in trade, properties and effects belonging to the plaintiff, and that the first and second defendants, as partners in the business of..... in the plaint mentioned, and from receiving, negotiating, retaining, or otherwise dealing with any money, securities or property of the said partnership and from doing or causing to be done, any act in the name or on the credit of the said partnership until the further order of this Court.

2. (Appoint Receiver, as in paragraphs 8, 9 & 10 of Form No. 40).

Form No. 49

Rule 187 - Order on appeal varying the interim decree in a partnership suit

(Heading as in Form No. 24)

1. It is ordered that the said interim decree be varied by omitting the declaration in paragraph 3 thereof, that the business of..... carried on by the first defendant at..... formed part of the partnership business and that the assets thereof and the transactions therein should be included in taking the partnership accounts and it is ordered that

with this variation the said interim decree be affirmed, and that his suit be remanded to the said Court; and be re-admitted under its original number in the register and that the said Court do proceed to take the accounts directed by the said interim decree as varied as aforesaid and to determine the suit accordingly.

Form No. 50

Rule 187 - Order on appeal from a final decree reversing same and appointing a Receiver

(Heading as in Form No. 24)

It is ordered that the said decrees be reversed, and it is declared as follows:

1. That particulars mentioned in the Schedule hereto formed part of the assets of the partnership in the plaint mentioned, and ought to be brought into the accounts thereof.
2. The balance due from the first defendant to the firm, exclusive of the said particulars, amounts, to the sum of Rs.....

And it is ordered as follows:

3. C.D., the first defendant, shall within 14 days from this day pay into the Court of the District Munsif of..... to the credit of this suit the said sum of Rs
4. E.F. (address and description) is upon giving security in the bond of himself and two sureties, to be approved by the Judge of the said Court in the sum of Rs..... appointed Receiver to realise and sell the property, and collect the out standings in the said Schedule mentioned with power to bring and defend suits in his own name and to grant receipts and generally to act as the owner thereof might act.
5. The said first defendant shall forthwith deliver to the said Receiver such of the particulars mentioned in the said Schedule are as in his possession; and all papers and securities in his hands relating thereto.
6. The Receiver shall out of the first moneys to be received by him discharge the debts and liabilities of the partnership, as specified in the order of the said Court dated the..... day of..... and shall be entitled to retain in his hands the sum of Rs. 100 for current expenses, but subject thereto, shall pay his net receipt so soon as they come to his hands into the Court of the District Munsif of..... to the credit of this suit. He shall once in every three months file his accounts and vouchers in the said Court; the first account to be filed on the..... day of..... and to be passed before the Judge of the said Court. He shall be entitled to retain a commission at the rate of Rs..... per cent on the net amount realised or collected by him, his remuneration.
7. On or before the..... day of..... the said Judge shall report to this Court what property and outstanding have been or remain to be realised or recovered, what amount is standing to the credit of the suit, or is in the hands of the Receiver, and whether the Receiver has duly passed any and what accounts before him. And the further hearing of this appeal is adjourned to the..... day of.....

Schedule 18

Form No. 51

Rule 188 - Application for certified copies

(Cause-title)

To

Judge of the said Court,

Application for certified copies.

It is requested that certified copies of the documents hereunder mentioned may be furnished to A.B., the plaintiff above named [or to A.B., of (address and description) and that the same may be sent to the said address by registered post].

[The said copies are urgently required for the reason that (set out the reason for urgency). On the..... day of..... application for copies of the documents numbered..... was made to C.D., the..... Pleader of E.F., the defendant who has for more than two days neglected to furnish the same].

Sl.No.

Date of filing document

Date of document

Description of documents Order, if any, under which application is made

Dated the..... day of..... 19.....

(Signed)

G.H.

Pleader for the plaintiff.

Form No. 52

Rule 206 - Application for transmission of decree or order

(Cause-title)

Execution-Petition No (1).....

The above named plaintiff states as follows:—

[Set out particulars required by Order XXI, Rule 11(2) of the Code, paragraphs (a) to (i) inclusive].

The defendant is a resident of..... within the local limits of the Court of the District Munsif of..... and has immovable property situate therein. He has no property movable or immovable within the local limits of the jurisdiction of this Court [or the property of the said defendant within the local limits of the jurisdiction of this Court, consists only of..... and is not sufficient to satisfy the said decree].

The plaintiff prays that said decree may be transmitted (through the District Court of.....) to the Court of the District Munsif of..... for execution.

(Enter verification as in Form No. 5)

L.M.Vakil for the plaintiff.

(Signed) A.BPlaintiff..

Form No. 53

Rule 209 - Execution Petitions

(Cause-title)

Execution Petition No. 1..... 19.....

1.

Number of suit

O.S. No. 1 of 1920

2.

Names of plaintiffs

1.2.3.

3.

Names of defendants1.

1.2.3.

4.

Date of decree.

[Set out the other particulars required by Order XXI, Rule 11(2), clauses (a) to (c) of the Code].

5. Relief prayed The plaintiff prays that:

1. The interest of the said C.D. in the immovable property described in the schedule hereto may be attached under Order XXI, Rule 54 of the Code of Civil Procedure, and may be sold by the Court and that summons may issue to the said C.D. to bring into Court all documents in his possession or power relating there; or

That the movable property of and in the possession of the defendant in his godown situate at..... may be attached under Order XXI, Rule 43 of the Code of Civil Procedure, and may be sold by the Court; or

That the movable property of the defendant in the possession of G.H. of (address and description) at and described in the inventory annexed hereto, may be attached under Order XXI, Rule 46 of the Code of Civil Procedure, and may be sold by the Court; or

That a warrant may be issued for the arrest of the defendant.

2. That the plaintiff may be at liberty to bid at such sale, at such price as may be fixed by the Court.

3. That notice may be issued to the persons named in column 10 hereof to show cause why the said decree should not be executed against them in manner aforesaid, [as the legal representatives of C.D. the defendant above named, who died on the..... day of..... in respect of above mentioned property, being assets of the said deceased in their hands].

Schedule 19

Sl. No.

Description of property

Interest of judgment-debtor

Encumbrance

Set out full particulars of area, survey numbers, nature of land, rental value and capital value etc.

In addition to full particulars of any mortgage of charge, set out particulars of any peishkush etc., payable, leases or agreements, etc.

(Here enter verification as in Form No. 5).

(Signed) L.M.Vakil for Plaintiff

(Signed) A.B.Plaintiff.

Form No. 54

Rule 220 - Notice under Order XXI, Rule 34(2) of the Code

(Cause-title)

To

(Residence of description)

Take notice that on the..... day of..... that above named plaintiff presented an application to this Court that the Court may execute on your behalf a deed of assignment whereof a draft is hereunto annexed of the immovable property specified thereunder and that the..... day of..... is appointed for the hearing of the said application and that you are at liberty to appear on the said day in person or by pleader and to state any objection thereto which you have been given not less than two days' notice in writing to the plaintiff or his pleader.

And also take notice that the address for service of the plaintiff is....

Description of Property

(Set out description as contained in the draft deed of assigned)

L.S.

(Signed)

Judge.

Form No. 55

Rule 221 - Concluding portion of a deed executed by the Judge

In witness whereof C.D. this Judge of Court of the District Munsif of on behalf of the above named A.B. and in pursuance of the decree, dated the..... day of..... and made in a suit in the said Court numbered..... of..... wherein the above named E.F. was plaintiff and the said A.B. was defendant, has set his hand the seal of the said Court this..... day of.....

(Signed)

A.B. by C.D.

Judge.

Form No. 56

Rule 221 - Endorsement of a negotiable instrument by the Judge

(Cause-title)

Pay E.F. or order

(Signed) A.B. by C.D.Judge of the said Court

Form No. 57

Rule 225 - Lodgement Schedule

(Cause-title)

of lodgement to be made to the above suit [or appeal or matter], to the account of A.B. the plaintiff under the decree [or order] dated the.....

Particulars of funds to be lodged

Person to make the lodgement

Amounts

Cash

Security

1. Cash in satisfaction of the said decree.

C.D. the defendant

Rs. Ps.

Rs. Ps.

2. Costs.

The same

3. Interest on the decreed amount to this day.

The same

Total

1. Cash proceeds of sale under the said order

E.F. the auctioneer

Two Government Promissory Notes of the loan of

G.H. the guardian of the minor

1,500

1. Note No.

The minor

90 106

500

2. Note No.

The minor

3. Balance of cash in his hands

Total 90 106

2,000

It is requested that an order for lodgement may be issued.

Dated..... day of.....

(Signed)

L.M. Pleader for C.D.

[Form No. 58]

[Substituted by ROC No. 1852/SO82, Dated 9-6-1987, Published in Andhra Pradesh Gazette., Dated 15-6-1987.]

Rule 225 (157) of Part I, Volume I, C.R.P. & C.O.

Order for Lodgement

(P. Dis. No. 1047 of 1937)

No.

No.

No.

No.

Order for Treasury.Lodgement in ReserveBank of
India.In the Court of

Order for Treasury.Lodgement in ReserveBank of
India.In the Court of

Order for Treasury.Lodgement in ReserveBank of
India.In the Court of

Order for Treasury.Lodgement in ReserveBank of
India.In the Court of

ToOfficer in charge of Treasury at.....

ToOfficer in charge of Treasury at.....

Received this day of 198 and entered as No..... of 198
in the Register of Civil Court Deposits the sum of Rs..... of
Rs.Nps. from.... to the credit of No..... of on the file of
the court of

Received this day of..... 198 and entered as No..... of 198
in the Register of Civil Court Deposits the sum of Rs.....
Nps..... (in words Rupees..... from..... to the credit of

No..... of on the file of the Court of
 The Agent, Reserve Bank of India.
 The Agent, Reserve Bank of India.
 Received Rs.....(in words Rupees..... from..... to the
 account of No. of on the file of this Court
 You are requested to receive the sum of Rs..... Nps...(in
 words) from and credit the same to the account of No..... on
 the file of this Court dated the day of 198....

Dated..... the day..... of 198.....

Dated..... the day..... of198.....

Dated..... the day of 198.....

Officer in charge of the Treasury Agent of Manager.

Officer in charge of the Treasury Agent or Manager.

Form No. 59

Rule 165 - Payment Schedule

(Cause-title)

of payment to be made out of Court money standing to the credit of above suit [or appeal or matter] (to the separate
 account of , a minor) under decree [or order] dated the..... day of.....

Particulars of payment transfers

Payees or transferees

Amounts

Cash Securities

Rs. Ps.

Rs. Ps.

Pay

C.D. of etc.

Pay costs

E.F. of etc.

Transfer of GovernmentPromissory Notes of the loan of
 Nos.

G.H.. of etc.

1,000.00

Sub-divided Government Promissory

J.K. of etc.

1,000.00

Notes of the Loan of No. and transfer to.....

L.M. of etc.

500.00

Sell Notes No. of the said loan and divided proceeds as
 under:?

P.Q. of etc.

400.00100.00

One-half

J.K.

Three tenths

J.M.

One-fifth

P.Q.

Total

3,000.00

It is requested that an order for payment may be issued.

Dated the..... day..... of.....

(Signed)

C.D.

(Signed)

E.F.

Pleader C.D.

Received this..... day..... the above sum of Rs..... only.

(Signed)

C.D.

Form No. 60

Rule 165 - Order for payment

No.In

the Court of.....

To

The Officer incharge of the Treasury at.....Pay Rs.....

to..... of..... only (address and description)

or order on account of No..... on the file of this

Court and of Receipts of Civil Court's Deposits.

Dated the..... day of.....

Initial of the Judge

Not

payable if presented after close of the (account) month in which issued.

Not payable. if present after close of the (account) month in which issued.

No.In

the Court of.....

To

The Officer incharge of the

Treasury at..... Please pay to.....of

?.....(address and only description)

or order the

sum of Rs..... and debit

the amount of bearer to the account No..... of ?.....

on the file of this Court and of No..... of Treasury Register

of Receipts of Civil Court's Deposits.

Dated

the..... day of.....

Signature of

the Judge

Or. When the

Government Treasury is kept by a Bank

No.In

the Court of.....

To

The Agent, State Bank of India, at.....Pay Rs.....

to..... of..... only (address and description) or

order and debit to or order Civil Court's Personal Ledger

account of this Court.

Dated the..... day of

Initials of the Judge

Not

payable if presented after close of the (account) month in which issued.

Or. When the

Government Treasury is kept by a Bank

No.

.....In the Court of.....

To

the

Agent State Bank of India, at.....

Please pay

to.....of.....(address

and only description)or orderthe

sum of Rs..... and debit the or bearer amount to Civil

Court's Deposits Personal Ledger account of this Court.

Date

the..... day of ?.....

Signature of

the Judge

Form No. 61

Rule 239 - Payment into Court of Cash Deposit

(Cause-title)

Nature of process to be issued or purpose for which money is

deposited and order if any, under which the deposit is made

Name and descriptions of persons on whom or on whose property

the process is to be executed

Village, Taluk and District Munsif where process is to be

executed

Distance in miles from the Court house

Travelling allowances to and from the Court house

(1)

(2)

(3)

(4)

(5)

1.

2.

3.

4.

5.

Class of allowance

Subsistence allowance

Expenses of sale or commission

Amount

Number of days

Process fees

(6)

(7)

(8)

(9)

(10)

It is requested that the sum of Rs. may be received for the purposes above mentioned.

Form No. 62

Rule 242 - Prohibitory Order where the property consists of money or of a security in the hands of a Court of Justice or Officer of Government

(Cause-title)

To

Sir,

The plaintiff having applied, under Order XXI, Rule 52 of the Code of Civil Procedure, for an attachment of certain money (or property) now in your hands (here state how the money or property is supposed to be in the hands of the person addressed, on what account etc.) I request that you will hold the said money (or property) until the day of subject to the further order of the Court.

(If the notice be addressed to a public officer continue), and that, if you have no notice of any claim to interest in the said money (or property) other than that of the above named C.D. you will bring the same into this Court to the credit of the above suit; or if you have any objection to so doing then you will inform me of the grounds thereof.

I have honour to be,

Sir,

Your most obedient servant,

(Signed)

.....

Dated the day of 19.....

Judge.

Form No. 63

Rule 243 - Order of attachment of a decree when both decrees are in the same Court

(Cause-title)

It is ordered that A.B., the plaintiff, shall be at liberty at any time before the day of to apply to this Court for execution of the decree of this Court dated the day of and made in Original Suit No. of wherein C.D. the above named defendant, was plaintiff, and E.F. was defendant; and that any monies realised in execution shall be applied in satisfaction of the decree made in this suit and dated the day of

Form No. 64

Rule 243 - Attachment of a decree of another Court

(Cause-title)

To

Judge of the Court of

Sir,

The plaintiff having applied under Order XXI, Rule 53 of the Code of Civil Procedure of the attachment of a decree of your Court, dated the day of and made in Original Suit No. of wherein the above named C.D. was plaintiff and E.F. defendant, I request that you will abstain from executing the said decree until this notice is cancelled by the Court.

I have honour to be,

Sir,

Your most obedient servant,

(Signed)

.....

Judge.....

Dated the day of 19.....

Form No. 65

Rule 244 - Notice permitting of execution of attached decree

(Cause-title)

To

Judge of the Court of.....

Sir,

The plaintiff having applied under Sections 33, 39, 41 and Order XXI, Rule 4 and 5 of the Code of Civil Procedure and Rule 177 of the Civil Rules of Practice for the transmission of the decree in the above suit dated the day of..... to your Court, for execution and being desirous of applying to your Court for execution of the decree of your Court, dated the..... day of..... and made in Original Suit No..... of.....; I enclose herewith the documents noted below and hereby cancel the notice, dated the..... day of..... requesting you to abstain from executing the said decree, so far as regards any application by the above named plaintiff. (Conclude as in Form No. 64).

Form No. 66

Rule 246 - Claim to attached property

(Cause-title)

Execution Petition No.

Execution Application No.

Claim of E.F., under Order XXI, Rule 58 of the Code of Civil Procedure.

The above named E.F., states as follows:—

1. Your petitioner is a landowner, and resides at.....; and his address for service of all notices and process is.....
2. On the..... day of..... the property set forth in the schedule hereto was attached by the Officer of the Court, under an order made in the above suit and dated the..... day of.....
3. By a deed of assignment, dated the..... day of..... and in consideration of a sum of the Rs..... then paid by your petitioner to him the above named C.D., assigned to your petitioner all his interest in the said property, and your petitioner is solely and absolutely entitled thereto.
4. Your petitioner has been in possession of the said property since the said..... day of..... and has received the rents and profits thereof for his own use and benefit.
5. Your petitioner therefore prays:

(a)

That the order therein dated the.....day of..... may be set aside and the said property released from attachment.

(b)

That the sale of the said property may be postponed pending the hearing of this petition.

(c)

That A.B., the plaintiff may be ordered to pay the costs of this petition.

(d)

For such other relief as to this Court may deem fit.

(Here enter verification as in Form No.5)

(Signed G.H.)Pleader for the claimant.

(Signed E.F.)Claimant

Form No. 67

Rule 258 - Application for sale of attached (immovable) property

(Cause-title)

Execution Petition No.1

Execution Application No.2

A.B. above named plaintiff, applies under Order XXI, Rule 66 of the Code of Civil Procedure as follows:—

1. That the (immoveable) property described in the schedule to the above execution-petition, and attached by the Officer of this Court on the..... day of..... may be sold by the Nazir of this Court (or by..... of address and description) at (insert place of sale), by public auction on the..... day of.....
2. That the proclamation of sale herewith filed may be settled and approved by the Court.
3. That the plaintiff may be given liberty to bid at such sale, at such price as may be fixed by the Court.
4. [If immovable property - That summons may issue to C.D., the defendant, bring into Court the documents in his possession or power relating to the said immovable property;] if leave to bid is applied for, to file his objections, if any to the particulars stated in the affidavit filed by the applicant for sale, and to show cause why leave to bid at the said sale should not be granted to the plaintiff.
5. [If an auctioneer other than Officer of Court is to be appointed - That the remuneration of the said G.H. may be fixed at Rs..... or at Rs..... per cent on the net sale-proceeds of the property].

Form No. 68

Rule 259 - Affidavit verifying a proclamation of sale

(Cause-title, and formal parts as in Form No. 14)

1. State the qualifications of the deponent, as thus: I have for years last past carried on the business of an auctioneer at..... and have had considerable experience in selling land and house property (or in the case of movable property state the nature of the property to be sold).....[or; I have for..... years last past resided, and I own land in the..... district and I am well acquainted with the value of land and houses therein, and the best mode of selling the same].

2. I am well acquainted with the property situate in the said district, proposed to be sold in this suit (or, matter), and described in the draft proclamation of sale, now shown and read over to be and marked with the letter

3. On the..... day of..... I went over to the said property and made a careful survey thereof, for the purpose of forming an opinion as to the market value of and the best mode of selling the same.

4. The said documents marked "A" sets forth a true and correct description of the said property, to the best of my knowledge and belief and the mode in which, in my opinion, it will be desirable to divide the same into lots for the purposes of the said sale in order to sell the same to the best advantage and to realise the best prices.

5. In my opinion the market value of the several lots and the amounts which should be fixed as the reserve biddings therefor respectively, are as set forth hereunder:—

Number of lot

Market value

Rs. Ps.

1.

.....

.....

.....

2,000.00

2.

.....

.....

.....

1,000.00

3.

.....

.....

.....

100.00

6. In my opinion, the sale should be advertised by inserting notices thereof in the following newspapers, namely..... and the sale should be held at.....

7. In the case of immovable property when the amount of the decree exceeds Rs. 100 or when the Court has ordered a search to be made—A search has been made in the office of the Registrar of Assurances for the district [or sub-district] of..... in..... which the property is situated, from the..... day of..... to the..... day of..... and the following documents were found to have been registered in respect of the said property, namely:—

Serial No.

Reference to the Register

Date

Parties

Description of document

8. The document now shown to me, and marked with the letter "C", is the certificate of said Registrar of the result of the said search.

9. To the best of my information and belief, the abovenamed C.D. (the judgment-debtor) is solely and absolutely entitled to the said property and no other person has any other right to or, interest in the same [or, the said property is subject to a mortgage, dated the..... day of..... executed by the above named C.D. (the judgment-debtor) in favour of.....

(address and description) to secure a sum of Rs..... and interest thereof at the rate of Rs..... per cent per annum and is now due thereunder the sum of Rs..... for principal and interest, subject thereto the said C.D. is, to the best of my information and belief solely and absolutely entitled to the said property and no other person has any right to or the interest in the same, (or in case of limited interest, set out the precise interest of the judgment-debtor in the property as thus. The interest of the above named C.D. (the judgment-debtor) is only that of possession and enjoyment during her life, as Hindu widow of E.F. deceased [or, the said property is the ancestral property of the said C.D. which he holds jointly with his two sons and it is intended to sell only his undivided one-third share therein subject to all rights of maintenance, marriage allowance and residence, (if any).

Form No. 69

Rule 275 - Proclamation of sale of move able property

In The Court of The District Munsif of

Original Suit No..... of.....

Execution Petition No.

Between:

1.A.B. And2. C.D.

Plaintiffs

and

3.E.F. and4. G.H.

Defendants

Proclamation of Sale

Whereas by a decree made in the above suit, and dated the..... day of..... the above named defendants were ordered to pay the above named plaintiffs the sum of Rs..... and Rs..... for costs of suit, making in all the sum of Rs..... together with interest thereof at the rate of Rs..... per cent, per annum from the said day until realisation, and by an order for sale, dated the..... day of the movable property described in the schedule hereto was ordered to be sold by me in satisfaction of the said decree. And whereas on the..... day of..... (date fixed for sale) there will be due thereunder the sum of Rs..... for principal and interest.

Notice is hereby given that the sale property will be sold by public auction at noon on the said..... day of..... at [place of sale]. The interest of the abovenamed defendants in the said property, and the claims and liabilities attaching thereto are, so far as can be ascertained, set out in the said Schedule.

Conditions of Sale

1. The property is sold under the conditions prescribed by the Code of Civil Procedure.
2. The decree-holders are (or are not) at liberty to bid.
3. The amount to be advanced at each bidding shall be stated by the auctioneer before the sale is commenced.
4. In the event of any dispute arising as to any bidding the lot shall at once be put up again to auction.
5. Each purchaser shall pay the price of the lot purchased by him to the auctioneer, immediately the same is knocked down to him.
6. No objection shall be taken by any purchaser that the property, or the interest of the defendant therein, has been incorrectly described or mis-stated in this proclamation, or on the ground of any defect herein.

Schedule 22

Number of lots

Description of property

Interest of the Judgment debtor

Encumbrance or claims debtor

Form No. 70

Rule 274 - Proclamation of sale of Immovable Property

(Cause-title)

Proclamation of Sale

Whereas by a decree made in the above suit, and dated the..... day of.....; the above-named defendants were ordered to pay to the above-named plaintiffs the sum of Rs..... and Rs..... for costs of suit, making in all the sum of Rs..... together with interest thereon at the rate of Rs..... per cent per annum from the said day until realization, and by an order for sale dated the..... day of..... the immoveable property described in the schedule hereto was

ordered to be sold by me in satisfaction of the said decree.

And whereas on the..... day of..... (date fixed for sale) there will be due thereunder the sum of Rs for principal and interest. (And whereas by an order in the above suit and dated the..... day of..... it was directed that the sale of the said property (or of lot No.....) should be made subject to the rights of..... of address and description) who claim under mortgage, dated the..... day of..... executed in favour of the said X.Y. by S.T. to secure the repayment of a sum of Rs. X with interest thereon at the rate of Rs Y per cent per annum; and registered, etc., to be entitled to payment of a sum of Rs..... with interest thereon from the..... day of.....]

And where it is represented by the decree-holder that he caused to be made in the office of the Registrar of Assurances..... from the..... day of..... to the..... day of..... and that the documents registered in respect of the several lots opposite to which the same are set out and that the said lots are severally subject to the payments and claims set opposite thereto respectively in the fifth column of the same schedule [and to the leases and agreements specified in the seventh column]. I hereby notify that I shall sell the said property by public auction at (insert place of sale) [or at the several lots], subject to the conditions of sale hereunder, in the lots and at the times in the same schedule specified. Copies of this proclamation may be had gratis, of A.B. of (residence and description).

Conditions of Sale

1. The conditions prescribed by the Code of Civil Procedure shall apply to the sale.
2. The highest bidder of each (lot) shall be the purchaser and if any dispute arises as to any bidding, the lot shall be put up again. The decree holder shall (or shall not) be at liberty to bid. No person shall advance a less sum at each bidding than shall be named by the auctioneer on putting up the lot and no bidding shall be retracted.
3. Each purchaser shall immediately after the sale to him pay to the auctioneer 25 per cent of the purchase-money, and shall pay the residue of the purchase money to the auctioneer before p.m. on or before the fifteenth day after the sale to him.
4. The property (or lot No.....) is sold subject to the mortgage dated the..... day of..... above referred to and to all claims and rights of the said X.Y. thereunder.]
5. The property is believed and shall be taken to be correctly described as to quantity and otherwise, and any omission or misstatement in this proclamation shall not annul the sale, or be a ground for any compensation on either side.
6. Such of the documents of title in the possession of the decree-holder (or now in Court) as relate exclusively to any lot will be delivered to the purchaser of such lot. All other documents which relate exclusively to the property sold will be delivered to the purchaser of lot No..... or such other person as the Court may determine.
7. The certificate of the Registrar of Assurances of the result of the above search, a copy of the decree under which the property is sold and copies of the lease and agreements referred to in column 7 of the schedule hereto may be inspected at the said Court on any day before the sale during office hours or at the office of the auctioneer at (address) on any day before the sale between the hours of..... and..... and whether the purchaser shall have inspected the same or not, he shall be considered, by bidding at the sale, to have waived all objections appearing on the face thereof. The further hearing of the above suit adjourned to the..... day of such day of..... when the sale will come before the Court for confirmation. On such day any purchaser may take any objection to the sale of which he shall have given not less than five days' previous notice in writing to the parties to suit. Any objection not so made shall be considered, as waived, and if no objection be so made, the title shall be considered as accepted, and the sale as valid in all respects and in this respect time shall be deemed to be the essence of the contract.

Schedule 23

Revenue or rent assessed on land local taxes and

rates payable thereon

Document found registered

Remarks

Day and hour of sale

Number of lot

Description of property

Interest of the judgment upto

Amount now due

Annual

Date and reference to register

Short description of the document

N.B.: - Insert village, areas, survey or municipal number.

Given under my hand and seal of this Court, this..... day of.....

Judge

Form No. 71

Rule 278 - Report of the Nazir or other Auctioneer

(Cause-title)

I. A.B. of (address and description) [if other than the Nazir sells], do solemnly and sincerely affirm as follows:—

1. On the..... day of..... I received from the Court a certified copy of the order for sale made in the above suit and dated the..... day of..... and a copy of the proclamation of sale.

2. I caused the proclamation of sale to be published on the days and in the manner following:—

Day of publications

Manner of publication

1. 1st March, 1909

1. Fixing copy to the notice board of this Court.

2.

2. Fixing copy to the notice board of the office of the

Collector of..... at.....

3.

3. Fixing copy to each of lots 1, 2 and 3.

4.

4. By beat of tom-tom on each of lots 1, 2 & 3.

5.

5. By advertisement in the newspapers (Names)

3. I put up the several lots for sale by auction at..... (or at the several lots) at the several times, and knocked down the same to the several purchasers, at the prices, and received the several sums hereunder mentioned:

Number of lots Date and hour of sale

Name and address and description of purchaser

Sale price

Amount received

4. I adjourned the sale of lots Nos..... to the..... day of..... for the reason that (set out the reason for the adjournment of the sale).

5. The following is a true account of the moneys received and payment made by me in connection with the said sale:

Date

Receipts

Rs. Ps. Date

Payment

Rs. Ps.

1. By sale of lot No. 1 - Deposit Balance

1. Printing proclamation

2. By sale of lot No. 2 - Deposit Balance

2. Cost of advertisements in newspaper

3. By cash received from the Court for expenses

3. to peons for beating tom tom (days)

4. Carriage hire (days)

5. Cost of stamps for poundage paid into Court

Total

Total

Solemnly affirmed by the abovenamed A.B. this day of.....

Before me,

(C.D.)
(description)

·
(Signed A.B.)

Form No. 72

Rule 278 - Execution-Application by defendant under Order XXI, Rule 89 of the Code

(Cause-title)

Execution Petition No. 2

Execution Application No.2

C.D., the above named defendant, applies under Order XXI, Rule 89 of the Code of Civil Procedure as follows:

1. That he having paid into Court the sum of Rs. X, being five per cent of the purchase money of his property sold at the Court sale held on the day of..... and also the sum of Rs.Y, being the amount specified in the proclamation of the sale, the Court may order the said sale to be set aside, and satisfaction of the decree therein, dated the..... day of to be entered up for the said sum of Rs.Y.

Notice of this application was given to the parties on the..... day of..... and to G.H., the purchaser, on the..... day of.....

(Signed)

L.M.

Pleader for C.D.

Form No. 73

Rule 288 - Civil Rules of Practice

(Cause-title)

Receiver's statement of account to be filed under

Sl. No.

Date

From whom received or to whom paid

Credit amount

Debit amount

Balance from last account

Total.....

Balance.....

Form No. 74

Rules 289 and 290

(Cause-title)

Affidavit verifying Receiver's account

I,..... of..... the Receiver appointed in the above matter make oath (do solemnly affirm) and say as follows:—
That the account hereunto annexed and marked "A" contains a full and true account of my receipts and payments in the above matter from the..... day of..... 19..... to the day of..... 19..... inclusive and that I have not nor has any other person by my order or for my use as such Receiver during such period, received any moneys on account of the said matter neither have any moneys been to my knowledge expended in the said matter during the said period (other than and except the items mentioned and specified in the said account).

Sworn (or solemnly affirmed).

Note: - In the case of no receipts and payments the words within brackets should be omitted.

Form No. 75

Of Appendix III-A

of Part II, Volume II

Rule 287, Part I, Volume I, Civil Rules of Practice

Security Bond to be given by a person appointed to the panel of Receivers when the security offered is immovable property.

Know all men by these presents that I/We..... son of..... and.....son of..... are jointly and severally bound unto the Judge of District Court of..... in the sum of Rs. 2,000 to be paid to the said Judge, his successors or

assignees for which payment, well and truly to be made. I/We bind myself/ ourselves my/our respective heirs, executors, administrators and representatives jointly and severally firmly by these presents, and I/we do as security for the said payment mortgage unto the said Judge the immovable property set forth and described in the schedule hereto of which I/we or A.B., of us are possessed to which I am/we are A.B. of us is solely entitled, and which is hereby declared to be free from any mortgage and other encumbrance save the one created by these presents.

Whereas the above bounden..... was on the..... day of..... 19.....appointed to the panel of Receivers of the District Court of..... under..... Chapter X of Part I of Civil Rules of Practice and Circular Orders, Volume I, and whereas by virtue of such appointment he may from time to time be appointed by the said District Court or any Court subordinate thereto as Receiver, Trustee, Manager or Guardian of an estate or as Commissioner to deal with any property or as Liquidator of any Company and whereas by virtue of such appointment or appointments, the said..... has or will have amongst other duties the care, charge, oversight of and responsibility for the immovable property vested in him and also the care, charge and oversight of and responsibility for the safe and proper strong and keeping in the place appointed for the custody thereof respectively of all moneys and other movable properties received by him or entrusted to him.

Now therefore the condition of the above bounden Bond is such that if the said..... shall while he shall hold and/or execute the said office or offices to which he may be appointed as aforesaid always perform and fulfil all and every, the duties thereof and observe all and every the rules of the High Court and the orders of Court that may be passed from time to time in respect of any of the estates or properties of which he may be incharge, or the companies of which he may be liquidator by virtue of his appointment to the said office or offices and further if the said..... do and shall indemnify and save harmless the said individual estates and companies against all loss or damage which during the time he..... has held and or executed the head office or offices may happen to or be sustained by the said individual estates and companies by, from or through his neglect failure, misconduct, misappropriation, disobedience, omission or insolvency, and against all claims, demands and actions, which may be made against the said individual estates and companies by reason of any of his acts of defaults during the time he shall hold and/or execute the offices aforesaid then the above written bond shall be void, otherwise it shall remain in full force and virtue.

Signed by the above named in the presence of..... this the..... day of..... 19.....
of Property

Signed and delivered this..... day of..... 19.....

Form No. 76

Of Appendix III-A

of Part II, Volume II

(Rule 287 Part I, Volume I, Civil Rules of Practice)

Form of Bond to be given by a person appointed to the panel of Receivers when the security offered is a fidelity bond:

Know all men by these present that I, (or we), and we,..... Society Limited, carrying on business in..... at..... through..... (and hereinafter called "Society") are jointly and severally bound into the Judge of the District Court of..... in the sum of Rs. 2,000 to be paid to the said Judge his successors or assignees for which payment to be made, I/we bind myself/ourself; my/our heirs, executors and administrators and representatives and severally and we..... the Society for ourselves and our successors, and assignees, do bind oblige ourselves, for the whole, unto the said Judge, his successors or assignees firmly by these presents:

Signed, sealed and delivered the..... day of..... 19.....

The rest of the clauses shall be contained as in Form No. 75.

Form No. 77

Of Appendix III-A

of Part II, Volume II

(Rule 287, Part I Volume I, Civil Rules of Practice)

Form of security bond to be given by a person appointed to the panel of Receivers when the security offered is one of the following:— Cash, Government Security or Fixed deposit or Cash Deposit in the Post Office, Savings Banks, Post Office Cash Certificate, National Savings Certificate, Bonds of the Government of Mysore, Travancore, Cochin or the United States of Travancore and Cochin, Bonds or Debentures issued by the Local Authorities in India as defined in Section 3(31) of General Clauses Act (Act X of 1897).

Know all men by these presents that I/we..... son of..... and..... son of..... are jointly and severally

bound unto the Judge of the District Court of..... in the sum of Rs. 2,000 to be paid to the Judge, his successors or assignees for which payment, well and truly to be made, I/we bind myself/ourselves; my/our respective heirs, executors, administrators and representatives jointly and severally firmly by these presents and I/we have deposited into the said Court by way of security for the said payment the sum of Rs. 2,000 or assigned and transferred to the Judge of the said Court by way of security, the Government security, fixed deposit or cash deposit in the Post Office Savings Banks, Post Office Cash Certificate,

National Savings Certificate, Bonds of the Government of Mysore, Travancore, Cochin or the United States of Travancore and Cochin, Bonds or Debentures issued by the Local Authorities in India as defined in Section 3(31) of the General Clauses Act (Act X of 1897), set forth and described in the schedule hereto of which I/We am/are solely entitled.

Signed the..... day of.....19.....

The rest of the clauses shall be continued as in Form No. 75.

(P.Dis.No. 552 of 1945).

Form 77, Amended, vide (Fort. St. George Gazette Part II Page 220, dated the 27th December, 1949).

The Court of Andhra Pradesh

Hyderabad - 5.9.1983.

[Added by G.O.Ms No. 16 Law (LA & J - Home Courts-C2) Dept., dated 17-2-2012.]

[Inserted by G.O. Ms. No. 40, Law(LA&JHC-D), Dated 2.4.2008. w.e.f. 22.2.2006, published in R.S. to Part-I of the Andhra Pradesh Gazette,No, Dated 17.7.2008.]

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